



Western Australia

Constitution Acts Amendment Act 1899

Compare between:

[01 Jul 2015, 19-o0-04] and [19 Oct 2015, 19-p0-01]

Constitution Acts Amendment Act 1899

An Act to amend the *Constitution Act 1889*, and to amend and consolidate the Acts amending the same.

Preamble

Whereas by the *Constitution Act 1889*, it is provided that the Legislature of Western Australia shall have full power and authority from time to time to repeal or alter any of the provisions of the said Act: And whereas it is expedient to amend the said Act and to amend and consolidate the Acts amending the same: Be it therefore enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Legislative Council and Legislative Assembly of Western Australia, in this present Parliament assembled, and by the authority of the same, as follows: —

Part IA — Preliminary

[Heading inserted by No. 19 of 2010 s. 43(2).]

1. Short title

This Act may be cited as the *Constitution Acts Amendment Act 1899*¹.

2. Repeal

The enactments mentioned in the First Schedule hereto are thereby repealed to the extent therein stated.

3. Terms used

For the purposes of this Act —

Her Majesty means, when not repugnant to the context, Her Majesty, her heirs and successors.

Governor in Council means the Governor acting with the advice of the Executive Council.

Minister means the Minister charged with the execution of this Act.

Treasurer means the Treasurer of the State for the time being.

Person means an individual of either sex.

[Section 3 amended by No. 7 of 1920 s. 2; No. 46 of 1963 s. 8; No. 59 of 1978 s. 9.]

[4. Deleted by No. 10 of 1998 s. 76.]

Part I — Legislature

Division 1 — Legislative Council

[Heading inserted by No. 19 of 2010 s. 44(2).]

5. Constitution of Legislative Council

The Legislative Council shall consist of 36 elected members who shall be returned and sit for electoral regions.

[Section 5 inserted by No. 40 of 1987 s. 6; amended by No. 1 of 2005 s. 7(2).]

[6. Deleted by No. 1 of 2005 s. 7(3).]

[7. Deleted by No. 64 of 2006 s. 4.]

8. Retirement of members periodically

(1) In this section —

general election means a general election for the Legislative Council;

member means a member of the Legislative Council.

(2) The seat of a member elected at a general election shall become vacant at the expiration of the period of 4 years beginning on 22 May next following the day of his election as member.

(3) A member elected at a general election shall not sit or vote before 22 May next following the day of his election as member.

(4) Where an election held as part of a general election fails wholly or partially or is declared to be absolutely void —

(a) the seat of a member elected at an election held by reason of that failure or declaration shall become vacant at the expiration of the period of 4 years beginning on 22 May next following that general election; and

(b) if a member elected at an election held by reason of that failure or declaration is so elected before 22 May next following that general election, that member shall not sit or vote before that 22 May.

(5) Subsections (2) and (4)(a) do not affect the operation of any enactment under which a member may cease to be a member, or the seat of a member may become vacant, otherwise than by effluxion of time.

[Section 8 inserted by No. 40 of 1987 s. 8; amended by No. 36 of 2000 s. 23; No. 49 of 2011 s. 12.]

[8A. Omitted under the Reprints Act 1984 s. 7(4)(e).]

[8B. Deleted by No. 40 of 1987 s. 10.]

9. Resignation of members

Any member of the Legislative Council may resign his seat therein, by writing under his hand addressed to the President, or if there be no President, or if the President is absent from the State, to the Governor, and upon the receipt of such resignation by the President or the Governor, as the case may be, the seat of such member shall become vacant.

[Section 9 amended by No. 46 of 1963 s. 8.]

10. Tenure of seat by member filling vacancy

(1) A member of the Legislative Council elected to fill any vacancy arising otherwise than by effluxion of time shall hold the seat during the unexpired portion of the term for which the previous member would have been entitled to hold it, and no longer.

(2) Subsection (1) does not affect the operation of any enactment under which a member may cease to be a member, or the seat of a member may become vacant, otherwise than by effluxion of time.

(3) The provisions of this Act and the *Electoral Act 1907* as to the occurrence and filling of vacancies in the seats of members of

the Council extend, with any appropriate modifications, to cases where —

(a) a person has been elected as a member but the term of office for which the person was elected has not begun; or

(b) the election of a person as a member is void and the term of office for which the person would have been elected, if the election had not been void, would have begun on 22 May next following the election.

[Section 10 amended by No. 40 of 1987 s. 11; No. 36 of 2000 s. 56.]

11. Election of President

Whenever the office of President of the Legislative Council becomes vacant, the Council at their first meeting thereafter shall elect one of their members to be President, and the President so elected shall preside at all meetings of the Council: Provided that pending such first meeting the Chairman of Committees shall fill the office and perform the duties of the President, subject, however, to section 13.

[Section 11 amended by No. 32 of 1954 s. 2.]

12. Absence of President provided for

In case of the absence of the President upon leave of absence granted to him by the Legislative Council, or by reason of illness or other unavoidable cause, the Chairman of Committees shall fill the office and perform the duties of the President during such absence.

[Section 12 amended by No. 32 of 1954 s. 3.]

13. President to hold office in certain cases until meeting of Parliament

The member of the Legislative Council holding office as the President thereof who shall vacate his seat by periodical

retirement when the Council is not in session, shall continue in office and be deemed to be the President of the said Council until the next meeting of Parliament, unless he shall not be re-elected a member of the said Council; but nothing in this section shall enable a President hereby continued in office to preside at any meeting of the said Council.

14. Quorum — division, casting vote

The presence of at least one-third of the members of the Legislative Council, exclusive of the President, shall be necessary to constitute a quorum for the despatch of business; and all questions which shall arise in the Legislative Council shall be decided by a majority of votes of the members present, other than the President, and when the votes are equal the President shall have the casting vote:

Provided always, that if the whole number of members constituting the Legislative Council shall not be exactly divisible by 3, the quorum of the Legislative Council shall consist of such whole number as is next greater than one-third of the members of the Legislative Council.

[15. Deleted by No. 64 of 2006 s. 5.]

[16. Deleted by No. 72 of 1963 s. 9.]

[17. Deleted by No. 72 of 1963 s. 10.]

Division 2 — Legislative Assembly

[Heading inserted by No. 19 of 2010 s. 44(2).]

18. Constitution of Legislative Assembly

The Legislative Assembly shall consist of 59 elected members who shall be returned and sit for electoral districts.

[Section 18 inserted by No. 1 of 2005 s. 7(4); amended by No. 2 of 2005 s. 3.]

[19. Deleted by No. 1 of 2005 s. 7(4).]

[20. Deleted by No. 64 of 2006 s. 6.]

21. Duration of Assembly

- (1) Every Legislative Assembly shall exist and continue for 4 years from the day of the first meeting thereof and no longer; subject, nevertheless, to being sooner prorogued or dissolved by the Governor.

Provided that, subject as aforesaid —

- (a) whenever any Legislative Assembly would expire by the effluxion of time between the last day of August of any year and the first day of February next thereafter, such Legislative Assembly shall continue up to and including the day next preceding such first day of February and no longer; and

- (b) whenever the Legislative Assembly would expire by effluxion of time between the last day of January and the first day of September of any year, such Legislative Assembly shall cease and determine on the last day of January of that year.

- (2) Notwithstanding subsection (1) the Legislative Assembly in existence at the commencement of the *Acts Amendment (Electoral Reform) Act 1987* shall, subject to section 3 of the *Constitution Act 1889*, cease and determine on 31 January 1989.

[Section 21 amended by No. 48 of 1919 s. 2; No. 40 of 1987 s. 12.]

22. Absence of Speaker provided for

In case of the absence of the Speaker upon leave of absence granted to him by the Legislative Assembly, or by reason of illness, or other unavoidable cause, the Chairman of Committees shall perform the duties and exercise the authority of Speaker in relation to all proceedings of the House as Deputy

Speaker; and, in the absence of the Chairman of Committees, the Assembly shall thereupon elect some other member to fill the office and perform the duties of the Speaker during such absence.

23. Speaker to hold office till meeting of new Parliament unless not re-elected

In case of any dissolution of Parliament the Speaker of the Legislative Assembly at the time of such dissolution shall continue in office and shall be deemed to be the Speaker of the said Assembly until the first meeting of the new Parliament, unless he shall not be re-elected a member of the said Assembly; but nothing in this section shall enable a Speaker hereby continued in office to preside at any meeting of the said Assembly.

24. Quorum — division, casting vote

The presence of at least one-third of the members of the Legislative Assembly, exclusive of the Speaker, shall be necessary to constitute a quorum for the despatch of business; and all questions which shall arise in the Legislative Assembly shall be decided by a majority of votes of the members present, other than the Speaker, and when the votes shall be equal the Speaker shall have the casting vote: Provided always, that if the whole number of members constituting the Legislative Assembly shall not be exactly divisible by 3, the quorum of the Legislative Assembly shall consist of such whole number as is next greater than one-third of the members of the Legislative Assembly.

25. Resignation of members

Any member of the Legislative Assembly may resign his seat therein, by writing under his hand, addressed to the Speaker, or if there be no Speaker, or if the Speaker is absent from the State, to the Governor, and upon the receipt of such resignation by the

Speaker or the Governor, as the case may be, the seat of such member shall become vacant.

[Section 25 amended by No. 46 of 1963 s. 8.]

[26-28. Deleted by No. 27 of 1907 s. 211.]

Division 3 — General

[Heading inserted by No. 19 of 2010 s. 44(2).]

[29, 30. Deleted by No. 27 of 1907 s. 211.]

31. Terms used

(1) In this Division —

disqualified for membership of the Legislature means disqualified for membership of the Legislative Council and for membership of the Legislative Assembly;

member in relation to a commission, council, board, committee, authority, trust or other body means —

(a) any member of the body whether known as a member, commissioner, councillor, trustee, director or by any other title;

(b) any deputy, alternate or acting member of the body, and includes a person holding the office of chairman or president or any other office on the body;

member of the Legislature means a member of the Legislative Council or the Legislative Assembly.

(2) In this Division a reference to the holding of any office or place is a reference to the holding of that office or place in a permanent, temporary or acting capacity on a full-time, part-time or casual basis.

[Section 31 inserted by No. 78 of 1984 s. 8; amended by No. 24 of 2000 s. 9; No. 19 of 2010 s. 51.]

32. Disqualification by reason of bankruptcy or convictions

(1) A person is disqualified for membership of the Legislature if he —

(a) be an undischarged bankrupt, or a debtor against whose estate there is a subsisting receiving order in bankruptcy; or

(b) has been convicted on indictment of an offence for which the indictable penalty was or included —

(i) imprisonment for life; or

(ii) imprisonment for more than 5 years.

(2) In subsection (1)(b) —

indictable penalty means the penalty that such a law specified for the offence in the event of a person being convicted of it on indictment; and

offence means an offence against a law of this State, the Commonwealth, another State or a Territory.

[Section 32 (formerly section 31) amended by No. 111 of 1975 s. 2; renumbered as 32 and amended by No. 78 of 1984 s. 9; No. 70 of 2004 s. 81(1)-(3).]

33. Holders of offices or places not disqualified except under s. 34 to 42

Except as provided by the succeeding sections of this Part or the Electoral Act 1907 section 149A(2) —

(a) the election of a person as a member of the Legislature shall not be rendered void or affected in any other way;

(b) the seat of a person as a member of the Legislature shall not become vacant,

by reason of his holding any office or place of profit from or under the Crown or any other office or place.

[Section 33 inserted by No. 78 of 1984 s. 10; amended by No. 64 of 2006 s. 7.]

34. Disqualification of certain office-holders and members of Parliament

(1) Subject to this Act a person is disqualified for membership of the Legislature if he —

(a) holds any office mentioned in Part 1 of Schedule V; or

(b) is a member of the Parliament of the Commonwealth or the legislature of a Territory or another State of the Commonwealth.

(2) A member of either House of the Legislature is disqualified for membership of the other House.

[Section 34 inserted by No. 78 of 1984 s. 10.]

[35. Deleted by No. 64 of 2006 s. 8.]

36. Certain offices and places must be vacated before member can take seat

(1) Subject to subsections (2) and (8), this section applies to a person who —

(a) holds an office or place in the service of the Crown in right of the Commonwealth or another State of the Commonwealth or in the service of the government of, or any department or agency of the government of, the Commonwealth or a Territory or another State of the Commonwealth; or

(b) holds an office as a member of any commission, council, board, committee, authority, trust or other body, and was appointed as such a member by the Crown in right of the Commonwealth or another State of the Commonwealth, or by the government of, or any department or agency of the government of, the Commonwealth or a Territory or another State of the Commonwealth.

(2) Subject to subsection (4), the Governor may, by Order in Council, exempt any office or place from the operation of this section and whilst that office or place remains so exempted this

section shall not apply to a person by reason of his holding that office or place.

(3) Subject to subsection (4), the Governor may, by subsequent Order in Council, amend an Order made under subsection (2) or revoke the Order either absolutely or for the purpose of substituting another Order.

(4) An Order in Council shall be made under this section if and only if the making of the Order has been recommended by resolution passed by both Houses of the Legislature.

(5) Subject to subsection (6), an Order in Council made under this section shall take and have effect on and from the day on which it is published in the *Government Gazette*.

(6) Where, by reason of an Order in Council made under subsection (3), an office or place previously exempted from the operation of this section will no longer be so exempted, that Order shall take and have effect at and from the expiration of 30 days from the day on which it is published in the *Government Gazette*.

(7) The Clerk of the Parliaments shall keep in his custody a copy of every Order in Council made under this section.

(8) This section does not apply to a person by reason of his being a member of the Citizen Forces or the Reserve Forces within the meaning of the *Defence Act 1903* of the Parliament of the Commonwealth.

(9) If any person to whom this section applies is elected as a member of the Legislative Council at a general election, his seat shall become vacant on 22 May next following the election if he has not, before that date, resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him.

(10) If any person to whom this section applies is elected as a member of the Legislature otherwise than as referred to in subsection (9) —

(a) he shall not take the oath, or make the affirmation, pursuant to section 22 of the *Constitution Act 1889* until he has resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him; and

(b) his seat shall become vacant at the expiration of 21 days after the date on which he is declared to be elected if he has not, before the expiration of that period, resigned from or otherwise ceased to hold the office or place by reason of which this section applies to him.

[Section 36 inserted by No. 78 of 1984 s. 10.]

37. Office or place vacated in certain cases

(1) Subject to subsection (2), this section applies to a person who —

(a) holds any office or place mentioned in Part 2 of Schedule V not being an office also mentioned in Part 1 of Schedule V; or

(b) is a member of any commission, council, board, committee, authority, trust or other body mentioned in Part 3 of Schedule V.

(2) This section does not apply to a person by reason of his being the holder of any office or place, or a member of any body, *ex officio* as the holder of any of the principal executive offices of the Government liable to be vacated on political grounds.

(3) If any person to whom this section applies is declared to be elected as a member of the Legislature, he shall, upon and by virtue of being so declared, vacate the office or place by reason of which this section applies to him.

[Section 37 inserted by No. 78 of 1984 s. 10.]

38. Seats in Parliament vacated in certain cases

Subject to any resolution passed by the Legislature under section 39, if any member of the Legislature, after his election —

- (a) ceases to be qualified under the *Electoral Act 1907* section 76A to be elected as a member of the Legislature; or
- (b) becomes disqualified for membership of the Legislature by section 32 or section 34; or
- (c) becomes a person to whom section 36 or section 37 applies; or
- (d) takes the benefit, whether by entering into a personal insolvency agreement or otherwise, of any law relating to bankrupt or insolvent debtors; or
- (e) becomes of unsound mind; or
- (f) takes any oath or makes any declaration or acknowledgment of allegiance, obedience, or adherence, to any foreign Prince or Power, or does, concurs in, or adopts any Act whereby he may become a subject or citizen of any foreign State or Power, or whereby he may become entitled to the rights, privileges, or immunities of a subject or citizen of any foreign State or Power; or
- (g) fails to give his attendance in the House of which he is a member for one entire session thereof without the permission of the House entered upon its journals,

his seat shall thereupon become vacant.

[Section 38 amended by No. 4 of 1947 s. 2 (as amended by No. 46 of 1963 s. 10); No. 12 of 1948 s. 3 (as amended by No. 46 of 1963 s. 10); No. 111 of 1969 s. 2; No. 15 of 1975 s. 2; No. 78 of 1984 s. 11; No. 64 of 2006 s. 9; No. 18 of 2009 s. 20.]

39. Provision for relief

(1) This section applies to any case where a person has, or it is alleged that a person has, at any time (in this section called the **material time**) become the holder of an office or place —

(a) specified in Part 1 or 2 of Schedule V; or

(b) as a member of any commission, council, board, committee, authority, trust or other body specified in Part 3 of Schedule V; or

(c) referred to in section 36(1),

and, at the material time, that person was a member of the Legislature.

(2) If, in a case to which this section applies, it appears to the Legislature that the person concerned has, since the material time, resigned from or otherwise ceased to hold the office or place in question, and that it is otherwise proper so to do, the Legislature may, by resolution passed by both Houses, direct that his becoming the holder of that office or place at the material time shall be disregarded for the purposes of section 38 and the resolution shall have effect according to its tenor.

(3) A resolution may be made under subsection (2), and a resolution made under that subsection shall have effect, notwithstanding that proceedings may have been commenced in the Supreme Court under section 41 and notwithstanding any declaration made by the Supreme Court under that section.

(4) The provisions of sections 67(2) and (3) and 156B(2) and (3) of the *Electoral Act 1907* do not apply to or in relation to any vacancy occurring by operation of section 38 in a case to which this section applies.

[Section 39 inserted by No. 78 of 1984 s. 12; amended by No. 40 of 1987 s. 13.]

[39A-39C. Deleted by No. 78 of 1984 s. 12.]

40. Presence of unqualified persons not to invalidate proceedings

The proceedings of the Legislative Council or Legislative Assembly shall not be invalidated by reason of the presence in that House of —

- (a) any person not qualified under the *Electoral Act 1907* section 76A to be elected as a member of that House; or
- (b) any person disqualified by section 32 or section 34 for membership of that House; or
- (c) any person whose seat as a member of that House has become vacant by operation of section 36 or section 38.

[Section 40 inserted by No. 78 of 1984 s. 12; amended by No. 64 of 2006 s. 10.]

41. Jurisdiction of Court of Appeal

(1) Any person entitled to vote for the election of a member of the Legislative Assembly at a general election may apply to the Court of Appeal, in accordance with Rules of Court, for a declaration as to whether or not —

- (a) by operation of section 35 the election of that person or another person as a member of the Legislature is void; or
- (b) by operation of section 36 or section 38 the seat of that person or another person as a member of the Legislature has become vacant; or
- (c) by operation of section 37 that person or another person has vacated an office or place.

(2) Upon any application made under subsection (1) by a person other than the person in respect of whom a declaration is sought, the person in respect of whom a declaration is sought shall be the respondent; and the applicant shall give such security for the costs of the proceedings not exceeding \$500 as the Court of Appeal may direct.

- (3) In hearing and determining an application under this section the Court of Appeal shall give effect to any resolution made under section 39(2) in respect of the person in respect of whom a declaration is sought.

[Section 41 inserted by No. 78 of 1984 s. 12; amended by No. 45 of 2004 s. 37.]

[41A. Deleted by No. 78 of 1984 s. 12.]

42. Power to amend Schedule V

- (1) Subject to subsection (2), the Governor may, by Order in Council, amend Schedule V.

- (2) An Order in Council shall be made under this section if and only if the making of that Order has been recommended by resolution passed by both Houses of the Legislature.

- (3) An Order in Council made under this section shall take and have effect —

(a) in the case of an Order adding an office to Part 1 of Schedule V, or adding an office or place to Part 2 of Schedule V or adding a commission, council, board, committee, authority, trust or other body to Part 3 of Schedule V — at and from the expiration of 30 days from the day on which the Order is published in the *Government Gazette*; or

(b) in the case of any other Order — on and from the day on which the Order is published in the *Government Gazette*.

- (4) The Clerk of the Parliaments shall keep in his custody a copy of every Order in Council made under this section.

[Section 42 inserted by No. 78 of 1984 s. 12.]

Part II — Executive

43. Principal executive offices

- (1) There may be 17 principal executive offices of the Government liable to be vacated on political grounds, and no more.
- (2) The offices shall be such 17 offices as shall be designated and declared by the Governor in Council, from time to time, to be the 17 principal executive offices of the Government for the purposes of this Act.
- (3) One at least of such executive offices shall always be held by a member of the Legislative Council.
- (4) Before a person who accepts such an executive office performs any function of the office, he is to take before the Governor, or some person authorised for the purpose by the Governor, the oath or affirmation set out in Division 1 of Schedule VI.

[Section 43 amended by No. 25 of 1927 s. 2; No. 2 of 1950 s. 2; No. 2 of 1965 s. 3; No. 86 of 1975 s. 3; No. 5 of 1980 s. 3; No. 10 of 1986 s. 3; No. 24 of 2005 s. 9.]

44. No person to draw salaries for 2 offices

If any person accepts any 2 or more of the offices liable to be vacated on political grounds, it shall not be competent for him to receive the salary of more than one office.

44A. Parliamentary Secretaries

- (1) The Governor in Council may —
 - (a) appoint a person who is a member of the Legislature to be the Parliamentary Secretary to a Minister, that is to the holder of a principal executive office referred to in section 43; and
 - (b) at any time revoke such an appointment.

- (2) An office of Parliamentary Secretary under this section is not one to which section 43 applies but is liable to be vacated on political grounds in the same manner as a principal executive office referred to in that section.
- (3) The functions of a Parliamentary Secretary appointed under this section are such as the Governor in Council may specify in the instrument of appointment.
- (4) A Parliamentary Secretary appointed under this section shall be paid an allowance or allowances under subsection (5) but otherwise shall not receive any remuneration in respect of that office.
- (5) The allowances referred to in subsection (4) are —
- (a) an allowance in respect of holding the office of Parliamentary Secretary; and
 - (b) an allowance for and in respect of expenses necessarily or reasonably incurred in connection with the office of Parliamentary Secretary,
- determined under the *Salaries and Allowances Act 1975* section 6.
- (6) Before a person who is appointed to be a Parliamentary Secretary performs any function of the office, he is to take before the Governor, or some person authorised for the purpose by the Governor, the oath or affirmation set out in Division 1 of Schedule VI.
- [Section 44A inserted by No. 38 of 1990 s. 4; amended by No. 24 of 2005 s. 10; No. 56 of 2006 s. 4.]

45. Oath of office for members of Executive Council

The form of the oath or affirmation of office for a person who has been appointed to be a member of the Executive Council is that set out in Division 2 of Schedule VI.

[Section 45 inserted by No. 24 of 2005 s. 11.]

Part III — Miscellaneous

46. Powers of the 2 Houses in respect of legislation

- (1) Bills appropriating revenue or moneys, or imposing taxation, shall not originate in the Legislative Council; but a Bill shall not be taken to appropriate revenue or moneys, or to impose taxation, by reason only of its containing provisions for the imposition or appropriation of fines or other pecuniary penalties, or for the demand of payment or appropriation of fees for licences, or fees for registration or other services under the Bill.
- (2) The Legislative Council may not amend Loan Bills, or Bills imposing taxation, or Bills appropriating revenue or moneys for the ordinary annual services of the Government.
- (3) The Legislative Council may not amend any Bill so as to increase any proposed charge or burden on the people.
- (4) The Legislative Council may at any stage return to the Legislative Assembly any Bill which the Legislative Council may not amend, requesting by message the omission or amendment of any item or provision therein: provided that any such request does not increase any proposed charge or burden on the people. The Legislative Assembly, may if it thinks fit, make such omissions or amendments, with or without modifications.
- (5) Except as provided in this section, the Legislative Council shall have equal power with the Legislative Assembly in respect of all Bills.
- (6) A Bill which appropriates revenue or moneys for the ordinary annual services of the Government shall deal only with such appropriation.
- (7) Bills imposing taxation shall deal only with the imposition of taxation.

(8) A vote, resolution, or Bill for the appropriation of revenue or moneys shall not be passed unless the purpose of the appropriation has in the same session been recommended by message of the Governor to the Legislative Assembly.

(9) Any failure to observe any provision of this section shall not be taken to affect the validity of any Act whether enacted before or after the coming into operation of the *Constitution Acts Amendment Act 1977*¹.

[Section 46 inserted by No. 34 of 1921 s. 2; amended by No. 63 of 1950 s. 2; No. 28 of 1977 s. 2.]

[47, 47A. Deleted by No. 40 of 1987 s. 14.]

48. Revision or compilation of electoral rolls upon commencement of Act

(1) It shall be the duty of the Electoral Registrars, immediately after the commencement of this Act, to amend the Electoral Roll for each Province and District by removing from the roll the name of every elector whose qualification by the operation of this Act is situate or arises in some other Province or District, and to insert every name so removed on the Electoral Roll of the Province or District to which the qualification is, by the operation of this Act, transferred.

(2) In the case of a Province or District created by this Act for which there is no electoral roll in existence, the Electoral Registrar shall remove from the roll of the Province or District of which the newly created Province or District formed part, the name of every elector whose qualification by the operation of this Act is situate or arises in such newly formed Province or District, and shall compile a roll for every such last-mentioned Province or District of the names so removed in the form prescribed by the *Electoral Act 1899*², and such roll shall be forwarded by such Electoral Registrar to the Electoral Registrar of the newly formed Province or District, and such roll shall be the electoral roll for every such newly formed Province or District until a new roll is completed, and every elector whose

name appears thereon, pursuant to this section, shall be entitled to vote for a member or members for such newly formed Province or District.

49. Commencement of action

No action or other proceeding to recover any forfeiture, penalty, or sum of money under this Act shall be commenced except within 3 months after the time at which the right to bring such action or to take such proceeding first arose.

50. Plaintiff to give security for costs

No action or other proceeding for the recovery of any penalty, forfeiture, or sum of money in respect of the breach or violation of any of the provisions of this Act shall be commenced unless and until the plaintiff shall pay into Court the sum of \$200 as security for all such costs as may be awarded to the defendant in such action or proceeding, and such sum shall abide the order of the Court or a Judge.

[Section 50 amended by No. 113 of 1965 s. 8(1).]

51. No action to lie against officials of either House

No action or other legal proceedings shall lie or be maintained against the President of the Legislative Council, or the Speaker of the Legislative Assembly, or against the Chairman of Committees, or other officer of either House of Parliament, or any member of the Police Force, for anything done by, or under the warrant, or by the direction of, such President, Speaker, or other officer, under or purporting to be under the standing orders or any other order or resolution of the House in which he presides, or of which he is an officer, as the case may be, or under or purporting to be under the provisions of "An Act for defining the Privileges, Immunities, and Powers of the Legislative Council and Legislative Assembly of Western Australia, respectively."³.

[Section 51 amended by No. 8 of 2009 s. 37.]

52. Proclamation of Royal Assent and commencement of Act

This Act shall be proclaimed in Western Australia by the Governor so soon as he shall have received a notification by telegraph or otherwise of the Royal Assent thereto, and shall commence and take effect from the date of the publication of such Proclamation¹, but the constitution of the existing Legislative Assembly shall remain unaffected by this Act until the said Assembly is dissolved by effluxion of time or otherwise.

Schedule I — Enactments repealed

[s. 2]

[Heading amended by No. 19 of 2010 s. 14(2).]

Section I	Project Summary
<u>Session and Number</u>	<u>Extent of Repeal</u> DATE: February 14, 2022 CASE#: MS_2021-0002 DATE FILED: 6/17/2024 OWNER/APPLICANT: RURAL COMMUNITIES HOUSING DEVELOPMENT CORPORATION (RCHDC) AGENT: CORT MUNSELLE, MUNSELLE CIVIL ENGINEERING REQUEST: Two lot minor subdivision of a 4.1± acre parcel to create one parcel of 2.37± acres (Lot 1) and one parcel of 1.73± acres (Lot 2). ENVIRONMENTAL DETERMINATION: Negative Declaration LOCATION: 0.6± miles northeast of the City of Ukiah at the intersection of Brush Street (CR 217) and North Orchard Avenue (City of Ukiah); located at 365 Brush Street, Ukiah; APN: 002-101-31. STAFF PLANNER: RUSS FORD
Section II	Project Description
<u>52 Vict., No. 23</u>	<u>Sections 14, 18 to 21 inclusive, 23 to 30 inclusive, and 32, 33, and 40.</u> INTRODUCTION: The proposed project requests the division of an existing 4.1± acre lot into two separate lots of 2.37± acres and 1.73± acres to

	facilitate the construction of multi-family housing. PROJECT OBJECTIVES: The Rural Communities Housing Development Corporation (hereafter 'RCHDC') has previously completed several Boundary Line Adjustments to facilitate the construction of multi-family housing along Brush Street (CR 217), known as Orr Creek Commons Phases 1 and 2. Construction of unit 1 has completed and construction of unit 2 is underway. The division of this parcel will allow RCHDC to apply for a third unit of multi-family housing, at least a portion of which will be designated 'affordable' or 'low income' housing (less than 50%). SETTING AND LOCATION: The subject site lies within the sphere of influence of the City of Ukiah at the intersection of Brush Street and North Orchard Avenue, immediately adjacent to the city's incorporated boundary. The site is served by the Ukiah Valley Sanitation District for wastewater
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	treatment and though technically outside its district boundary, domestic water is provided by the City of Ukiah. Domestic water for Orr Creek Commons Phases 1 and 2 was also provided by the City of Ukiah, and on July 29, 2021, they provided an updated comment letter stating that the City has the resources and intention to support the additional housing proposed by RCHDC. The site itself is currently undeveloped, but was previously used for materials storage for the construction of Orr Creek Commons Unit 2. The parcels to the west and south of the subject site are heavily developed with residential uses, and the parcels to the north contain several mini-storage lots and another multi-family residential development intended for use by agricultural workers. The eastern and northeastern-most parcels are currently undeveloped. The entire project site is classified as a type AE flood zone on FEMA's Flood Insurance Rate Maps (FIRM), with a base flood elevation of approximately 607 feet above
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	sea level. Prior to construction of Orr Creek Commons Phases 1 and 2, fill dirt was added to the site to bring the at grade elevation above the calculated base flood elevation. The site is approximately 600 feet west of the US 101 corridor and is visible from the highway, but cannot be accessed directly from it. Orr's Creek, an existing riparian corridor, forms the southern boundary of the project site. As part of the Orr Creek Commons Unit 1, the land immediately adjacent to the creek was dedicated to the City of Ukiah for use as open space and a riparian buffer. This project would only affect the portion of the remaining land outside of that existing dedication, and does not propose changes to the buffer zone. BASELINE CONDITIONS: The California Environmental Quality Act (CEQA) Guidelines Section 15125 requires that the Project Description identify existing baseline physical conditions to evaluate the significance of the project
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<u>54 Vict., No. 6</u> Section III <u>55 Vict., No. 32</u>	impacts. In the case of the subject parcel, baseline conditions include existing multi-family residential development on two adjacent sites, as well as existing transportation and utility infrastructure commonly associated with urban development. <u>The Whole.</u>Environmental Checklist. <u>Section 30, subsections (1a) and (4);</u> <u>Section 31.</u> “Significant effect on the environment” means a substantial, or potentially substantial, adverse change in any of the physical conditions within the area affected by the project, including land, air, water, minerals, flora, fauna, ambient noise, and aesthetic significance. An economic or social change by itself shall not be considered a significant effect on the environment. A social or economic change related to a physical change, may be considered in determining whether the physical change is significant (CEQA Guidelines, Section 15382).
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Constitution Acts Amendment Act 1899
Enactments repealed

Accompanying this form is a list of discussion statements for all questions, or categories of questions, on the Environmental Checklist (See Section III). This includes explanations of "no" responses.

<u>56 Vict., No. 17</u>	<u>The Whole.</u>
<u>57 Vict., No. 14</u>	<u>The Whole.</u>
<u>58 Vict., No. 15</u>	<u>The Whole.</u>
<u>60 Vict., No. 18</u>	<u>The Whole.</u>

[Schedule II deleted by No. 46 of 1963 s. 9.]

[Schedule III related to section 30 which was deleted by No. 27 of 1907 s. 211.]

[Schedule IV deleted by No. 19 of 1989 s. 5.]

**Schedule V — Offices and bodies to which Part I
Division 3 applies**

[s. 34 and 37]

[Heading inserted by No. 19 of 2010 s. 14(3).]

Part 1 — Disqualifying offices

[Heading inserted by No. 19 of 2010 s. 14(3).]

Division 1 — Judicial, tribunal and similar offices

[Heading inserted by No. 19 of 2010 s. 14(3).]

Chief Justice of Western Australia or other judge of the Supreme Court.

Master of the Supreme Court.

Chief Judge or other judge of the District Court.

President or other judge or magistrate of the Children's Court.

Chief Judge or other judge of the Family Court of Western Australia.

Chief Magistrate, Deputy Chief Magistrate or magistrate of the Magistrates
Court.

Industrial magistrate appointed under the *Industrial Relations Act 1979*.

Coroner appointed under the *Coroners Act 1996*.

Chief Assessor of Criminal Injuries Compensation or an Assessor of Criminal
Injuries Compensation appointed under the *Criminal Injuries
Compensation Act 2003*.

President of The Western Australian Industrial Relations Commission.

Chief Commissioner, Senior Commissioner or other commissioner of
The Western Australian Industrial Relations Commission.

Chairman or other member of the Salaries and Allowances Tribunal established
by the *Salaries and Allowances Act 1975*.

Chairman of the Coal Industry Superannuation Board.

Chairperson or deputy chairperson of the Coal Industry Tribunal of Western Australia constituted under the *Coal Industry Tribunal of Western Australia Act 1992*.

President or other member of the Mental Health Review Board established under the *Mental Health Act 1996*, including a member of a panel established under section 127 of that Act.

Public service arbitrator appointed under Division 2 of Part IIA of the *Industrial Relations Act 1979*.

Chairman, or deputy of the chairman, of the Railways Classification Board established under Division 3 of Part IIA of the *Industrial Relations Act 1979*.

Member of the State Administrative Tribunal.

Western Australian Energy Disputes Arbitrator appointed under section 62 of the *Energy Arbitration and Review Act 1998*.

[Division 1 inserted by No. 78 of 1984 s. 14; amended by No. 97 of 1986 s. 40; No. 21 of 1987 s. 11; No. 28 of 1989 s. 33(3); No. 15 of 1991 s. 22(a); No. 44 of 1991 s. 3; No. 34 of 1992 s. 85; No. 37 of 1992 s. 39(a); No. 1 of 1995 s. 23(a); No. 2 of 1996 s. 61; No. 65 of 1998 Sch. 3 Div. 1; No. 34 of 1999 s. 61; No. 77 of 2003 s. 73; No. 55 of 2004 s. 1324; No. 59 of 2004 s. 141; No. 73 of 2006 s. 116(2); No. 16 of 2009 s. 68.]

Division 2 — Other offices

[Heading inserted by No. 19 of 2010 s. 14(4).]

Auditor General appointed under the *Auditor General Act 2006*.

Agent General appointed under the *Agent General Act 1895*.

Chief executive officer of an agency within the meaning of the *Public Sector Management Act 1994*.

Clerk of the Legislative Assembly.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 1 Disqualifying offices

Clerk of the Legislative Council.

Commissioner appointed under the *Corruption, Crime and Misconduct Act 2003*.

Commissioner for Children and Young People appointed under the *Commissioner for Children and Young People Act 2006*.

Commissioner of Police appointed under the *Police Act 1892*.

Director of Public Prosecutions and Deputy Director of Public Prosecutions appointed under the *Director of Public Prosecutions Act 1991*.

Director of the Health and Disability Services Complaints Office appointed under the *Health and Disability Services (Complaints) Act 1995*.

Electoral Commissioner or Deputy Electoral Commissioner appointed under the *Electoral Act 1907*.

Information Commissioner appointed under the *Freedom of Information Act 1992*.

Inspector of Custodial Services appointed under the *Inspector of Custodial Services Act 2003*.

Parliamentary Commissioner for Administrative Investigations appointed under the *Parliamentary Commissioner Act 1971*.

Parliamentary Inspector of the Corruption and Crime Commission appointed under the *Corruption, Crime and Misconduct Act 2003*.

Public Sector Commissioner appointed under the *Public Sector Management Act 1994*.

Senior executive officer within the meaning of the *Public Sector Management Act 1994*.

Solicitor-General appointed under the *Solicitor-General Act 1969*.

A prescribed office within the meaning of the *Salaries and Allowances Act 1975*.

[Division 2 inserted by No. 32 of 1994 s. 9(a); amended by No. 57 of 1997 s. 70; No. 43 of 1999 s. 20; No. 55 of 2000 s. 10; No. 20 of 2002 s. 109; No. 67 of 2003 Sch. 2 cl. 6(1); No. 75 of 2003 s. 56(1); No. 48

of 2006 s. 65; No. 77 of 2006 Sch. 1 cl. 30; No. 33 of 2010 s. 55;
No. 39 of 2010 s. 73; No. 35 of 2014 s. 39.]

[Division 3 deleted by No. 32 of 1994 s. 9(a).]

Part 2 — Offices or places vacated on election

[Heading inserted by No. 19 of 2010 s. 14(5).]

Division 1 — Tribunal and board offices

[Heading inserted by No. 19 of 2010 s. 14(5).]

Member, or deputy of a member, of the Coal Industry Tribunal of Western
Australia constituted under the *Coal Industry Tribunal of Western
Australia Act 1992*.

Member, or deputy of a member, of the Railways Classification Board,
established under Division 3 of Part IIA of the *Industrial Relations
Act 1979*.

[Division 1 inserted by No. 78 of 1984 s. 14; amended by No. 15 of
1991 s. 22(b); No. 37 of 1992 s. 39(b); No. 1 of 1995 s. 23(b); No. 34
of 1999 s. 61; No. 59 of 2004 s. 141.]

Division 2 — Other offices or places

[Heading inserted by No. 19 of 2010 s. 14(6).]

The office or place of —

Any person employed in a department or SES organization within the
meaning of the *Public Sector Management Act 1994*, that is to say —

(a) any person employed in —

(i) that department who is a public service officer; or

(ii) that SES organization who is a member of the Senior
Executive Service,

within the meaning of that Act;

(b) any person appointed or employed by the Governor under any
Act administered in that department or SES organization;

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 2 Offices or places vacated on election

(c) any person —

(i) who is appointed or employed under any enactment;
or

(ii) whose remuneration as such is defrayed in whole or
in part out of moneys provided by Parliament,

being a person appointed or employed by —

(iii) the Minister of the Crown administering that
department or SES organization; or

(iv) the chief executive officer or chief employee, within
the meaning of the *Public Sector Management
Act 1994*, of that department or SES organization; or

(v) a person in that department or SES organization in
whom the power to make minor appointments is
vested in accordance with the proviso to section 74 of
the *Constitution Act 1889*.

Any person appointed or employed by the holder of an office
mentioned in Division 2 of Part 1.

Any person appointed or employed by a body mentioned in Part 3 or
by an instrumentality of which such a body is the governing authority
or by The Western Australian Museum constituted under the *Museum
Act 1969*, The Library Board of Western Australia constituted under
the *Library Board of Western Australia Act 1951*.

Any person who is an employee within the meaning of the *Public
Sector Management Act 1994* not referred to in a preceding item of
this Division.

Any person who is a member of the Police Force appointed under the
Police Act 1892.

Any person who is a member of the teaching staff appointed under the
School Education Act 1999.

Any person appointed pursuant to section 74 of the *Constitution
Act 1889* other than a member of the Executive Council who holds
any of the principal executive offices of the Government liable to be
vacated on political grounds that are referred to in section 43.

Any person who is a member of a department of the staff of Parliament referred to in, or an electorate officer within the meaning of, the *Parliamentary and Electorate Staff (Employment) Act 1992*.

[Division 2 inserted by No. 32 of 1994 s. 9(b); amended by No. 36 of 1999 s. 247; No. 3 of 2015 s. 14.]

Part 3 — Bodies membership of which is vacated on election

[Heading inserted by No. 19 of 2010 s. 14(7).]

The Aboriginal Advisory Council established under the *Aboriginal Affairs Planning Authority Act 1972*.

The Aboriginal and Torres Strait Islander Health Practice Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Aboriginal Housing Board responsible to the Minister for Housing.

The Aboriginal Lands Trust established by the *Aboriginal Affairs Planning Authority Act 1972*.

The Aboriginal Cultural Material Committee established by the *Aboriginal Heritage Act 1972*.

The adoption applications committee appointed under the *Adoption Act 1994*.

The advisory committee constituted under the *Charitable Collections Act 1946*.

The Advisory Committee constituted under the *Control of Vehicles (Off-road Areas) Act 1978*.

The Advisory Committee constituted under section 216 of the *Health Act 1911*⁴.

Any advisory body established or continued under the *Children and Community Services Act 2004*.

Any advisory body established under the *Child Care Services Act 2007*.

Any advisory committee established or continued in existence under Part 4 of the *Fish Resources Management Act 1994*.

Any advisory panel appointed under Part 6 of the *Land Administration Act 1997*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Agricultural Produce Commission or any producers' committee established under the *Agricultural Produce Commission Act 1988*.

The Air Pollution Control Council established by the *Clean Air Act 1964*⁵.

The Anaesthetic Mortality Committee constituted under the *Health Act 1911*.

The Animal Resources Authority established by the *Animal Resources Authority Act 1981*.

The Appeal Costs Board constituted under the *Suitors' Fund Act 1964*.

The Architects Board of Western Australia established under the *Architects Act 2004*.

Any board constituted under section 3 of the *Parks and Reserves Act 1895* other than the Parliamentary Reserve Board.

The Board of directors of Gold Corporation constituted under the *Gold Corporation Act 1987*.

The Board of Directors of the Honey Pool of Western Australia constituted under the *Honey Pool Act 1978*⁶.

The board of the Minerals Research Institute of Western Australia established under the *Minerals Research Institute of Western Australia Act 2013*.

The board of directors of a corporation established by the Governor under the *Water Corporations Act 1995* section 4(4).

The board of directors of the Bunbury Water Corporation established by the *Water Corporations Act 1995* section 4(2).

The board of directors of the Busselton Water Corporation established by the *Water Corporations Act 1995* section 4(3).

The board of directors of the Water Corporation established by the *Water Corporations Act 1995* section 4(1).

The board of directors of the Western Australian Land Authority constituted under the *Western Australian Land Authority Act 1992*.

The Board of Examiners established under the *Mines Safety and Inspection Act 1994*.

The board of management of the Botanic Gardens and Parks Authority established by the *Botanic Gardens and Parks Authority Act 1998*.

The board of management of the Gascoyne Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Goldfields-Esperance Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Great Southern Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Kimberley Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Mid West Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Peel Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Pilbara Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the South West Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Wheatbelt Development Commission established by the *Regional Development Commissions Act 1993*.

The board of management of the Western Australian Land Information Authority established by the *Land Information Authority Act 2006*.

The board of management of the Western Australian Sports Centre Trust constituted under the *Western Australian Sports Centre Trust Act 1986*.

Any board of reference constituted under the *Construction Safety Act 1972*⁷ or the *Machinery Safety Act 1974*⁷.

The Board of the Art Gallery of Western Australia constituted under the *Art Gallery Act 1959*.

The board of the Western Australian Greyhound Racing Association constituted under the *Western Australian Greyhound Racing Association Act 1981*.

The Board of Valuers established by the *Planning and Development Act 2005*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Building Services Board established under the *Building Services (Registration) Act 2011*.

The Building and Construction Industry Training Board established under the *Building and Construction Industry Training Fund and Levy Collection Act 1990*.

The Caravan Parks and Camping Grounds Advisory Committee established under the *Caravan Parks and Camping Grounds Act 1995*.

The Casino Control Committee⁸ established under the *Casino Control Act 1984*.

The Charcoal Iron and Steel Industry Board of Management constituted under the *Wood Distillation and Charcoal Iron and Steel Industry Act 1943*⁹.

The Chemistry Centre (WA) established by the *Chemistry Centre (WA) Act 2007*.

The Chicken Meat Industry Committee continued by the *Chicken Meat Industry Act 1977*¹⁰.

The Chinese Medicine Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Chiropractic Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Coal Miners' Welfare Board of Western Australia constituted under the *Coal Miners' Welfare Act 1947*.

The Conservation and Environment Council¹¹ established under the *Environmental Protection Act 1971*¹².

The Conservation Commission of Western Australia established under the *Conservation and Land Management Act 1984*.

The Construction Safety Advisory Board constituted under the *Construction Safety Act 1972*⁷.

Any consultative committee appointed under the *Legal Aid Commission Act 1976*.

The Consumer Advisory Committee established under the *Fair Trading Act 2010*.

Council of Official Visitors established by Part 9 of the *Mental Health Act 1996*.

The Country High School Hostels Authority established by the *Country High School Hostels Authority Act 1960*.

The Country Housing Authority established under the *Country Housing Act 1998*.

The Dental Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Disability Services Commission being the body continued by section 6 of the *Disability Services Act 1993*.

The Distressed Persons Relief Trust constituted by the *Distressed Persons Relief Trust Act 1973*¹³.

Any district advisory committee established under section 23 of the *Soil and Land Conservation Act 1945*¹⁴.

The Economic Regulation Authority established by the *Economic Regulation Authority Act 2003*.

The Electricity Generation and Retail Corporation established by section 4(1)(a) of the *Electricity Corporations Act 2005*.

The Electricity Networks Corporation established by section 4(1)(b) of the *Electricity Corporations Act 2005*.

Any environmental appeal board¹⁵ constituted under the *Environmental Protection Act 1971*¹².

The Environmental Protection Authority¹⁶ established under the *Environmental Protection Act 1971*¹².

The Fluoridation of Public Water Supplies Advisory Committee established under the *Fluoridation of Public Water Supplies Act 1966*.

The Forest Products Commission established under the *Forest Products Act 2000*.

The Fremantle Port Authority established under the *Port Authorities Act 1999*.

The Gender Reassignment Board of Western Australia established by the *Gender Reassignment Act 2000*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The governing body of the School Curriculum and Standards Authority established by the *School Curriculum and Standards Authority Act 1997*.

The Government Employees Superannuation Board under the *State Superannuation Act 2000*.

The Hairdressers Registration Board of Western Australia constituted under the *Hairdressers Registration Act 1946*¹⁷.

The Health Education Council of Western Australia constituted under the *Health Education Council Act 1958*¹³.

The Heritage Council of Western Australia established under the *Heritage of Western Australia Act 1990*.

Agency established under section 7B of the *Hospitals and Health Services Act 1927*.

Any hospital board constituted under the *Hospitals and Health Services Act 1927*.

The Insurance Brokers Licensing Board constituted under the *General Insurance Brokers and Agents Act 1981*¹⁸.

Insurance Commission of Western Australia continued under the *Insurance Commission of Western Australia Act 1986*.

The Keep Australia Beautiful Council (W.A.) established by the *Litter Act 1979*.

The Kimberley Ports Authority established under the *Port Authorities Act 1999*.

The Land Surveyors Licensing Board constituted under the *Licensed Surveyors Act 1909*.

The Land Valuers Licensing Board¹⁹ constituted under the *Land Valuers Licensing Act 1978*.

The Landcare Trust established under Part VA of the *Soil and Land Conservation Act 1945*.

The Law Reform Commission of Western Australia established under the *Law Reform Commission Act 1972*.

The Law Reporting Advisory Board constituted by the *Law Reporting Act 1981*.

The Legal Aid Commission of Western Australia established under the *Legal Aid Commission Act 1976*.

The Legal Contribution Trust established by the *Legal Profession Act 2008*.

The Legislative Review and Advisory Committee established under the *Legislative Review and Advisory Committee Act 1976*²⁰.

The Liquor Commission established under the *Liquor Control Act 1988*.

The Local Government Advisory Board established under the *Local Government Act 1995*.

The Lotteries Commission continued under the *Lotteries Commission Act 1990*.

The Machinery Safety Advisory board constituted under the *Machinery Safety Act 1974*⁷.

The Maternal Mortality Committee constituted under the *Health Act 1911*.

The Medical Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Medical Radiation Practice Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The board of management of the Metropolitan Redevelopment Authority established under the *Metropolitan Redevelopment Authority Act 2011*.

Any land redevelopment committee established under the *Metropolitan Redevelopment Authority Act 2011*.

The Mid West Ports Authority established under the *Port Authorities Act 1999*.

The Mines Occupational Safety and Health Advisory Board established under the *Mines Safety and Inspection Act 1994*²¹.

The Mines Survey Board established under the *Mines Safety and Inspection Act 1994*.

The Mining and Petroleum Advisory Committee established under the *Mining and Petroleum Research Act 1981*²².

The Mining Rehabilitation Advisory Panel established by the *Mining Rehabilitation Fund Act 2012*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Ministerial Advisory Council on Disability established under the *Disability Services Act 1993*.

The Motor Vehicle Industry Advisory Committee established under the *Fair Trading Act 2010*.

The Motor Vehicle Industry Board²³ established under the *Motor Vehicle Dealers Act 1973*.

The Multicultural and Ethnic Affairs Commission established by the *Multicultural and Ethnic Affairs Commission Act 1983*²⁴.

The National Parks Authority of Western Australia established by the *National Parks Authority Act 1976*²⁵.

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ENVIRONMENTAL FACTORS POTENTIALLY AFFECTED: The environmental factors checked below would be potentially affected by this project, involving at least one impact that is a "Potentially Significant Impact" as indicated by the checklist on the following pages.

Noise Abatement Advisory Committee established by the *Noise Abatement Act 1972*⁷.

The Noise and Vibration Control Council established by the *Noise Abatement Act 1972*⁷.

The Nomenclature Advisory Committee responsible to the Minister for Lands and Surveys²⁶.

The Nursing and Midwifery Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Occupational Therapy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Optometry Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Osteopathy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pastoral Appraisal Board constituted under the *Land Act 1933*²⁷.

The Perinatal and Infant Mortality Committee constituted under the *Health Act 1911*.

The Perth Market Authority preserved and continued under the *Perth Market Act 1926*.

The Perth Theatre Trust established by the *Perth Theatre Trust Act 1979*.

The Pharmacy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pharmacy Registration Board of Western Australia established under the *Pharmacy Act 2010*.

The Physiotherapy Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Pilbara Ports Authority established under the *Port Authorities Act 1999*.

The Plumbers Licensing Board established by the *Plumbers Licensing Act 1995*.

The Podiatry Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

The Poisons Advisory Committee constituted by the *Poisons Act 1964*.

Potato Marketing Corporation of Western Australia constituted by the *Marketing of Potatoes Act 1946*.

Any prices advisory committee established under the *Petroleum Products Pricing Act 1983*.

The Primary Schools Appointments Board constituted under regulation 91 of the *Education Regulations 1960*²⁸.

The Prisoners Review Board established under the *Sentence Administration Act 2003*.

The Professional Standards Council established under the *Professional Standards Act 1997*.

Any professional, trade or other advisory committee established pursuant to regulation 253 of the *Education Regulations 1960*²⁸.

The Property Industry Advisory Committee established under the *Fair Trading Act 2010*.

The Psychology Board of Australia established under the *Health Practitioner Regulation National Law (Western Australia)*.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Public Transport Authority of Western Australia established by the *Public Transport Authority Act 2003*.

The Queen Elizabeth II Medical Centre Trust constituted under the *Queen Elizabeth II Medical Centre Act 1966*.

The board of Racing and Wagering Western Australia established by the *Racing and Wagering Western Australia Act 2003*.

The Radiological Council established under the *Radiation Safety Act 1975*.

The Real Estate and Business Agents Supervisory Board²⁹ constituted under the *Real Estate and Business Agents Act 1978*.

The Regional Power Corporation established by section 4(1)(d) of the *Electricity Corporations Act 2005*.

The Road Safety Council established under the *Road Safety Council Act 2002*.

The Road Freight Transport Industry Council established under the *Owner-Drivers (Contracts and Disputes) Act 2007*.

The Rural Business Development Corporation preserved and continued by the *Rural Business Development Corporation Act 2000*.

Any selection committee constituted under regulation 2.7 of the *Mines Regulation Act Regulations 1976*³⁰.

The Settlement Agents Supervisory Board³¹ constituted under the *Settlement Agents Act 1981*.

The Small Business Development Corporation established under the *Small Business Development Corporation Act 1983*.

The Soil and Land Conservation Council constituted under the *Soil and Land Conservation Act 1945*.

The Solar Energy Advisory Committee established under the *Solar Energy Research Act 1977*³².

The Southern Ports Authority established under the *Port Authorities Act 1999*.

The State Advisory Committee on Publications constituted under the *Indecent Publications and Articles Act 1902*³³.

The State Supply Commission established under the *State Supply Commission Act 1991*.

The State Training Board of Western Australia established under the *Vocational Education and Training Act 1996*.

The Supervised Release Review Board established under the *Young Offenders Act 1994*.

The Taxi Industry Board established by the *Taxi Act 1994*.

The Teacher Registration Board of Western Australia established under the *Teacher Registration Act 2012*.

Any technical college, school or centre advisory committee established under regulation 256 of the *Education Regulations 1960*²⁸.

The Training Accreditation Council established under the *Vocational Education and Training Act 1996*.

Any Transport Strategy Committee established under the *State Transport Co-ordination Act 1981*³⁴.

The Trustees of the Karrakatta Cemetery appointed under the *Cemeteries Act 1897*³⁵.

The Trustees of the Technical Education Division Self Supporting Activities appointed under regulation 240 of the *Education Regulations 1960*²⁸.

The Urban Lands Council³⁶ responsible to the Minister for Housing.

The Veterinary Preparations and Animal Feeding Stuffs Advisory Committee established under the *Veterinary Preparations and Animal Feeding Stuffs Act 1976*³⁷.

The Veterinary Surgeons' Board constituted under the *Veterinary Surgeons Act 1960*.

The Waste Authority established under the *Waste Avoidance and Resource Recovery Act 2007*.

The Water Resources Council established by the *Water Agencies (Powers) Act 1984*.

The Western Australia Marine Manning Committee established by the *Western Australian Marine Act 1982*.

The Western Australian Arts Council established by the *Western Australian Arts Council Act 1973*³⁸.

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

The Western Australian Coastal Shipping Commission established by the *Western Australian Coastal Shipping Commission Act 1965*.

The Western Australian Health Promotion Foundation established under the *Tobacco Products Control Act 2006*.

The Western Australian Herbarium Committee³⁹ responsible to the Minister for Agriculture.

The Western Australian Heritage Committee³⁹ responsible to the Minister for the Environment.

The Western Australian Local Government Grants Commission established under the *Local Government Grants Act 1978*.

The Western Australian Meat Industry Authority established under the *Western Australian Meat Industry Authority Act 1976*.

The Western Australian Planning Commission established under the *Planning and Development Act 2005*.

The Western Australian Post-Secondary Education Commission established by the *Western Australian Post-Secondary Education Commission Act 1970*⁴⁰.

The Western Australian Regional Development Trust established under the *Royalties for Regions Act 2009*.

The Western Australian Reproductive Technology Council established under the *Human Reproductive Technology Act 1991*.

The Western Australian Technology and Industry Advisory Council established under the *Industry and Technology Development Act 1998*.

The Western Australian Tourism Commission established under the *Western Australian Tourism Commission Act 1983*.

The Western Australian Tripartite Labour Consultative Council established under the *Western Australian Tripartite Labour Consultative Council Act 1983*⁴¹.

The Western Australian Wheat Board constituted under the *Wheat Marketing Act 1979*⁴².

The Western Australian Wheat Marketing Board constituted by the *Wheat Marketing Act 1947*⁴³.

The Western Australian Wildlife Authority constituted under the *Wildlife Conservation Act 1950*⁴⁴.

Any wheat products prices committee constituted under the *Wheat Products (Prices Fixation) Act 1938*²⁴.

The Youth, Sport and Recreation Advisory Committee established under the *Youth, Sport and Recreation Act 1978*⁴⁵.

The Zoological Parks Authority established under the *Zoological Parks Authority Act 2001*.

[Part 3 inserted by No. 78 of 1984 s. 14; amended by No. 101 of 1986 s. 23; No. 32 of 1987 s. 36; No. 83 of 1987 s. 38; No. 88 of 1987 s. 20; No. 89 of 1987 s. 43; No. 99 of 1987 s. 79; No. 114 of 1987 s. 12; No. 75 of 1988 s. 27(2); No. 6 of 1990 s. 12; No. 10 of 1990 s. 38; No. 16 of 1990 s. 33; No. 27 of 1990 s. 4; No. 39 of 1990 s. 36; No. 40 of 1990 s. 46; No. 73 of 1990 s. 45; No. 76 of 1990 s. 33; No. 91 of 1990 s. 17; No. 104 of 1990 s. 35(1); No. 5 of 1991 s. 35; No. 22 of 1991 s. 63; No. 60 of 1991 s. 21; No. 62 of 1991 s. 59; No. 5 of 1992 s. 12(1); No. 27 of 1992 s. 84; No. 29 of 1992 s. 55; No. 40 of 1992 s. 3(b); No. 59 of 1992 s. 25; No. 77 of 1992 s. 41; No. 2 of 1993 s. 15; No. 10 of 1993 s. 56; No. 26 of 1993 s. 20; No. 32 of 1993 s. 11(2); No. 36 of 1993 s. 58; No. 40 of 1993 s. 20; No. 53 of 1993 s. 44; No. 6 of 1994 s. 13; No. 9 of 1994 s. 145; No. 35 of 1994 s. 67; No. 36 of 1994 s. 35; No. 45 of 1994 s. 21; No. 53 of 1994 s. 264; No. 62 of 1994 s. 109; No. 73 of 1994 s. 4; No. 83 of 1994 s. 50; No. 84 of 1994 s. 46(5); No. 89 of 1994 s. 109; No. 96 of 1994 s. 92; No. 103 of 1994 s. 18; No. 104 of 1994 s. 236; No. 11 of 1995 s. 58(1); No. 14 of 1995 s. 44; No. 26 of 1995 s. 23; No. 34 of 1995 s. 33; No. 73 of 1995 s. 188; No. 78 of 1995 s. 16; No. 14 of 1996 s. 4; No. 15 of 1996 s. 8(1); No. 40 of 1996 s. 152(3); No. 42 of 1996 s. 71; No. 45 of 1996 s. 38; No. 76 of 1996 s. 21; No. 17 of 1997 s. 35; No. 22 of 1997 s. 58; No. 31 of 1997 s. 16; No. 57 of 1997 s. 37; No. 58 of 1997 s. 97; No. 4 of 1998 s. 48; No. 13 of 1998 s. 34(1); No. 23 of 1998 s. 20; No. 30 of 1998 s. 8; No. 42 of 1998 s. 38; No. 45 of 1998 s. 8(1); No. 56 of 1998 s. 56; No. 5 of 1999 s. 21; No. 8 of 1999 s. 16; No. 26 of 1999 s. 67; No. 38 of 1999 s. 70; No. 39 of 1999 s. 11(2); No. 44 of 1999 s. 28(1); No. 58 of 1999 s. 100; No. 2 of 2000 s. 29(2); No. 20 of 2000 s. 33(1); No. 24 of 2000 s. 3(6) and 14(13); No. 35 of 2000 s. 52(1); No. 43 of 2000 s. 35; No. 72 of 2000 s. 44; No. 76 of 2000 s. 61; No. 12 of 2001 s. 47; No. 24 of 2001 s. 47; No. 25 of 2001

Constitution Acts Amendment Act 1899

Schedule V Offices and bodies to which Part I Division 3 applies

Part 3 Bodies membership of which is vacated on election

s. 69; No. 5 of 2002 s. 15; No. 24 of 2002 s. 22; No. 30 of 2002 s. 47; No. 8 of 2003 s. 87; No. 30 of 2003 s. 43; No. 31 of 2003 s. 202; No. 35 of 2003 s. 20, 50(2), 68(1), 116(1) and 221(1); No. 48 of 2003 s. 62⁴⁶; No. 50 of 2003 s. 29(3); No. 67 of 2003 Sch. 2 cl. 6(2); No. 73 of 2003 s. 24; No. 8 of 2004 s. 88; No. 20 of 2004 s. 7; No. 34 of 2004 Sch. 2 cl. 5; No. 40 of 2004 s. 16; No. 42 of 2004 s. 157; No. 53 of 2004 s. 79; No. 54 of 2004 s. 174; No. 55 of 2004 s. 1324; No. 57 of 2004 s. 35; No. 75 of 2004 s. 79; No. 18 of 2005 s. 139; No. 28 of 2005 Sch. 3 cl. 2; No. 29 of 2005 Sch. 3 cl. 2; No. 30 of 2005 Sch. 3 cl. 2; No. 31 of 2005 Sch. 3 cl. 2; No. 32 of 2005 Sch. 3 cl. 2; No. 33 of 2005 Sch. 3 cl. 2; No. 38 of 2005 s. 15; No. 42 of 2005 Sch. 3 cl. 4; No. 5 of 2006 s. 126; No. 21 of 2006 Sch. 3 cl. 2; No. 28 of 2006 s. 396; No. 41 of 2006 s. 89; No. 43 of 2006 s. 4; No. 50 of 2006 Sch. 3 cl. 3; No. 60 of 2006 s. 185; No. 73 of 2006 s. 116(3); No. 7 of 2007 s. 58; No. 10 of 2007 s. 43; No. 19 of 2007 s. 67; No. 24 of 2007 s. 22, 35 and 51; No. 36 of 2007 Sch. 4 cl. 1; No. 38 of 2007 s. 192; No. 21 of 2008 s. 650; No. 22 of 2008 Sch. 3 cl. 91; No. 28 of 2008 s. 12; No. 41 of 2009 s. 32; No. 30 of 2010 s. 4; No. 32 of 2010 s. 74; No. 35 of 2010 s. 44; No. 58 of 2010 s. 191; No. 16 of 2011 s. 127; No. 19 of 2011 s. 155; No. 24 of 2011 s. 160; No. 37 of 2011 s. 55; No. 45 of 2011 s. 136; No. 47 of 2011 s. 4; No. 54 of 2011 s. 3; No. 16 of 2012 s. 164; No. 22 of 2012 s. 111; No. 25 of 2012 s. 208; No. 33 of 2012 Pt. 6; No. 23 of 2013 s. 76; No. 25 of 2013 s. 37; No. 9 of 2014 s. 44; No. 23 of 2014 s. 96.]

Schedule VI — Oaths and affirmations of office

[s. 43(4), 44A(6) & 45]

[Heading inserted by No. 24 of 2005 s. 12.]

Division 1 — Holders of principal executive offices and for Parliamentary Secretaries

[Heading inserted by No. 24 of 2005 s. 12.]

I, [name], [insert an oath or affirmation according to the Oaths, Affidavits and Statutory Declarations Act 2005] that I will faithfully serve the people of Western Australia in the office of [title of office].

[Division 1 inserted by No. 24 of 2005 s. 12.]

Division 2 — Members of the Executive Council

[Heading inserted by No. 24 of 2005 s. 12.]

I, [name], [insert an oath or affirmation according to the Oaths, Affidavits and Statutory Declarations Act 2005] —

that I will faithfully serve the people of Western Australia as a member of the Executive Council;

that as and when required to do so I will freely give my advice as such a member to the Governor, or the person performing the functions of the Governor, for the good management of the public affairs of Western Australia;

and that I will not, directly or indirectly, reveal any matters that come before the Council and that I am required by the Council to keep secret.

[Division 2 inserted by No. 24 of 2005 s. 12.]

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Notes

¹ This is a compilation of the *Constitution Acts Amendment Act 1899* and includes the amendments made by the other written laws referred to in the following table ^{1a, 47, 48, 49, 50}. The table also contains information about any reprint.

Compilation table

Short title	Aesthetic s	Number	Ag	Assent	Commencement	Air Quality
			riculture and year			
			Forest ry Resource s			
<i>Constitution Acts Amendment Act 1899</i>	1899 (63 Vict. No. 19) Biological Resources	18 May 1900	18 May 1900 (see s. 52 and <i>Gazette</i> 18 May 1900 p. 1686). Reserved for Royal Assent 16 Dec 1899 Cultural Resources		Energy	
<i>Constitution Acts Amendment Act 1899 amendment (1900)</i>	1900 (64 Vict. No. 2) Geology / Soils	25 Sep 1900	25 Sep 1900 Greenhouse Gas Emissions		Hazards & Hazardous Materials	

Short title	Aesthetic s	Number	Ag	Assent	Commencement	Air Quality
			riculture and year Forest ry Resource s			
<i>Electoral Act 1904</i> s. 14	20 of 1904 (3 Edw. VII No. 35) Hydrology/ Water Quality	16 Jan 1904 4	22 Apr 1904 (see <i>Interpretation Act 1918</i> s. 8 and <i>Gazette</i> 22 Apr 1904 p. 1047). Reserved for Royal Assent 16 Jan 1904 Land Use /Planning		Mineral Resources	
<i>Electoral Act 1907</i> s. 211	27 of 1907 (7 Edw. VII No. 27) Noise	20 Dec 1907	20 Dec 1907 Population/ Housing		Public Services	
<i>Constitution Act Amendment Act 1911</i>	31 of 1911 (1 Geo. V No. 42) Recreation	16 Feb 1911	16 Feb 1911 Transportation/ Traffic		Tribal Resources	Cultural

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u>			<u>Quality</u>	
		<u>and</u>				
		<u>year</u>				
		<u>Forest</u>				
		<u>ry</u>				
		<u>Resource</u>				
		<u>s</u>				
<u>Legislative</u>	<u>Utilities</u>	<u>Wildfire</u>			<u>48 of</u>	<u>17 D</u>
<u>Assembly</u>	<u>Service</u>				<u>1919</u>	<u>ec 19</u>
<u>Duration</u>	<u>Systems</u>				<u>(10</u>	<u>19</u>
<u>Act 1919</u>					<u>Geo.</u>	
<u>s. 2</u>					<u>V</u>	
					<u>No.</u>	
					<u>36)</u>	
					<u>Man</u>	
					<u>date</u>	
					<u>ry</u>	
					<u>Find</u>	
					<u>ings</u>	
					<u>of</u>	
					<u>Sign</u>	
					<u>ifica</u>	
					<u>nee</u>	
<u>Parliament</u>	<u>7 of 1920 (11 Geo. V</u>	<u>3 No</u>	<u>3 Nov 1920</u>			
<u>(Qualification of</u>	<u>No. 7)</u>	<u>v 19</u>				
<u>Women)</u>		<u>20</u>				
<u>Act 1920</u>						
<u>s. 2(2)</u>						
<u>Constitution Act</u>	<u>34 of 1921 (12 Geo. V</u>	<u>30 D</u>	<u>30 Dec 1921</u>			
<u>Amendment</u>	<u>No. 34)</u>	<u>ec 19</u>				
<u>Act 1921</u>		<u>21</u>				
<u>s. 2</u>						
<u>Constitution Act</u>	<u>25 of 1927 (18 Geo. V</u>	<u>14 D</u>	<u>14 Dec 1927 (see</u>			
<u>Amendment</u>	<u>No. 25)</u>	<u>ec 19</u>	<u>s. 1 and Gazette</u>			
<u>ent</u>		<u>27</u>	<u>14 Dec 1927</u>			
<u>Act 1927</u>			<u>p. 2743)</u>			

<u>Short title</u>	<u>Aesthetic</u> ☐	<u>Number</u>	<u>Ag Assent</u> ☐	<u>Commencement</u>	<u>Air Quality</u>
	s	riculture and year Forest ry Resource s			
<u>Constitution Acts Amendment Act 1933</u>	<u>25 of 1933 (24 Geo. V No. 25) (as amended by No. 46 of 1963 s. 10)</u>	<u>1 Dec c 1933</u>	<u>1 Dec 1933</u>		
<u>Constitution Acts Amendment Act 1934</u>	<u>40 of 1934 (25 Geo. V No. 39)</u>	<u>4 Jan 1935</u>	<u>4 Jan 1935</u>		
<u>Constitution Acts Amendment Act 1942</u>	<u>29 of 1942 (6 and 7 Geo. VI No. 29) (as amended by No. 46 of 1963 s. 10)</u>	<u>23 Dec 1942</u>	<u>23 Dec 1942</u>		
<u>Constitution Acts Amendment Act 1945</u>	<u>52 of 1945 (9 and 10 Geo. VI No. 52)</u>	<u>30 Jan 1946</u>	<u>30 Jan 1946</u>		
<u>Constitution Acts Amendment Act (No. 1) 1947</u>	<u>2 of 1947 (11 Geo. VI No. 2)</u>	<u>26 Dec 1947</u>	<u>14 Dec 1927 (see s. 3)</u>		

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u> <u>and</u> <u>year</u> <u>Forest</u> <u>ry</u> <u>Resource</u> <u>s</u>			<u>Quality</u>	
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent</u> <u>(Re-elect</u> <u>ion of</u> <u>Ministers</u> <u>)</u> <u>Act 1947</u>	<u>4 of 1947 (11 Geo. VI</u> <u>No. 4) (as amended by</u> <u>No. 46 of 1963 s. 10)</u>	<u>2 Oct</u> <u>194</u> <u>7</u>	<u>2 Oct 1947</u>			
<u>Acts</u> <u>Amendm</u> <u>ent</u> <u>(Allowan</u> <u>ces and</u> <u>Salaries</u> <u>Adjustme</u> <u>nt)</u> <u>Act 1947</u> <u>s. 4</u>	<u>52 of 1947 (11 and 12</u> <u>Geo. VI No. 52)</u>	<u>19 D</u> <u>ec 19</u> <u>47</u>	<u>19 Dec 1947</u>			
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent Act</u> <u>(No. 1) 1</u> <u>948</u>	<u>12 of 1948 (12 Geo. VI</u> <u>No. 12) (as amended</u> <u>by No. 46 of 1963</u> <u>s. 10)</u>	<u>11 N</u> <u>ov 1</u> <u>948</u>	<u>12 Jun 1947</u> <u>(see s. 4)</u>			
<u>Acts</u> <u>Amendm</u> <u>ent</u> <u>(Increase</u> <u>in</u> <u>number</u> <u>of Judges</u> <u>of the</u> <u>Supreme</u> <u>Court)</u> <u>Act 1949</u> <u>s. 3</u>	<u>17 of 1949 (13 Geo. VI</u> <u>No. 103)</u>	<u>24 S</u> <u>ep 19</u> <u>49</u>	<u>24 Sep 1949 (see</u> <u>s. 1 and Judges'</u> <u>Salaries and</u> <u>Pensions Act 1950</u> <u>s. 4)</u>			

Short title	Aesthetic ☐	NumberAg ☐	Assent ☐	CommencementAir ☐
	s	riculture and yearForest ry Resource s		Quality
<i>Acts Amendm ent (Increase in number of Ministers of the Crow n) Act 1950 s. 2</i>	2 of 1950 (14 Geo. VI No. 2)	24 O ct 19 50	24 Oct 1950	
<i>Judges' Salaries and Pensions Act 1950 s. 4</i>	35 of 1950 (14 and 15 Geo. VI No. 35)	16 D ec 19 50	16 Dec 1950	
<i>Constitut ion Acts Amendm ent Act (No. 2) 1 950</i>	45 of 1950 (14 and 15 Geo. VI No. 45) (as amended by No. 46 of 1963 s. 10)	18 D ec 19 50	18 Dec 1950	
<i>Constitut ion Acts Amendm ent Act (No. 4) 1 950</i>	63 of 1950 (14 and 15 Geo. VI No. 63)	29 D ec 19 50	29 Dec 1950	
<i>Constitut ion Acts Amendm ent Act (No. 2) 1 954</i>	32 of 1954 (3 Eliz. II No. 32)	18 N ov 1 954	18 Nov 1954	

Short title	Aesthetic ☐	NumberAg ☐	Assent	CommencementAir
	s	riculture and yearForest ry Resource s		Quality
<u>Constitut ion Acts Amendm ent Act 1955</u>	<u>34 of 1955 (4 Eliz. II No. 34)</u>	<u>28 N ov 1 955</u>	<u>28 Nov 1955</u>	
<u>Constitut ion Acts Amendm ent Act (No. 3) 1 955</u>	<u>48 of 1955 (4 Eliz. II No. 48)</u>	<u>4 Ma y 19 56</u>	<u>4 May 1956 (see Interpretation Act 1918 s. 8 and Gazette 4 May 1956 p. 1147). Reserved for Royal Assent 9 Dec 1955</u>	
<u>Constitut ion Acts Amendm ent Act 1958</u>	<u>2 of 1958 (7 Eliz. II No. 2)</u>	<u>19 S ep 19 58</u>	<u>19 Sep 1958</u>	
<u>Constitut ion Acts Amendm ent Act (No. 3) 1 959</u>	<u>71 of 1959 (8 Eliz. II No. 71)</u>	<u>8 Fe b 19 60</u>	<u>25 Mar 1960 (see Interpretation Act 1918 s. 8 and Gazette 25 Mar 1960 p. 883). Reserved for Royal Assent 10 Dec 1959</u>	
<u>Constitut ion Acts Amendm ent Act (No. 2) 1 962</u>	<u>48 of 1962 (11 Eliz. II No. 48)</u>	<u>20 N ov 1 962</u>	<u>20 Nov 1962</u>	

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>
	s	riculture and year Forest ry Resource s			Air Quality
<u>Constitution Acts Amendment and Revision Act 1963</u>	<u>46 of 1963 (12 Eliz. II No. 46)</u>	<u>3 Dec</u>	<u>3 Dec 1963</u>		
<u>Constitution Acts Amendment Act (No. 2) 1963</u>	<u>72 of 1963 (12 Eliz. II No. 72)</u>	<u>17 Dec 1963</u>	<u>26 Mar 1964 (see s. 2 and Gazette 6 Mar 1964 p. 993)</u>		
<u>Reprint of the Constitution Acts Amendment Act 1899 approved 30 Nov 1964</u> (not in Volume) (includes amendments listed above)					
<u>Constitution Acts Amendment Act 1965</u>	<u>2 of 1965</u>	<u>13 Aug 1965</u>	<u>13 Aug 1965</u>		
<u>Constitution Acts Amendment Act (No. 2) 1965</u>	<u>49 of 1965</u>	<u>8 Nov 1965 (see s. 2 and Gazette 12 Nov 1965 p. 3913)</u>			
<u>Decimal Currency Act 1965</u>	<u>113 of 1965</u>	<u>21 Dec 1965</u>	<u>Act other than s. 4-9: 21 Dec 1965 (see s. 2(1)); s. 4-9: 14 Feb 1966 (see s. 2(2))</u>		

<u>Short title</u>	<u>Aesthetic</u> ☐	<u>Number</u>	<u>Ag</u> ☐	<u>Assent</u> ☐	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u> <u>and</u> <u>year</u> <u>Forest</u> <u>ry</u> <u>Resource</u> <u>s</u>			<u>Quality</u>	
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent Act</u> <u>(No. 3) 1</u> <u>965</u>	<u>105 of 1965</u>	<u>10 M</u> <u>ar 19</u> <u>66</u>	<u>29 Apr 1966 (see</u> <u>Interpretation</u> <u>Act 1918 s. 8 and</u> <u>Gazette</u> <u>29 Apr 1966</u> <u>p. 1017). Reserved</u> <u>for Royal Assent</u> <u>20 Dec 1965</u>			
<u>Reprint of the Constitution Acts Amendment Act 1899</u> <u>approved 23 Jan 1967</u> (in Vol. 20 of Reprinted Acts) (includes amendments listed above)						
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent</u> <u>Act 1969</u>	<u>111 of 1969</u>	<u>4 Fe</u> <u>b 19</u> <u>70</u>	<u>20 Mar 1970 (see</u> <u>Interpretation</u> <u>Act 1918 s. 8 and</u> <u>Gazette</u> <u>20 Mar 1970</u> <u>p. 843). Reserved</u> <u>for Royal Assent</u> <u>25 Nov 1969</u>			
<u>Reprint of the Constitution Acts Amendment Act 1899</u> <u>approved 18 May 1971</u> (includes amendments listed above)						
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent</u> <u>Act 1972</u>	<u>9 of 1972</u>	<u>25 M</u> <u>ay 19</u> <u>72</u>	<u>25 May 1972</u>			
<u>Constitut</u> <u>ion Acts</u> <u>Amendm</u> <u>ent</u> <u>Act 1973</u>	<u>52 of 1973</u>	<u>6 No</u> <u>v 19</u> <u>73</u>	<u>1 Jan 1974 (see</u> <u>s. 2 and Gazette</u> <u>28 Dec 1973</u> <u>p. 4725)</u>			

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
		riculture and year	Forest			
		ry Resource				
		s				
Constitution Acts Amendment Act 1974	30 of 1974	4 Dec 1974	28 Feb 1975 (see Interpretation Act 1918 s. 8 and Gazette 28 Feb 1975 p. 719). Reserved for Royal Assent 1 Nov 1974			
Constitution Acts Amendment Act 1975	15 of 1975	9 May 1975	9 May 1975			
Constitution Acts Amendment Act (No. 2) 1975	71 of 1975	7 Nov 1975	7 Nov 1975			
Constitution Acts Amendment Act (No. 4) 1975	86 of 1975	20 Nov 1975	20 Nov 1975			
Constitution Acts Amendment Act (No. 3) 1975	111 of 1975	1 Dec 1975	1 Dec 1975			
Constitution Acts Amendment Act 1977	28 of 1977	31 Oct 1977	31 Oct 1977			

Short title	Aesthetic s	NumberAg	Assent	Commencement	Air Quality
		riculture and yearForest ry Resource s			
Acts Amendment (Constitution) Act 1978 Pt. II	59 of 1978	15 N ov 1978	22 Dec 1978 (see Interpretation Act 1918 s. 8 and Gazette 22 Dec 1978 p. 4769-70). Reserved for Royal Assent 20 Sep 1978		
Constitution Amendment Act (No. 2) 1980	4 of 1980	9 Sep 1980	9 Sep 1980		
Constitution Amendment Act 1980	5 of 1980	9 Sep 1980	9 Sep 1980		
Acts Amendment (Electoral Province s and Districts) Act 1981 Pt. I	13 of 1981	22 May 1981	22 May 1981		
Constitution Amendment Act 1983	8 of 1983	26 Jan 1984 (see s. 2 and Gazette 20 Jan 1984 p. 119)	26 Jan 1984 (see s. 2 and Gazette 20 Jan 1984 p. 119)		

Short title	Aesthetic ☐	Number	Ag Assent ☐	Commencement	Air Quality
	s	riculture and year	Forest ry Resource s		
Reprint of the Constitution Acts Amendment Act 1899 approved 26 Jun 1984 (includes amendments listed above)					
<u>Acts Amendment and Repeal (Disqualification for Parliament) Act 1984 Pt. V</u>	<u>78 of 1984</u>	<u>14 Nov 1984</u>	<u>1 Jul 1985 (see s. 2 and Gazette 17 May 1985 p. 1671)</u>		
<u>Constitution Amendment Act 1984</u>	<u>75 of 1984</u>	<u>20 Mar 1985</u>	<u>14 Jun 1985 (see Interpretation Act 1984 s. 20(3) and Gazette 14 Jun 1985 p. 2133). Reserved for Royal Assent 4 Feb 1985</u>		
<u>Constitution Amendment Act 1986</u>	<u>10 of 1986</u>	<u>22 Jul 1986</u>	<u>22 Jul 1986 (see s. 2)</u>		
<u>Liquor Amendment Act (No. 2) 1986 Pt. IV</u>	<u>97 of 1986</u>	<u>11 Dec 1986</u>	<u>11 Feb 1987 (see s. 2(3) and Gazette 6 Feb 1987 p. 287)</u>		

Short title	Aesthetic s	Number	Ag Assent	Commencement
		griculture and yearForest ry Resource s		Air Quality
<u>Western Australia n Sports Centre Trust Act 1986 s. 23</u>	<u>101 of 1986</u>	<u>12 D ec 19 86</u>	<u>24 Dec 1986 (see s. 2 and Gazette 24 Dec 1986 p. 4963)</u>	
<u>Workers' Compensation and Assistance Amendm ent Act 1987 s. 11</u>	<u>21 of 1987</u>	<u>25 Ju n 19 87</u>	<u>23 Jul 1987</u>	
<u>Technolo gy Develop ment Amendm ent Act 1987 s. 36</u>	<u>32 of 1987</u>	<u>29 Ju n 19 87</u>	<u>30 Jun 1987 (see s. 2 and Gazette 30 Jun 1987 p. 2545)</u>	
<u>Acts Amendm ent (Electora l Reform) Act 1987 Pt. III</u>	<u>40 of 1987</u>	<u>12 Ju l 198 7</u>	<u>30 Oct 1987 (see s. 2 and Gazette 30 Oct 1987 p. 3977)</u>	

Short title	Aesthetic s	Number Agriculture and year Forest ry Resource s	Ag Assent	Commencement Air Quality
<u>The Rural and Industrie s Bank of Western Australia Act 1987 s. 38</u>	<u>83 of 1987</u>	<u>1 Dec c 198 7</u>	<u>1 Apr 1988 (see s. 2)</u>	
<u>Solar Energy Research Amendm ent Act 1987 s. 20</u>	<u>88 of 1987</u>	<u>9 Dec c 198 7</u>	<u>9 Dec 1987 (see s. 3(1))</u>	
<u>Minerals and Energy Research Act 1987 s. 43</u>	<u>89 of 1987</u>	<u>9 Dec c 198 7</u>	<u>1 Feb 1988 (see s. 2 and Gazette 15 Jan 1988 p. 67)</u>	
<u>Gold Banking Corporat ion Act 1987 s. 79</u>	<u>99 of 1987</u>	<u>18 Dec 19 87</u>	<u>30 Jun 1988 (see s. 2 and Gazette 30 Jun 1988 p. 2133)</u>	
<u>Acts Amendm ent (Public Service) Act 1987 s. 32</u>	<u>113 of 1987</u>	<u>31 Dec 19 87</u>	<u>16 Mar 1988 (see s. 2 and Gazette 16 Mar 1988 p. 813)</u>	

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
<u>Acts Amendment (Retail Trading Hours) Act 1987</u> s. 12	<u>114 of 1987</u>	<u>31 Dec 87</u>	<u>1 Sep 1988 (see s. 2 and Gazette 12 Aug 1988 p. 2695)</u>	
<u>Horticultural Produce Commission Act 1988</u> s. 27(2)	<u>75 of 1988</u>	<u>23 Dec 88</u>	<u>1 Sep 1989 (see s. 2 and Gazette 1 Sep 1989 p. 3017)</u>	
<u>Reprint of the Constitution Acts Amendment Act 1899 as at 16 Mar 1989</u> (includes amendments listed above except those in the <i>Horticultural Produce Commission Act 1988</i>)				
<u>Acts Amendment (Remuneration of Governors) Act 1989</u> Pt. 2	<u>19 of 1989</u>	<u>1 Dec 1989</u>	<u>16 Feb 1990 (see s. 2(2) and Gazette 16 Feb 1990 p. 1110)</u>	
<u>Coal Industry Superannuation Act 1989</u> s. 33(3)	<u>28 of 1989</u>	<u>12 Dec 89</u>	<u>1 Jul 1990 (see s. 2 and Gazette 22 Jun 1990 p. 3027)</u>	

Short title	Aesthetic s	NumberAg	Assent	Commencement	Air Quality
		riculture and yearForest ry Resource s			
Acts Amendment (Perth Market Authority) Act 1990 Pt. 3	6 of 1990	12 Jul 1990	1 Jan 1991 (see s. 2 and Gazette 21 Dec 1990 p. 6211)		
Acts Amendment (Gold Banking Corporation) Act 1990 Pt. 4	10 of 1990	31 Jul 1990	28 Sep 1990 (see s. 2 and Gazette 28 Sep 1990 p. 4981)		
Lotteries Commission Act 1990 s. 33	16 of 1990	31 Jul 1990	1 Jan 1991 (see s. 2 and Gazette 28 Dec 1990 p. 6369)		
Mining Development Act Repeal Act 1990 s. 4	27 of 1990	27 Sep 1990	27 Sep 1990 (see s. 2)		
Acts Amendment (Parliamentary Secretaries) Act 1990 Pt. 2	38 of 1990	8 Nov 1990	8 Nov 1990 (see s. 2)		

Short title	Aesthetic ☐	Number	Ag Assent ☐	Commencement	Air Quality
		riculture and year	Forest ry Resource s		
<u>Goldfields-Esperance Development Authority Act 1990</u> s. 36	<u>39 of 1990</u>	<u>8 Nov 1990</u>	<u>7 Dec 1990</u> (see <u>s. 2 and Gazette</u> <u>7 Dec 1990</u> p. 5979)		
<u>State Employment and Skills Development Authority Act 1990</u> s. 46	<u>40 of 1990</u>	<u>26 Nov 1990</u>	<u>22 Mar 1991</u> (see <u>s. 2 and Gazette</u> <u>22 Mar 1991</u> p. 1209)		
<u>Soil and Land Conservation Amendment Act 1990</u> s. 17	<u>91 of 1990</u>	<u>17 Dec 1990</u>	<u>Sch. it. 1(a): 3 May 1991</u> (see <u>s. 2 and Gazette</u> <u>3 May 1991</u> p. 1936); <u>Sch. it. 1(b): 28 Oct 1995</u> (see <u>s. 2 and Gazette</u> <u>27 Oct 1995</u> p. 4937)		
<u>R & I Bank Act 1990</u> s. 45(1)	<u>73 of 1990</u>	<u>20 Dec 1990</u>	<u>1 Jan 1991</u> (see <u>s. 2(2) and Gazette</u> <u>28 Dec 1990</u> p. 6369)		

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
<i>Building and Construction Industry Training Fund and Levy Collection Act 1990</i> s. 33	76 of 1990	20 Dec 1990	1 Jul 1991 (see s. 2 and <i>Gazette</i> 28 Jun 1991 p. 3101)			
<i>Tobacco Control Act 1990</i> s. 35	104 of 1990	2 Jan 1991	8 Feb 1991 (see s. 2(1) and <i>Gazette</i> 8 Feb 1991 p. 575)			
<i>State Supply Commission Act 1991</i> s. 35	5 of 1991	6 Jun 1991	20 Sep 1991 (see s. 2 and <i>Gazette</i> 20 Sep 1991 p. 4855)			
<i>Director of Public Prosecutions Act 1991</i> s. 36	12 of 1991	21 Jun 1991	3 Feb 1992 (see s. 2 and <i>Gazette</i> 3 Feb 1992 p. 531)			
<i>Children's Court of Western Australia Amendment Act (No. 2) 1991</i> s. 22	15 of 1991	21 Jun 1991	9 Aug 1991 (see s. 2 and <i>Gazette</i> 9 Aug 1991 p. 4101)			

Short title	Aesthetic s	Number Ag riculture and year Forest ry Resource s	Assent	Commencement Air Quality
<u>Human Reprodu ctive Technolo gy Act 1991 s. 63</u>	<u>22 of 1991</u>	<u>8 Oct 199 1</u>	<u>6 Mar 1992 (see s. 2 and Gazette 6 Mar 1992 p. 1107)</u>	
<u>Acts Amendm ent (Industri al Magistra te's Courts) Act 1991 Pt. 2</u>	<u>44 of 1991</u>	<u>17 D ec 19 91</u>	<u>3 Jan 1992 (see s. 2 and Gazette 3 Jan 1992 p. 41)</u>	
<u>Builders' Registrat ion Amendm ent Act 1991 Pt. 3</u>	<u>60 of 1991</u>	<u>30 D ec 19 91</u>	<u>4 Apr 1992 (see s. 2 and Gazette 3 Apr 1992 p. 1461)</u>	
<u>East Perth Redevelo pment Act 1991 s. 59</u>	<u>62 of 1991</u>	<u>30 D ec 19 91</u>	<u>1 Jul 1992 (see s. 2 and Gazette 1 Jul 1992 p. 2945)</u>	

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
<u>South West Development Authority Amendment Act 1992</u> s. 12	<u>5 of 1992</u>	<u>14 M</u> <u>ay 19</u> <u>92</u>	<u>11 Aug 1992 (see</u> <u>s. 2 and Gazette</u> <u>11 Aug 1992</u> <u>p. 3959)</u>			
<u>Western Australian Financial Institutions Authority Act 1992</u> s. 55	<u>29 of 1992</u>	<u>19 Ju</u> <u>n 19</u> <u>92</u>	<u>1 Jul 1992 (see s. 2</u> <u>and Gazette</u> <u>26 Jun 1992</u> <u>p. 2643)</u>			
<u>Retirement Villages Act 1992</u> s. 85	<u>34 of 1992</u>	<u>19 Ju</u> <u>n 19</u> <u>92</u>	<u>10 Jul 1992 (see</u> <u>s. 2 and Gazette</u> <u>10 Jul 1992</u> <u>p. 3185)</u>			
<u>Nurses Act 1992</u> s. 84	<u>27 of 1992</u>	<u>23 Ju</u> <u>n 19</u> <u>92</u>	<u>29 Oct 1993 (see</u> <u>s. 2 and Gazette</u> <u>29 Oct 1993</u> <u>p. 5881)</u>			
<u>Western Australian Land Authority Act 1992</u> s. 49	<u>35 of 1992</u>	<u>23 Ju</u> <u>n 19</u> <u>92</u>	<u>1 Jul 1992 (see</u> <u>s. 2(2) and Gazette</u> <u>30 Jun 1992</u> <u>p. 2869)</u>			

Short title	Aesthetic s	Number Ag riculture and year Forest ry Resource s	Assent	Commencement Air Quality
<u>Coal Industry Tribunal of Western Australia Act 1992 s. 39</u>	<u>37 of 1992</u>	<u>2 Oct 199 2</u>	<u>31 Dec 1992 (see s. 2 and Gazette 31 Dec 1992 p. 6311)</u>	
<u>Acts Amendm ent (Parliam entary, Electoral e and Gubernat orial Staff) Act 1992 Pt. 2</u>	<u>40 of 1992</u>	<u>2 Oct 199 2</u>	<u>3 Nov 1992 (see s. 2 and Gazette 3 Nov 1992 p. 5389)</u>	
<u>Pilbara Develop ment Commiss ion Act 1992 s. 25</u>	<u>59 of 1992</u>	<u>11 D ec 19 92</u>	<u>1 Jul 1993 (see s. 2 and Gazette 1 Jul 1993 p. 3209)</u>	
<u>Freedom of Informati on Act 1992 Pt. 7</u>	<u>76 of 1992</u>	<u>15 D ec 19 92</u>	<u>1 Nov 1993 (see s. 2 and Gazette 29 Oct 1993 p. 5881)</u>	
<u>Disabilit y Services Act 1992 s. 41</u>	<u>77 of 1992</u>	<u>18 D ec 19 92</u>	<u>8 Apr 1993 (see s. 2(1) and Gazette 8 Apr 1993 p. 2033)</u>	

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
	s	riculture and year	Forest	ry	Resource	s
Reprint of the Constitution Acts Amendment Act 1899 as at 6 Apr 1993						
(includes amendments listed above except those in the <i>Soil and Land Conservation Amendment Act 1990</i> Sch. it. 1(b), the <i>Nurses Act 1992</i> , the <i>Pilbara Development Commission Act 1992</i> , the <i>Freedom of Information Act 1992</i> and the <i>Disability Services Act 1992</i>)						
<i>Local Government (Superannuation) Amendment and Repeal Act 1993</i> s. 15	2 of 1993	18 A	1 Jul 1993 (see	ug 1 s. 2)		
		993				
<i>Rural Adjustment and Finance Corporation Act 1993</i> s. 56	10 of 1993	6 Oct 1993	24 Dec 1993 (see	s. 2 and <i>Gazette</i> 24 Dec 1993 p. 6796)		
		3				
<i>Workplace Agreements Act 1993</i> s. 103	13 of 1993	23 Nov 1993	1 Dec 1993 (see	s. 2 and <i>Gazette</i> 30 Nov 1993 p. 6439)		
		993				
<i>Bee Industry Amendment and Repeal Act 1993</i> s. 20	26 of 1993	15 Dec 1993	4 Feb 1994 (see	s. 2 and <i>Gazette</i> 4 Feb 1994 p. 339)		
		93				

Short title	Aesthetic s	Number Ag riculture and year Forest ry Resource s	Assent	Commencement Air Quality
<u>Meat Industry Legislati on (Amendm ent and Repeal) Act 1993 s. 11(2)</u>	<u>32 of 1993</u>	<u>16 D ec 19 93</u>	<u>21 Sep 1996 (see s. 2(3) and Gazette 20 Sep 1996 p. 4715)</u>	
<u>Disabilit y Services Act 1993 s. 58</u>	<u>36 of 1993</u>	<u>16 D ec 19 93</u>	<u>23 Dec 1993 (see s. 2)</u>	
<u>Plant Diseases Amendm ent Act 1993 s. 20</u>	<u>40 of 1993</u>	<u>20 D ec 19 93</u>	<u>24 Jun 1994 (see s. 2 and Gazette 24 Jun 1994 p. 2819)</u>	
<u>Regional Develop ment Commiss ions Act 1993 s. 44</u>	<u>53 of 1993</u>	<u>22 D ec 19 93</u>	<u>8 Apr 1994 (see s. 2 and Gazette 8 Apr 1994 p. 1462)</u>	
<u>R & I Bank Amendm ent Act 1994 s. 13</u>	<u>6 of 1994</u>	<u>11 A pr 19 94</u>	<u>26 Apr 1994 (see s. 2(2) and Gazette 26 Apr 1994 p. 1743)</u>	
<u>Adoption Act 1994 s. 145</u>	<u>9 of 1994</u>	<u>15 A pr 19 94</u>	<u>1 Jan 1995 (see s. 2 and Gazette 25 Nov 1994 p. 5905)</u>	

Short title	Aesthetic s	Number	Ag Assent	Commencement	Air Quality
		riculture and year	Forest ry Resource s		
<u>Acts Amendment (Public Sector Management) Act 1994</u> s. 9	<u>32 of 1994</u>	<u>29 Jun 1994</u>	<u>1 Oct 1994 (see s. 2 and Gazette 30 Sep 1994 p. 4948)</u>		
<u>Subiaco Redevelopment Act 1994</u> s. 67	<u>35 of 1994</u>	<u>8 Jul 1994</u>	<u>24 Aug 1994 (see s. 2 and Gazette 23 Aug 1994 p. 4364)</u>		
<u>Perth International Centre for Application of Solar Energy Act 1994</u> s. 35	<u>36 of 1994</u>	<u>8 Jul 1994</u>	<u>22 Jul 1994 (see s. 2 and Gazette 22 Jul 1994 p. 3727)</u>		
<u>Acts Amendment (Coal Mining Industry) Act 1994</u> s. 21	<u>45 of 1994</u>	<u>22 Sep 1994</u>	<u>22 Sep 1994 (see s. 2(1))</u>		

Short title	Aesthetic s	NumberAg riculture and yearForest ry Resource s	Assent	CommencementAir Quality
<u>Fish Resource s Manage ment Act 1994 s. 264</u>	<u>53 of 1994</u>	<u>2 No v 19 94</u>	<u>1 Oct 1995 (see s. 2 and Gazette 29 Sep 1995 p. 4649)</u>	
<u>Mines Safety and Inspectio n Act 1994 s. 109</u>	<u>62 of 1994</u>	<u>7 No v 19 94</u>	<u>9 Dec 1995 (see s. 2 and Gazette 8 Dec 1995 p. 5935)</u>	
<u>Statutes (Repeals and Minor Amendm ents) Act 1994 s. 4</u>	<u>73 of 1994</u>	<u>9 De c 199 4</u>	<u>9 Dec 1994 (see s. 2)</u>	
<u>Energy Corporat ions (Transiti onal and Consequ ential Provisio ns) Act 1994 s. 109</u>	<u>89 of 1994</u>	<u>15 D ec 19 94</u>	<u>1 Jan 1995 (see s. 2 and Gazette 23 Dec 1994 p. 7069)</u>	
<u>Taxi Act 1994 s. 50</u>	<u>83 of 1994</u>	<u>20 D ec 19 94</u>	<u>10 Jan 1995 (see s. 2 and Gazette 10 Jan 1995 p. 73)</u>	

Short title	Aesthetic s	Number Agriculture and year Forest ry Resource s	Ag Assent	Commencement Air Quality
<u>Dairy Industry Amendm ent Act 1994 s. 92</u>	<u>96 of 1994</u>	<u>5 Jan 199 5</u>	<u>2 Feb 1995</u>	
<u>Hospitals Amendm ent Act 1994 s. 18</u>	<u>103 of 1994</u>	<u>11 Ja n 19 95</u>	<u>3 Feb 1995 (see s. 2 and Gazette 3 Feb 1995 p. 333)</u>	
<u>Young Offender s Act 1994 s. 236</u>	<u>104 of 1994</u>	<u>11 Ja n 19 95</u>	<u>13 Mar 1995 (see s. 2 and Gazette 10 Mar 1995 p. 895)</u>	
<u>Planning Legislati on Amendm ent Act (No. 2) 1 994 s. 46(5)</u>	<u>84 of 1994</u>	<u>13 Ja n 19 95</u>	<u>1 Mar 1995 (see s. 2 and Gazette 21 Feb 1995 p. 567)</u>	
<u>Industria l Legislati on Amendm ent Act 1995 s. 23</u>	<u>1 of 1995</u>	<u>9 Ma y 19 95</u>	<u>9 May 1995 (see s. 2(1))</u>	

Short title	Aesthetic s	Number Ag riculture and year Forest ry Resource s	Assent	Commencement Air Quality
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Reprint of the Constitution Acts Amendment Act 1899 as at 17 May 1995

(includes amendments listed above except those in the *Soil and Land Conservation Amendment Act 1990* Sch. it. 1(b), the *Meat Industry Legislation (Amendment and Repeal) Act 1993*, the *Fish Resources Management Act 1994* and the *Mines Safety and Inspection Act 1994*)

<u>Marketing of Potatoes Amendment Act 1995</u> s. 58(1)	<u>11 of 1995</u>	<u>30 Jun 1995</u>	<u>4 Sep 1995 (see s. 2 and Gazette 1 Sep 1995 p. 4063)</u>
<u>Bank of Western Australia Act 1995</u> s. 44	<u>14 of 1995</u>	<u>4 Jul 1995</u>	<u>1 Dec 1995 (see s. 2 and Gazette 29 Nov 1995 p. 5529)</u>
<u>Agricultural Practices (Disputes) Act 1995</u> s. 23	<u>26 of 1995</u>	<u>6 Sep 1995</u>	<u>26 Jun 1996 (see s. 2 and Gazette 25 Jun 1996 p. 2901)</u>
<u>Caravan Parks and Camping Grounds Act 1995</u> s. 33	<u>34 of 1995</u>	<u>29 Sep 1995</u>	<u>1 Jul 1997 (see s. 2 and Gazette 20 Jun 1997 p. 2805)</u>

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>		<u>riculture</u>		<u>Quality</u>	
			<u>and</u>			
			<u>year</u>			
			<u>Forest</u>			
			<u>ry</u>			
			<u>Resource</u>			
			<u>s</u>			
<u>Water Agencies Restructure (Transitional and Consequential Provision) Act 1995</u> s. 188	<u>73 of 1995</u>	<u>27 Dec 1995</u>	<u>1 Jan 1996 (see s. 2(2) and Gazette 29 Dec 1995 p. 6291)</u>			
<u>Health Services (Conciliation and Review) Act 1995</u> s. 80(1)	<u>75 of 1995</u> (as amended by No. 57 of 1997 s. 70)	<u>9 Jan 1996</u>	<u>16 Aug 1996 (see s. 2(1) and Gazette 16 Aug 1996 p. 4007)</u>			
<u>Sentencing (Consequential Provision) Act 1995</u> Pt. 13	<u>78 of 1995</u>	<u>16 Jan 1996</u>	<u>4 Nov 1996 (see s. 2 and Gazette 25 Oct 1996 p. 5632)</u>			
<u>Coroners Act 1996</u> s. 61	<u>2 of 1996</u>	<u>24 May 1996</u>	<u>7 Apr 1997 (see s. 2 and Gazette 18 Mar 1997 p. 1529)</u>			

Short title	Aesthetic ☐	NumberAg ☐	Assent ☐	CommencementAir Quality
		riculture and yearForest ry Resource s		
<u>Local Government (Consequential Amendments) Act 1996</u> s. 4	<u>14 of 1996</u>	<u>28 Jun 1996</u>	<u>1 Jul 1996 (see s. 2)</u>	
<u>Fruit Growing Industry (Trust Fund) Repeal Act 1996</u> s. 8(1)	<u>15 of 1996</u>	<u>28 Jun 1996</u>	<u>1 Sep 1996 (see s. 2 and Gazette 23 Aug 1996 p. 4079)</u>	
<u>Censorship Act 1996</u> s. 152(3)	<u>40 of 1996</u>	<u>10 Oct 1996</u>	<u>5 Nov 1996 (see s. 2 and Gazette 5 Nov 1996 p. 5845)</u>	
<u>Vocational Education and Training Act 1996</u> s. 71	<u>42 of 1996</u>	<u>16 Oct 1996</u>	<u>1 Jan 1997 (see s. 2 and Gazette 12 Nov 1996 p. 6301)</u>	
<u>Acts Amendment (ICWA) Act 1996</u> s. 38	<u>45 of 1996</u>	<u>25 Oct 1996</u>	<u>1 Oct 1997 (see s. 2 and Gazette 23 Sep 1997 p. 5357)</u>	

Short title	Aesthetic	Number	Ag	Assent	Commencement	Air Quality
	s	riculture and year	Forest	ry	Resource	s
<u>Mental Health (Consequential Provisions) Act 1996</u> Pt. 3	69 of 1996	13 N	13 Nov 1997 (see	ov 1 s. 2)		
<u>Road Traffic Amendment Act 1996</u> Pt. 3 Div. 1	76 of 1996	14 N	1 Feb 1997 (see	ov 1 s. 2 and Gazette 31 Jan 1997 p. 613)		
Reprint of the Constitution Acts Amendment Act 1899 as at 22 Jan 1997 (includes amendments listed above except those in the <i>Caravan Parks and Camping Grounds Act 1995</i> , the <i>Coroners Act 1996</i> , the <i>Acts Amendment (ICWA) Act 1996</i> , the <i>Mental Health (Consequential Provisions) Act 1996</i> and the <i>Road Traffic Amendment Act 1996</i>)						
<u>Curriculum Council Act 1997</u> s. 35	17 of 1997	8 Jul 1997	1 Aug 1997 (see	s. 2 and Gazette 25 Jul 1997 p. 3907)		
<u>Professional Standards Act 1997</u> s. 58	22 of 1997	18 Sep 1997	18 Apr 1998 (see	s. 2 and Gazette 17 Apr 1998 p. 2045)		

Short title	Aesthetic s	Number	Ag Assent	Commencement	Air Quality
		riculture and year Forest ry Resource s			
<u>Acts Amendm ent (Land Administ ration) Act 1997 Pt. 14</u>	<u>31 of 1997</u>	<u>3 Oct 1997</u>	<u>30 Mar 1998 (see s. 2 and Gazette 27 Mar 1998 p. 1765)</u>		
<u>Statutes (Repeals and Minor Amendm ents) Act 1997 s. 37</u>	<u>57 of 1997</u>	<u>15 Dec 1997</u>	<u>15 Dec 1997 (see s. 2(1))</u>		
<u>Osteopat hs Act 1997 s. 97</u>	<u>58 of 1997</u>	<u>15 Dec 1997</u>	<u>22 Dec 1999 (see s. 2 and Gazette 21 Dec 1999 p. 6393)</u>		
<u>Country Housing Act 1998 s. 48</u>	<u>4 of 1998</u>	<u>14 Apr 1998</u>	<u>1 Jul 1998 (see s. 2 and Gazette 30 Jun 1998 p. 3557)</u>		
<u>Statutes (Repeals and Minor Amendm ents) Act (No. 2) 1998 s. 76</u>	<u>10 of 1998</u>	<u>30 Apr 1998</u>	<u>30 Apr 1998 (see s. 2(1))</u>		

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	s		riculture and year Forest ry Resource s		Quality	
<u>Industry and Technolo gy Develop ment Act 1998 s. 34(1)</u>	<u>13 of 1998</u>	<u>20 M</u>	<u>ay 19</u>	<u>1 Jul 1998 (see s. 2 and Gazette 26 Jun 1998 p. 3369)</u>		
<u>Western Australia n Greyhou nd Racing Associati on Amendm ent Act 1998 s. 20</u>	<u>23 of 1998</u>	<u>30 Ju</u>	<u>n 19</u>	<u>1 Aug 1998 (see s. 2 and Gazette 21 Jul 1998 p. 3825)</u>		
<u>WADC and WA Exim Corporat ion Repeal Act 1998 s. 8</u>	<u>30 of 1998</u>	<u>30 Ju</u>	<u>n 19</u>	<u>30 Jun 1998 (see s. 2)</u>		
		<u>98</u>				

Short title	Aesthetic s	NumberAg	Assent	Commencement
		riculture and yearForest ry Resource s		Air Quality
<i>Fire and Emergency Services Authority of Western Australia (Consequential Provisions) Act 1998</i> s. 38	42 of 1998	4 Nov 1998	1 Jan 1999 (see s. 2 and Gazette 22 Dec 1998 p. 6833)	
<i>Carnarvon Banana Industry (Compensation Trust Fund) Repeal Act 1998</i> s. 8(1)	45 of 1998	19 Nov 1998	19 Nov 1999 (see s. 2 and Gazette 19 Nov 1999 p. 5789)	
<i>Botanic Gardens and Parks Authority Act 1998</i> s. 56	53 of 1998	7 Dec 1998	1 Jul 1999 (see s. 2 and Gazette 30 Jun 1999 p. 2879)	

Short title	Aesthetic s	Number	Ag	Assent	Commencement	Air Quality
			riculture and year			
			Forest ry Resource s			
<u>Gas Pipelines Access (Western Australia) Act 1998</u> <u>Sch. 3</u> <u>Div. 1</u>	<u>65 of 1998</u>	<u>15 Jan 1999</u>	<u>9 Feb 1999</u> (see <u>s. 2</u> and <u>Gazette</u> <u>8 Feb 1999 p. 441</u>)			
<u>Port Authorities (Consequential Provisions) Act 1999</u> <u>s. 21</u> <u>(Sch. 1-8)</u>	<u>5 of 1999</u>	<u>13 Apr 1999</u>	<u>Sch. 1, 3-8:</u> <u>14 Aug 1999</u> <u>(see s. 2 and</u> <u>Gazette</u> <u>13 Aug 1999</u> <u>p. 3823);</u> <u>Sch. 2: 1 Jan 2000</u> <u>(see s. 2(9) and</u> <u>Gazette</u> <u>24 Dec 1999</u> <u>p. 6871)</u>			
<u>Marketing of Meat Amendment Act 1999</u> <u>s. 16</u>	<u>8 of 1999</u>	<u>13 Apr 1999</u>	<u>13 Aug 1999</u> (see <u>s. 2(2)</u> and <u>Gazette</u> <u>13 Aug 1999</u> <u>p. 3823</u>)			
<u>Reprint of the Constitution Acts Amendment Act 1899 as at 15 Apr 1999</u>						
(includes amendments listed above except those in the <u>Osteopaths Act 1997</u> , the <u>Carnarvon Banana Industry (Compensation Trust Fund) Repeal Act 1998</u> , the <u>Botanic Gardens and Parks Authority Act 1998</u> , the <u>Port Authorities (Consequential Provisions) Act 1999</u> and the <u>Marketing of Meat Amendment Act 1999</u>)						

Short title	Aesthetic s	NumberAg	Assent	Commencement	Air Quality
		riculture and yearForest ry Resource s			
<u>Acts Amendment and Repeal (Financial Sector Reform) Act 1999</u> s. 67	<u>26 of 1999</u>	<u>29 Jun 1999</u>	<u>1 Jul 1999 (see s. 2(1) and Gazette 30 Jun 1999 p. 2905)</u>		
<u>Workers' Compensation and Rehabilitation Amendment Act 1999</u> s. 61	<u>34 of 1999</u>	<u>5 Oct 1999</u>	<u>15 Oct 1999 (see s. 2(2) and Gazette 15 Oct 1999 p. 4889)</u>		
<u>School Education Act 1999</u> s. 247	<u>36 of 1999</u>	<u>2 Nov 1999</u>	<u>1 Jan 2001 (see s. 2 and Gazette 29 Dec 2000 p. 7904)</u>		
<u>Water Services Coordination Amendment Act 1999</u> s. 11(2)	<u>39 of 1999</u>	<u>9 Nov 1999</u>	<u>19 Jun 2000 (see s. 2 and Gazette 16 Jun 2000 p. 2939)</u>		
<u>Midland Redevelopment Act 1999</u> s. 70	<u>38 of 1999</u>	<u>11 Nov 1999</u>	<u>1 Jan 2000 (see s. 2 and Gazette 31 Dec 1999 p. 7059)</u>		

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u>			<u>Quality</u>	
		<u>and</u>				
		<u>year</u>				
		<u>Forest</u>				
		<u>ry</u>				
		<u>Resource</u>				
		<u>s</u>				
<u>Disability Services Amendment Act 1999</u> s. 28(1)	44 of 1999	25 Nov 1999	25 Nov 1999	(see s. 2)		
<u>Prisons Amendment Act 1999</u> s. 20	43 of 1999	8 Dec 1999	18 Jun 2000	(see s. 2(3) and (4) and <i>Gazette</i> 16 Jun 2000 p. 2939)		
<u>Gas Corporation (Business Disposal) Act 1999</u> s. 100	58 of 1999	24 Dec 1999	16 Dec 2000	(see s. 2(5) and <i>Gazette</i> 15 Dec 2000 p. 7201)		
<u>Gender Reassignment Act 2000</u> s. 29(2)	2 of 2000	12 Apr 2000	19 Dec 2001	(see s. 2 and <i>Gazette</i> 18 Dec 2001 p. 6489)		
<u>Reprint of the Constitution Acts Amendment Act 1899 as at 19 May 2000</u>						
(includes amendments listed above except those in the <i>School Education Act 1999</i> , the <i>Water Services Coordination Amendment Act 1999</i> , the <i>Prisons Amendment Act 1999</i> , the <i>Gas Corporation (Business Disposal) Act 1999</i> and the <i>Gender Reassignment Act 2000</i>)						

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
<u>Horticultural Produce Commission Amendment Act 2000</u> s. 33(1)	20 of 2000	30 Jun 2000	11 Aug 2000	(see s. 2 and Gazette 11 Aug 2000 p. 4691)		
<u>Statutes (Repeals and Minor Amendments) Act 2000</u> s. 3(6), 9 and 14(13)	24 of 2000	4 Jul 2000	4 Jul 2000	(see s. 2)		
<u>Dairy Industry and Herd Improvement Legislation Repeal Act 2000</u> s. 17	25 of 2000	5 Jul 2000	14 Jul 2000	(see s. 2(2) and Gazette 14 Jul 2000 p. 3841)		
<u>Forest Products Act 2000</u> s. 72	34 of 2000	10 Oct 2000	16 Nov 2000	(see s. 2 and Gazette 15 Nov 2000 p. 6275)		

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
		riculture and year	Forest			
		ry	Resource			
		s				
<u>Conservation and Land Management Amendment Act 2000</u> s. 52(1)	<u>35 of 2000</u>	<u>10 O</u>	<u>16 Nov 2000</u>	<u>(see s. 2 and Gazette 15 Nov 2000 p. 6275)</u>		
<u>Electoral Amendment Act 2000</u> s. 23 and 56	<u>36 of 2000</u>	<u>10 O</u>	<u>21 Oct 2000</u>	<u>(see s. 2(1) and Gazette 20 Oct 2000 p. 5899)</u>		
<u>State Superannuation (Transitional and Consequential Provisions) Act 2000</u> s. 35	<u>43 of 2000</u>	<u>2 No</u>	<u>17 Feb 2001</u>	<u>(see s. 2(1) and Gazette 16 Feb 2001 p. 903)</u>		
<u>Railways (Access) Amendment Act 2000</u> s. 10	<u>55 of 2000</u>	<u>28 N</u>	<u>28 Nov 2000</u>	<u>(see s. 2)</u>		

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air Quality</u>
	s					
<u>Rural Business Development Corporation Act 2000</u> s. 44	<u>72 of 2000</u>	<u>6 Dec 2000</u>	<u>20 Dec 2000</u>	<u>(see s. 2 and Gazette 19 Dec 2000 p. 7273)</u>		
<u>Building Legislation Amendment Act 2000</u> s. 61	<u>76 of 2000</u>	<u>7 Dec 2000</u>	<u>1 Aug 2001</u>	<u>(see s. 2 and Gazette 31 Jul 2001 p. 3907)</u>		
<u>Reprint of the Constitution Acts Amendment Act 1899 as at 8 Jun 2001</u> (includes amendments listed above except those in the <i>Gender Reassignment Act 2000</i> and the <i>Building Legislation Amendment Act 2000</i>)						
<u>Building Societies Amendment Act 2001</u> s. 47	<u>12 of 2001</u>	<u>13 Jul 2001</u>	<u>13 Jul 2001</u>	<u>(see s. 2)</u>		
<u>Zoological Parks Authority Act 2001</u> s. 47	<u>24 of 2001</u>	<u>26 Nov 2001</u>	<u>22 May 2002</u>	<u>(see s. 2 and Gazette 10 May 2002 p. 2445)</u>		
<u>Armada Redevelopment Act 2001</u> s. 69	<u>25 of 2001</u>	<u>26 Nov 2001</u>	<u>23 Mar 2002</u>	<u>(see s. 2 and Gazette 22 Mar 2002 p. 1651)</u>		

Short title	Aesthetic s	Number	Ag Assent	Commencement	Air Quality
		riculture and year Forest ry Resource s			
Road Safety Council Act 2002 s. 15	5 of 2002	4 Jun 200 2	1 Jul 2002 (see s. 2(1) and <i>Gazette</i> 1 Jul 2002 p. 3205)		
Labour Relations Reform Act 2002 s. 109	20 of 2002	8 Jul 2002	15 Sep 2002 (see s. 2 and <i>Gazette</i> 6 Sep 2002 p. 4487)		
Planning Appeals Amendme nt Act 2002 s. 22	24 of 2002	24 S ep 2002	18 Apr 2003 (see s. 2 and <i>Gazette</i> 17 Apr 2003 p. 1243)		
Grain Marketing Act 2002 s. 47	30 of 2002	25 O ct 20 02	31 Oct 2002 (see s. 2 and <i>Gazette</i> 30 Oct 2002 p. 5351)		
Adoption Amendme nt Act (No. 2) 2003 s. 87	8 of 2003	1 Ap r 200 3	1 Jun 2003 (see s. 2(1) and <i>Gazette</i> 20 May 2003 p. 1783)		
Censorshi p Amendme nt Act 2003 s. 43	30 of 2003	26 M ay 20 03	1 Jul 2003 (see s. 2 and <i>Gazette</i> 27 Jun 2003 p. 2383)		
Public Transport Authority Act 2003 s. 202	31 of 2003	26 M ay 20 03	1 Jul 2003 (see s. 2(1) and <i>Gazette</i> 27 Jun 2003 p. 2384)		

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
<u>s</u>	<u>s</u>	<u>riculture</u>	<u>and</u>	<u>year</u>	<u>Forest</u>	<u>Quality</u>
<u>ry</u>		<u>Resource</u>	<u>s</u>			
<u>Racing and Gambling Legislation Amendment and Repeal Act 2003</u>	<u>35 of 2003</u>	<u>26 Jun 2003</u>	<u>s. 20, 68(1), and 221(1);</u>	<u>1 Aug 2003 (see s. 2 and Gazette 29 Jul 2003 p. 3259); s. 50 and 116(1);</u>		
<u>Corruption and Crime Commission Act 2003</u>	<u>48 of 2003</u>	<u>3 Jul 2003</u>	<u>1 Jan 2004 (see s. 2 and Gazette 30 Dec 2003 p. 5723)</u>			
<u>Sentencing Legislation Amendment and Repeal Act 2003</u>	<u>50 of 2003</u>	<u>9 Jul 2003</u>	<u>31 Aug 2003 (see s. 2 and Gazette 29 Aug 2003 p. 3833)</u>			

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
	s	riculture and year	Forest	ry	Resource	s
Reprint 12: The Constitution Acts Amendment Act 1899 as at 3 Oct 2003						
(includes amendments listed above except those in the <i>Racing and Gambling Legislation Amendment and Repeal Act 2003</i> s. 50 and 116(1) and the <i>Corruption and Crime Commission Act 2003</i>)						
<i>Economic Regulatory Authority Act 2003</i> Sch. 2 cl. 6	67 of 2003	5 Dec 2003	1 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5723)			
<i>Motor Vehicle Dealers Amendment Act 2003</i> s. 24 ⁵¹	73 of 2003	15 Dec 2003	22 Dec 2004 (see s. 2 and <i>Gazette</i> 21 Dec 2004 p. 6133)			
<i>Inspector of Custodial Services Act 2003</i> s. 56(1)	75 of 2003	15 Dec 2003	15 Dec 2003 (see s. 2)			
<i>Criminal Injuries Compensation Act 2003</i> s. 73	77 of 2003	15 Dec 2003	1 Jan 2004 (see s. 2 and <i>Gazette</i> 30 Dec 2003 p. 5722)			

Short title	Aesthetic s	Number Agriculture and year Forest ry Resource s	Ag Assent	Commencement Air Quality
Western Australia n College of Teaching Act 2004 s. 88	8 of 2004	10 Ju n 20 04	15 Sep 2004 (see s. 2 and <i>Gazette</i> 3 Sep 2004 p. 3849)	
Marketin g of Eggs Amendm ent Act 2004 s. 7	20 of 2004	26 A ug 2 004	2 Jul 2005 (see s. 2(2) and <i>Gazette</i> 28 Jun 2005 p. 2895)	
Children and Commun ity Services Act 2004 Sch. 2 cl. 5	34 of 2004	20 O ct 20 04	1 Mar 2006 (see s. 2 and <i>Gazette</i> 14 Feb 2006 p. 695)	
Fig. Potato and Poultry Industri es (Compe nsation Legislat ion) Repeal Act 200 4 s. 16	40 of 2004	3 No v 20 04	1 Feb 2005 (see. s. 2 and <i>Gazette</i> 7 Jan 2005 p. 53)	

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u>			<u>Quality</u>	
		<u>and</u>				
		<u>year</u>				
		<u>Forest</u>				
		<u>ry</u>				
		<u>Resource</u>				
		<u>s</u>				
<u>Workers' Compensation Reform Act 2004</u> s. 157	<u>42 of 2004</u>	<u>9 No</u>	<u>4 Jan 2005</u>	<u>(see s. 2 and Gazette 31 Dec 2004 p. 7131)</u>		
<u>Acts Amendment (Court of Appeal) Act 2004</u> s. 37	<u>45 of 2004</u>	<u>9 No</u>	<u>1 Feb 2005</u>	<u>(see s. 2 and Gazette 14 Jan 2005 p. 163)</u>		
<u>Finance Brokers Control Amendment Act 2004</u> s. 79	<u>53 of 2004</u>	<u>18 N</u>	<u>31 Oct 2005</u>	<u>(see s. 2 and Gazette 28 Oct 2005 p. 4839)</u>		
<u>Disability Services Amendment Act 2004</u> s. 35	<u>57 of 2004</u>	<u>18 N</u>	<u>15 Dec 2004</u>	<u>(see s. 2 and Gazette 14 Dec 2004 p. 5999)</u>		
<u>State Administrative Tribunal Act 2004</u> s. 174	<u>54 of 2004</u>	<u>23 N</u>	<u>1 Jan 2005</u>	<u>(see s. 2 and Gazette 31 Dec 2004 p. 7129)</u>		

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
<u>Courts Legislation Amendment and Repeal Act 2004</u> s. 141	<u>59 of 2004</u>	<u>23 Nov 2004</u>	<u>1 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7128)</u>	
<u>State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004</u> s. 1324 ⁵²	<u>55 of 2004</u>	<u>24 Nov 2004</u>	<u>1 Jan 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7130)</u>	
<u>Criminal Law Amendment (Simple Offences) Act 2004</u> Pt. 5 ⁵³	<u>70 of 2004</u>	<u>8 Dec 2004</u>	<u>31 May 2005 (see s. 2 and Gazette 14 Jan 2005 p. 163)</u>	
<u>Architects Act 2004</u> s. 79	<u>75 of 2004</u>	<u>8 Dec 2004</u>	<u>16 Nov 2005 (see s. 2 and Gazette 15 Nov 2005 p. 5597)</u>	

Short title	Aesthetic s	Number	Ag	Assent	Commencement	Air Quality
		riculture and year	Forest ry	Resource s		
Reprint 13: The Constitution Acts Amendment Act 1899 as at 18 Mar 2005 (includes amendments listed above except those in the <i>Marketing of Eggs Amendment Act 2004</i> , the <i>Children and Community Services Act 2004</i> , the <i>Finance Brokers Control Amendment Act 2004</i> , the <i>Courts Legislation Amendment and Repeal Act 2004</i> , the <i>Criminal Law Amendment (Simple Offences) Act 2004</i> and the <i>Architects Act 2004</i>)						
<i>Electoral Amendment and Repeal Act 2005</i> s. 7	1 of 2005	20 M	20 May 2005 (see	ay 20 s. 2)		
<i>Constitution and Electoral Amendment Act 2005</i> s. 3	2 of 2005	23 M	23 May 2005 (see	ay 20 s. 2)		
<i>Electricity Corporations Act 2005</i> s. 139	18 of 2005	13 O	1 Apr 2006 (see	ct 20 s. 2(2) and <i>Gazette</i> 31 Mar 2006 p. 1153)		

Short title	Aesthetic ☐	NumberAg ☐	Assent ☐	CommencementAir Quality
		riculture and yearForest ry Resource s		
<u>Oaths, Affidavits and Statutory Declarations (Consequential Provisions) Act 2005 Pt. 4</u>	<u>24 of 2005</u>	<u>2 Dec 2005</u>	<u>1 Jan 2006 (see s. 2 and Gazette 23 Dec 2005 p. 6244)</u>	
<u>Psychologists Act 2005 Sch. 3 cl. 2</u>	<u>28 of 2005</u>	<u>12 Dec 2005</u>	<u>4 May 2007 (see s. 2 and Gazette 4 May 2007 p. 1963)</u>	
<u>Optometrists Act 2005 Sch. 3 cl. 2</u>	<u>29 of 2005</u>	<u>12 Dec 2005</u>	<u>20 Apr 2007 (see s. 2 and Gazette 30 Mar 2007 p. 1451)</u>	
<u>Podiatrists Act 2005 Sch. 3 cl. 2</u>	<u>30 of 2005</u>	<u>12 Dec 2005</u>	<u>30 May 2007 (see s. 2 and Gazette 29 May 2007 p. 2486)</u>	
<u>Chiropractors Act 2005 Sch. 3 cl. 2</u>	<u>31 of 2005</u>	<u>12 Dec 2005</u>	<u>1 Aug 2007 (see s. 2 and Gazette 31 Jul 2007 p. 3789)</u>	
<u>Physiotherapists Act 2005 Sch. 3 cl. 2</u>	<u>32 of 2005</u>	<u>12 Dec 2005</u>	<u>23 Feb 2007 (see s. 2 and Gazette 20 Feb 2007 p. 505)</u>	

Short title	Aesthetic s	NumberAg	Assent	CommencementAir Quality
		riculture and yearForest ry Resource s		
<u>Osteopaths Act 2005</u> <u>Sch. 3</u> <u>cl. 2</u>	<u>33 of 2005</u>	<u>12 D</u> <u>ec 20</u> <u>05</u>	<u>30 May 2007 (see s. 2 and Gazette 29 May 2007 p. 2486)</u>	
<u>Planning and Development (Consequential and Transitional Provisions) Act 2005</u> <u>s. 15</u>	<u>38 of 2005</u>	<u>12 D</u> <u>ec 20</u> <u>05</u>	<u>9 Apr 2006 (see s. 2 and Gazette 21 Mar 2006 p. 1078)</u>	
<u>Occupational Therapists Act 2005</u> <u>Sch. 3</u> <u>cl. 4</u>	<u>42 of 2005</u>	<u>19 D</u> <u>ec 20</u> <u>05</u>	<u>1 Aug 2007 (see s. 2 and Gazette 31 Jul 2007 p. 3789)</u>	
<u>Tobacco Products Control Act 2006</u> <u>s. 126</u>	<u>5 of 2006</u>	<u>12 A</u> <u>pr 20</u> <u>06</u>	<u>31 Jul 2006 (see s. 2 and Gazette 25 Jul 2006 p. 2701)</u>	
Reprint 14: The Constitution Acts Amendment Act 1899 as at 21 Apr 2006 (includes amendments listed above except those in the <u>Psychologists Act 2005</u> , the <u>Optometrists Act 2005</u> , the <u>Podiatrists Act 2005</u> , the <u>Chiropractors Act 2005</u> , the <u>Physiotherapists Act 2005</u> , the <u>Osteopaths Act 2005</u> , the <u>Occupational Therapists Act 2005</u> and the <u>Tobacco Products Control Act 2006</u>)				

Short title	Aesthetic s	Number Ag riculture and year Forest ry Resource s	Assent	Commencement Air Quality
<u>Medical Radiatio n Technolo gists Act 2006 Sch. 3 cl. 2</u>	<u>21 of 2006</u>	<u>9 Jun 200 6</u>	<u>1 Jul 2007 (see s. 2 and Gazette 26 Jun 2007 p. 3013)</u>	
<u>Machine ry of Governm ent (Miscella neous Amendm ents) Act 2006 Pt. 15 Div. 1</u>	<u>28 of 2006</u>	<u>26 Ju n 20 06</u>	<u>1 Jul 2006 (see s. 2 and Gazette 27 Jun 2006 p. 2347)</u>	
<u>Parole and Sentenci ng Legislati on Amendm ent Act 2006 s. 89</u>	<u>41 of 2006</u>	<u>22 S ep 20 06</u>	<u>28 Jan 2007 (see s. 2 and Gazette 29 Dec 2006 p. 5867)</u>	

<u>Short title</u>	<u>Aesthetic</u>	<u>Number</u>	<u>Ag</u>	<u>Assent</u>	<u>Commencement</u>	<u>Air</u>
	<u>s</u>	<u>riculture</u>			<u>Quality</u>	
		<u>and</u>				
		<u>year</u>				
		<u>Forest</u>				
		<u>ry</u>				
		<u>Resource</u>				
		<u>s</u>				
<u>Perth</u>	<u>43 of 2006</u>		<u>3 Oct</u>	<u>31 Oct 2006</u>		
<u>Internati</u>			<u>200</u>			
<u>onal</u>			<u>6</u>			
<u>Centre</u>						
<u>for</u>						
<u>Applicati</u>						
<u>on of</u>						
<u>Solar</u>						
<u>Energy</u>						
<u>Repeal</u>						
<u>Act 2006</u>						
<u>s. 4</u>						
<u>Commiss</u>	<u>48 of 2006</u>		<u>4 Oct</u>	<u>10 Dec 2007 (see</u>		
<u>ioner for</u>			<u>200</u>	<u>s. 2 and Gazette</u>		
<u>Children</u>			<u>6</u>	<u>23 Nov 2007</u>		
<u>and</u>				<u>p. 5861)</u>		
<u>Young</u>						
<u>People</u>						
<u>Act 2006</u>						
<u>s. 65</u>						
<u>Nurses</u>	<u>50 of 2006</u>		<u>6 Oct</u>	<u>19 Sep 2007 (see</u>		
<u>and</u>			<u>200</u>	<u>s. 2 and Gazette</u>		
<u>Midwives</u>			<u>6</u>	<u>18 Sep 2007</u>		
<u>Act 2006</u>				<u>p. 4711)</u>		
<u>Sch. 3</u>						
<u>cl. 3</u>						
<u>Parliame</u>	<u>56 of 2006</u>		<u>16 N</u>	<u>17 Nov 2006 (see</u>		
<u>ntary</u>			<u>ov 2</u>	<u>s. 2)</u>		
<u>Legislati</u>			<u>006</u>			
<u>on</u>						
<u>Amendm</u>						
<u>ent</u>						
<u>Act 2006</u>						
<u>Pt. 2</u>						

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
<u>Land Information Authority Act 2006</u> s. 185	<u>60 of 2006</u>	<u>16 Nov 2006</u>	<u>1 Jan 2007 (see s. 2(1) and Gazette 8 Dec 2006 p. 5369)</u>	
<u>Electoral Legislation Amendment Act 2006</u> Pt. 2	<u>64 of 2006</u>	<u>8 Dec 2006</u>	<u>5 Mar 2007 (see s. 2(2) and Gazette 2 Mar 2007 p. 689)</u>	
<u>Liquor and Gaming Legislation Amendment Act 2006</u> s. 116	<u>73 of 2006</u>	<u>13 Dec 2006</u>	<u>7 May 2007 (see s. 2(2) and Gazette 1 May 2007 p. 1893)</u>	
<u>Financial Legislation Amendment and Repeal Act 2006</u> Sch. 1 cl. 30	<u>77 of 2006</u>	<u>21 Dec 2006</u>	<u>1 Feb 2007 (see s. 2(1) and Gazette 19 Jan 2007 p. 137)</u>	

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
<u>Owner-Drivers (Contracts and Disputes) Act 2007</u> s. 58	<u>7 of 2007</u>	<u>6 Jun 2007</u>	<u>1 Aug 2008 (see s. 2 and Gazette 18 Jul 2008 p. 3329)</u>	
<u>Chemistry Centre (WA) Act 2007</u> s. 43	<u>10 of 2007</u>	<u>29 Jun 2007</u>	<u>1 Aug 2007 (see s. 2(1) and Gazette 27 Jul 2007 p. 3735)</u>	
<u>Child Care Services Act 2007</u> Pt. 7 Div. 2	<u>19 of 2007</u>	<u>3 Jul 2007</u>	<u>10 Aug 2007 (see s. 2(b) and Gazette 9 Aug 2007 p. 4071)</u>	
Reprint 15: The Constitution Acts Amendment Act 1899 as at 2 Aug 2007 (includes amendments listed above except those in the <i>Commissioner for Children and Young People Act 2006</i> , the <i>Nurses and Midwives Act 2006</i> , the <i>Owner-Drivers (Contracts and Disputes) Act 2007</i> and the <i>Child Care Services Act 2007</i>)				

Short title	Aesthetic ☐	Number	Ag Assent ☐	Commencement	Air Quality
<u>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</u> s. 22, 35 and 51	<u>24 of 2007</u>	<u>12 O</u>	<u>20</u>	<u>s. 51: 21 Feb 2009 (see s. 2(1) and Gazette 20 Feb 2009 p. 353); s. 35: 18 Dec 2010 (see s. 2(1) and Gazette 17 Dec 2010 p. 6349); s. 22: 1 May 2013 (see s. 2(2) and Gazette 2 Feb 2013 p. 823)</u>	
<u>Waste Avoidance and Resource Recovery Act 2007</u> Sch. 4 cl. 1	<u>36 of 2007</u>	<u>21 D</u>	<u>ec 20</u>	<u>07</u>	<u>1 Jul 2008 (see s. 2(b) and Gazette 20 Jun 2008 p. 2705)</u>
<u>Water Resources Legislation Amendment Act 2007</u> s. 192	<u>38 of 2007</u>	<u>21 D</u>	<u>ec 20</u>	<u>07</u>	<u>1 Feb 2008 (see s. 2(2) and Gazette 31 Jan 2008 p. 251)</u>
<u>Legal Profession Act 2008</u> s. 650	<u>21 of 2008</u>	<u>27 M</u>	<u>ay 20</u>	<u>08</u>	<u>1 Mar 2009 (see s. 2(b) and Gazette 27 Feb 2009 p. 511)</u>
<u>Medical Practitioners Act 2008</u> Sch. 3 cl. 9	<u>22 of 2008</u>	<u>27 M</u>	<u>ay 20</u>	<u>08</u>	<u>1 Dec 2008 (see s. 2 and Gazette 25 Nov 2008 p. 4989)</u>

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
Eastern Goldfields Transport Board Repeal Act 2008 s. 12	28 of 2008	1 Jul 2008	29 Jul 2008	
Reprint 16: The Constitution Acts Amendment Act 1899 as at 16 Jan 2009 (includes amendments listed above except those in the <i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007</i> and the <i>Legal Profession Act 2008</i>)				
Statutes (Repeals and Miscellaneous Amendments) Act 2009 s. 37	8 of 2009	21 May 2009	22 May 2009 (see s. 2(b))	
National Gas Access (WA) Act 2009 s. 68	16 of 2009	1 Sep 2009	1 Jan 2010 (see s. 2(b) and Gazette 31 Dec 2009 p. 5327)	
Acts Amendment (Bankruptcy) Act 2009 s. 20	18 of 2009	16 Sep 2009	17 Sep 2009 (see s. 2(b))	

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
<u>Royalties for Regions Act 2009 Pt. 5</u>	<u>41 of 2009</u>	<u>3 Dec 2009</u>	<u>17 Jul 2010 (see s. 2(b) and Gazette p. 3357)</u>			
<u>Standardisation of Formatting Act 2010 s. 14, 43(2), 44(2) and 51</u>	<u>19 of 2010</u>	<u>28 Jun 2010</u>	<u>11 Sep 2010 (see s. 2(b) and Gazette p. 4341)</u>			
<u>Grain Marketing Repeal Act 2010 s. 4</u>	<u>30 of 2010</u>	<u>25 Aug 2010</u>	<u>27 Oct 2010 (see s. 2(b) and Gazette p. 5289)</u>			
<u>Pharmacy Act 2010 Pt. 8 Div. 1</u>	<u>32 of 2010</u>	<u>26 Aug 2010</u>	<u>18 Oct 2010 (see s. 2(b) and Gazette p. 5076)</u>			
<u>Health and Disability Services Legislation Amendment Act 2010 s. 55</u>	<u>33 of 2010</u>	<u>30 Aug 2010</u>	<u>30 Nov 2010 (see s. 2(b) and Gazette p. 4757)</u>			

Short title	Aesthetic ☐	Number	Ag Assent ☐	Commencement	Air Quality
		riculture and year	Forest ry Resource s		
<u>Health Practitioner Regulation National Law (WA) Act 2010 Pt. 5 Div. 10</u>	<u>35 of 2010</u>	<u>30 Aug 2010</u>	<u>s. 43, 44(2)-(6), (8) and (10)-(15): 18 Oct 2010 (see s. 2(b) and Gazette 1 Oct 2010 p. 5075-6); s. 44(1), (7) and (9): 1 Jul 2012 (see s. 2(b) and Gazette 19 Jun 2012 p. 2631)</u>		
<u>Public Sector Reform Act 2010 s. 73</u>	<u>39 of 2010</u>	<u>1 Oct 2010</u>	<u>1 Dec 2010 (see s. 2(b) and Gazette 5 Nov 2010 p. 5563)</u>		
<u>Acts Amendment (Fair Trading) Act 2010 s. 191</u>	<u>58 of 2010</u>	<u>8 Dec 2010</u>	<u>s. 191(1) and (2): 1 Jan 2011 (see s. 2(c) and Gazette 24 Dec 2010 p. 6805); s. 191(3): 1 Jul 2011 (see s. 2(c) and Gazette 7 Jun 2011 p. 2057)</u>		

Reprint 17: The Constitution Acts Amendment Act 1899 as at 11 Feb 2011 (includes amendments listed above except those in the *Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007* s. 22, the *Health Practitioner Regulation National Law (WA) Act 2010* s. 44(1), (7) and (9) and the *Acts Amendment (Fair Trading) Act 2010* s. 191(3))

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year Forest ry Resource s		Air Quality
<u>Building Services (Complain t Resolution and Administra tion) Act 2011 s. 127</u>	<u>16 of 2011</u>	<u>25 M</u>	<u>29 Aug 2011 (see s. 2(b) and Gazette 26 Aug 2011 p. 3475)</u>	
<u>Building Services (Registrati on) Act 2011 s. 155</u>	<u>19 of 2011</u>	<u>22 Jun 2011</u>	<u>s. 155 (except to the extent that it deletes the item relating to The Municipal Building Surveyors Examination Committee): 29 Aug 2011 (see s. 2(b) and Gazette 26 Aug 2011 p. 3475-6); s. 155(2) (the item relating to The Municipal Building Surveyors Examination Committee): 2 Apr 2012 (see s. 2(b) and Gazette 30 Mar 2012 p. 1549)</u>	

Short title	Aesthetic s	Number	Ag Assent	Commencement
		riculture and year	Forest ry Resource s	Air Quality
<i>Building Act 2011</i> s. 160	24 of 2011	11 Jul 2011	2 Apr 2012 (see s. 2(b) and <i>Gazette</i> 13 Mar 2012 p. 1033)	
<i>Curriculum Council Amendment Act 2011</i> Pt. 3 Div. 1	37 of 2011	13 Sep 2011	1 Mar 2012 (see s. 2(b) and <i>Gazette</i> 28 Feb 2012 p. 841)	
<i>Metropolitan Redevelopment Authority Act 2011</i> s. 136	45 of 2011	12 Oct 2011	31 Dec 2011 (see s. 2(b) and <i>Gazette</i> 30 Dec 2011 p. 5573)	
<i>Statutes (Repeals and Minor Amendments) Act 2011</i> s. 4	47 of 2011	25 Oct 2011	26 Oct 2011 (see s. 2(b))	
<i>Agricultural Practices (Disputes) Repeal Act 2011</i> s. 3	54 of 2011	9 Nov 2011	7 Dec 2011 (see note under s. 1)	

<u>Short title</u>	<u>Aesthetic s</u>	<u>Number</u>	<u>Ag Assent</u>	<u>Commencement</u>
		<u>riculture and year</u>	<u>Forest ry Resource s</u>	<u>Air Quality</u>
<u>Electoral and Constitution Amendment Act 2011 Pt. 3</u>	<u>49 of 2011</u>	<u>11 Nov 2011</u>	<u>21 Dec 2011 (see s. 2(b) and Gazette 20 Dec 2011 p. 5373)</u>	
Reprint 18: The Constitution Acts Amendment Act 1899 as at 1 Jun 2012 (includes amendments listed above except those in the <i>Biosecurity and Agriculture Management (Repeal and Consequential Provisions) Act 2007 s. 22</i> and the <i>Health Practitioner Regulation National Law (WA) Act 2010 s. 44(1), (7) and (9)</i>)				
<u>Teacher Registration Act 2012 s. 164</u>	<u>16 of 2012</u>	<u>3 Jul 2012</u>	<u>7 Dec 2012 (see s. 2(b) and Gazette 16 Nov 2012 p. 5637)</u>	
<u>Fire and Emergency Services Legislation Amendment Act 2012 Pt. 7 Div. 1</u>	<u>22 of 2012</u>	<u>29 Aug 2012</u>	<u>1 Nov 2012 (see s. 2(b) and Gazette 31 Oct 2012 p. 5255)</u>	
<u>Water Services Legislation Amendment and Repeal Act 2012 s. 208</u>	<u>25 of 2012</u>	<u>3 Sep 2012</u>	<u>18 Nov 2013 (see s. 2(b) and Gazette 14 Nov 2013 p. 5028)</u>	

Short title	Aesthetic ☐	Number	Ag ☐	Assent ☐	Commencement	Air Quality
<u>Mining Rehabilitation Fund Act 2012</u> P t. 6	<u>33 of 2012</u>	<u>5 No v 20 12</u>			<u>1 Jul 2013 (see s. 2(b) and Gazette 21 Jun 2013 p. 2445)</u>	
Reprint 19: The Constitution Acts Amendment Act 1899 as at 12 Jul 2013 (includes amendments listed above except those in the <i>Water Services Legislation Amendment and Repeal Act 2012</i>)						
<u>Minerals Research Institute of Western Australia Act 2013</u> s. 76	<u>23 of 2013</u>	<u>18 D ec 2013</u>			<u>1 Feb 2014 (see s. 2(b) and Gazette 14 Jan 2014 p. 43)</u>	
<u>Electricity Corporations Amendment Act 2013</u> s. 37	<u>25 of 2013</u>	<u>18 D ec 20 13</u>			<u>1 Jan 2014 (see s. 2(c) and Gazette 27 Dec 2013 p. 6465)</u>	
<u>Ports Legislation Amendment Act 2014</u> s. 44	<u>9 of 2014</u>	<u>20 M ay 2014</u>			<u>s. 44(1) and (3)-(5): 1 Jul 2014 (see s. 2(1)(c) and Gazette 20 Jun 2014 p. 2023); s. 44(2): 1 Oct 2014 (see s. 2(1)(c) and Gazette 19 Sep 2014 p. 3329)</u>	

Short title	Aesthetic s	Number	Ag	Assent	Commencement	Air Quality
			riculture and year			
			Forest ry Resource s			
<i>Consumer Protection Legislation Amendment Act 2014</i> Pt. 13 Div. 2	23 of 2014	9 Oct 2014	19 Nov 2014 (see s. 2(b) and Gazette 18 Nov 2014 p. 4315)			
<i>Corruption and Crime Commission Amendment (Misconduct) Act 2014</i> s. 39	35 of 2014	9 Dec 2014	1 Jul 2015 (see s. 2(b) and Gazette 26 Jun 2015 p. 2235)			
<i>Alcohol and Drug Authority Amendment Act 2015</i> s. 14	3 of 2015	25 Feb 2015	1 Jul 2015 (see s. 2(b) and Gazette 10 Apr 2015 p. 1249)			

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

~~An explanation for all checklist responses is included, and all answers take into account the whole action involved, including off site as well as on-site; cumulative as well as project level; indirect as well as direct; and construction as well as~~

operational impacts. The explanation of each issue identifies (a) the significance criteria or threshold, if any, used to evaluate each question; and (b) the mitigation measure identified, if any, to reduce the impact to less than significance. In the checklist the following definitions are used:

"Potentially Significant Impact" means there is substantial evidence that an effect may be significant.

"Potentially Significant Unless Mitigation Incorporated" means the incorporation of one or more mitigation measures can reduce the effect from potentially significant to a less than significant level.

"Less Than Significant Impact" means that the effect is less than significant and no mitigation is necessary to reduce the impact to a lesser level.

"No Impact" means that the effect does not apply to the Project, or clearly will not impact nor be impacted by the Project.

INITIAL STUDY/ENVIRONMENTAL REVIEW: This section assesses the potential environmental impacts which may result from the project. Questions in the Initial Study Checklist are stated and answers are provided based on analysis undertaken.

<u>Short title: AESTHETICS:</u>			<u>Number and year</u>	<u>Potential Significant Impact</u>
<u>Would the project:</u>				
<u>Native Title (State Provisions) Act 1999</u> s. 7.3 (Sch. 2 Div. 2) ⁵⁴	60 of 1999	10 Jan 2000	Operative on earliest of commencement of Pt. 2 (except s. 2.2), Pt. 3 (except s. 3.1) and Pt. 4a) Have a substantial adverse effect on a scenic vista?	☐
<u>Medicines and Poisons Act 2014</u> s. 183 ⁵⁵ b) Substantially damage scenic resources, including, but not limited to, trees, rock outcroppings, and historic buildings within a state scenic highway?			13 of 2014	☐
<u>al Health Legislation Amendment Act 2014</u> Pt. 4 Div. 4 Subdiv. 4 ⁵⁶		25 of 2014	c) Substantially degrade the existing visual character or quality of the site and its surroundings?	☐

Would the project:	<u>Short title: AESTHETICS.</u>	Number and yearPotential Significant Impact
<u>ervation and Land Management Amendment Act 2015</u> <u>s. 72⁵⁷</u>	<u>28 of 2015d) Create a new source of substantial light or glare which would adversely affect day or nighttime views in the area?</u>	<u>19 Oct 2015</u> ☐
² <u>Repealed by the Electoral Act 1904, which was repealed by the Electoral Act 1907.</u>		
³ <u>Parliamentary Privileges Act 1891 (54 Vict. No. 4).</u>		
⁴ <u>Relevant provisions deleted by the Health Amendment Act 1985.</u>		
⁵ <u>Repealed by the Acts Amendment and Repeal (Environmental Protection) Act 1986.</u>		
⁶ <u>Repealed by the Honey Pool Repeal Act 1991.</u>		
⁷ <u>Repealed by the Acts Amendment (Occupational Health, Safety and Welfare) Act 1987.</u>		
⁸ <u>Under the Gaming and Wagering Commission Act 1987 s. 112 the Casino Control Committee was merged with the Gaming Commission of Western Australia (which is now the Gaming and Wagering Commission of Western Australia). Under s. 112(2) of that Act a reference to the Casino Control Committee in a written law passed or made before 4 Mar 1988 is, unless the context is such that it would be inappropriate so to do, read and construed as a reference to the Commission.</u>		
⁹ <u>Repealed by the Statutes (Repeals and Minor Amendments) Act 1997.</u>		
¹⁰ <u>The Chicken Meat Industry Act 1977 expired 31 Dec 2010 (see Gazette 19 Dec 2003 p. 5140).</u>		
¹¹ <u>Under the Environmental Protection Act 1986 Sch. 3 cl. 20, a reference to the Conservation and Environment Council shall be construed as a reference to the Environmental Protection Authority unless the context is such that it would be incorrect or inappropriate.</u>		
¹² <u>Repealed by the Acts Amendment and Repeal (Environmental Protection) Act 1986.</u>		
¹³ <u>Repealed by the Acts Amendment and Repeal (Statutory Bodies) Act 1985.</u>		
¹⁴ <u>Relevant provisions amended by the Soil and Land Conservation Amendment Act 1988. Committees are now land conservation district committees.</u>		

¹⁵ Under the *Environmental Protection Act 1986* Sch. 3 cl. 20, a reference to an environmental appeal board shall be construed as a reference to an appeals committee.

¹⁶ The Authority continued in existence under the *Environmental Protection Act 1986* s. 7(1).

¹⁷ The *Hairdressers Registration Act 1946* expired on 13 Mar 2012 (see *Gazette* 13 Mar 2012 p. 1041).

¹⁸ Repealed by the *General Insurance Brokers and Agents Act Repeal Act 1986*.

¹⁹ The Land Valuers Licensing Board was abolished on 1 Jul 2011. The *Land Valuers Licensing Act 1978* s. 38 and 39 read as follows:

38. Former Board abolished

Subject to sections 44 and 45, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

39. References to former Board or Registrar

If in a written law or other document or instrument there is a reference to the former Board or the former Registrar, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

²⁰ Repealed by the *Legislative Review and Advisory Committee Repeal Act 1987*.

²¹ Relevant provisions deleted by the *Occupational Safety and Health Legislation Amendment and Repeal Act 2004* s. 115. Committee replaced by Mining Industry Advisory Committee established under the *Occupational Safety and Health Act 1984* s. 14A.

²² Repealed by the *Minerals and Energy Research Act 1987*.

²³ The Motor Vehicle Industry Board was abolished on 1 Jul 2011. The *Motor Vehicle Dealers Act 1973* s. 58 and 59 read as follows:

58. Former Board abolished

Subject to sections 63 and 64, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

59. References to former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the

context so requires, be read as if it had been amended to be a reference to the Commissioner.

²⁴ Repealed by the *Statute Law Revision Act 2006* s. 3(1).

²⁵ Repealed by the *Conservation and Land Management Act 1984*.

²⁶ Now titled the Geographic Names Committee and responsible to the Minister for Lands.

²⁷ The Pastoral Appraisement Board was superseded by the Pastoral Board — see the *Land Act 1933* s. 98. The *Land Act 1933* was subsequently repealed by the *Land Administration Act 1997* s. 281. Section 94 of that Act establishes the Pastoral Lands Board of Western Australia.

²⁸ Repealed by the *School Education Act 1999*.

²⁹ The Real Estate and Business Agents Supervisory Board was abolished on 1 Jul 2011. The *Real Estate and Business Agents Act 1978* s. 149 and 150 read as follows:

149. Former Board abolished

Subject to sections 156 and 157, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

150. References to the former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the context so requires, be read as if it had been amended to be a reference to the Commissioner.

³⁰ The *Mines Regulation Act Regulations 1976* r. 2.7 was repealed by the *Mines Regulation Amendment Regulations 1990* in *Gazette* 15 Mar 1991 p. 1167.

³¹ The Settlement Agents Supervisory Board was abolished on 1 Jul 2011. The *Settlement Agents Act 1981* s. 125 and 126 read as follows:

125. Former Board abolished

Subject to sections 132 and 133, at the beginning of the commencement day, the former Board is abolished and its members go out of office.

126. References to the former Board

If in a written law or other document or instrument there is a reference to the former Board, that reference may, where the

context so requires, be read as if it had been amended to be a reference to the Commissioner.

- ³² Relevant provisions deleted by the *Solar Energy Research Amendment Act 1987* and Act expired 30 Jun 1988.
- ³³ Repealed by the *Censorship Act 1996*, now known as the *Classification (Publications, Films and Computer Games) Enforcement Act 1996*.
- ³⁴ Repealed by the *Acts Amendment and Repeal (Transport Co-ordination) Act 1985*.
- ³⁵ Repealed by the *Cemeteries Act 1986*. The former body corporate continued under the name “Karrakatta Cemetery Board” — see Sch. 2 cl. 4 of that Act.
- ³⁶ This Council was not in existence at the date of this reprint.
- ³⁷ Relevant provisions deleted by the *Agricultural Legislation Amendment and Repeal Act 1998* s. 21.
- ³⁸ Repealed by the *Western Australian Arts Council Repeal Act 1986*.
- ³⁹ This committee was not in existence at the date of this reprint.
- ⁴⁰ Repealed by the *Acts Amendment and Repeal (Post-Secondary Education) Act 1989*.
- ⁴¹ Expired 7 Jun 1991.
- ⁴² Repealed by the *Wheat Marketing Act 1984*, which was repealed by the *Wheat Marketing Act 1989* which was repealed by the *Acts Amendment and Repeal (Competition Policy) Act 2003*.
- ⁴³ Expired 31 Oct 1984.
- ⁴⁴ Relevant provisions deleted by the *Acts Amendment (Conservation and Land Management) Act 1984*.
- ⁴⁵ Repealed by the *Youth, Sport and Recreation Repeal Act 1984*.
- ⁴⁶ The *Corruption and Crime Commission Act 2003* Sch. 3 was renumbered as Sch. 4 by the *Corruption and Crime Commission Amendment and Repeal Act 2003* s. 35(12) and the reference to it in s. 62 was amended by the *Corruption and Crime Commission Amendment and Repeal Act 2003* s. 35(13).
- ⁴⁷ The amendment in the *State Superannuation Amendment Act 2007* s. 79 is not included because it was repealed by the *State Superannuation Amendment Act 2011* s. 4 before the amendment purported to come into operation.
- ⁴⁸ Marginal notes in the *Constitution Acts Amendment Act 1899* referring to the legislation from which provisions were derived have been omitted from this reprint.
- ⁴⁹ The amendments in the *Sentencing Legislation Amendment and Repeal Act 1999* s. 26 are not included because it was deleted before it came into operation by the *Sentencing Legislation Amendment and Repeal Act 2003* s. 31.

⁵⁰ The Conservation and Land Management Amendment Act 1991 s. 57 had not come into operation when it was deleted by the *Statutes (Repeals and Miscellaneous Amendments) Act 2009* s. 35(3).

⁵¹ The Motor Vehicle Dealers Amendment Act 2003 s. 25 and 26 read as follows:

25. Transitional provision: membership of Board

The persons who were members of the Motor Vehicle Dealers Licensing Board immediately before the commencement of section 10 cease to hold office on that commencement.

26. Transitional provisions: change of title of Board

- (1) This section relates to the amendment made by section 9(1) which changes the title of the body established by section 7 of the *Motor Vehicle Dealers Act 1973* from the “Motor Vehicle Dealers Licensing Board” to the “Motor Vehicle Industry Board”.
- (2) The change of title of the body does not affect —
 - (a) its corporate identity;
 - (b) any right, power, or obligation of the body;
 - (c) any proceedings in progress; or
 - (d) anything previously done by, to or in respect of the body.
- (3) On and after the commencement of this Act a reference to the “Motor Vehicle Dealers Licensing Board” in any instrument (including any subsidiary legislation) is to be construed, unless the context otherwise requires, as if the reference had been amended to be a reference to the “Motor Vehicle Industry Board”.

⁵² The State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004 Pt. 5, the State Administrative Tribunal Act 2004 s. 167 and 169, and the State Administrative Tribunal Regulations 2004 r. 28 and 42 deal with certain transitional issues some of which may be relevant for this Act.

⁵³ The Criminal Law Amendment (Simple Offences) Act 2004 s. 81(4) and (5) read as follows:

- (4) A person who is a member of the Legislative Assembly or the Legislative Council immediately before the commencement —
 - (a) does not become disqualified, on the commencement, for membership of the Legislative Assembly or the Legislative Council for the purposes of section 38(b) or 40(b) of the *Constitution Acts Amendment Act 1899*; and
 - (b) is not prevented from completing his or her current term as a member,

by reason only of a conviction that occurred before the commencement.

(5) In subsection (4) —

commencement means the commencement of this section.

⁵⁴ On the date as at which this compilation was prepared, the *Native Title (State Provisions) Act 1999* s. 7.3, which gives effect to Sch. 2, had not come into operation. It reads as follows:

7.3 Consequential amendments

Schedule 2 has effect.

Schedule 2 Div. 2 reads as follows:

Division 2 — Constitution Acts Amendment Act 1899

4. Schedule V amended

Schedule V Part 1 Division 1 to the *Constitution Acts Amendment Act 1899* is amended by inserting after the item relating to the Western Australian Gas Disputes Arbitrator —

“

Member of the Native Title Commission established by the *Native Title (State Provisions) Act 1999*.

”

⁵⁵ On the date as at which this compilation was prepared, the *Medicines and Poisons Act 2014* s. 183 had not come into operation. It reads as follows:

183. Constitution Acts Amendment Act 1899 amended

(1) This section amends the *Constitution Acts Amendment Act 1899*.

(2) In Schedule V Part 3 delete the item relating to The Poisons Advisory Committee.

⁵⁶ On the date as at which this compilation was prepared, the *Mental Health Legislation Amendment Act 2014* Pt. 4 Div. 4 Subdiv. 4 had not come into operation. It reads as follows:

Part 4 — Amendments to other Acts

Division 4 — Other Acts amended

Subdivision 4 — *Constitution Acts Amendment Act 1899* amended

38. Act amended

This Subdivision amends the *Constitution Acts Amendment Act 1899*.

39. Schedule V Part 1 Division 1 amended

In Schedule V Part 1 Division 1 delete the item relating to the Mental Health Review Board and insert:

Member of the Mental Health Tribunal established by the *Mental Health Act 2014*.

40. Schedule V Part 3 amended

In Schedule V Part 3 delete the item relating to the Council of Official Visitors.

⁵⁷ On the date as at which this compilation was prepared, the *Conservation and Land Management Amendment Act 2015* s. 72 had not come into operation. It reads as follows:

72. *Constitution Acts Amendment Act 1899* amended

(1) This section amends the *Constitution Acts Amendment Act 1899*.

(2) In Schedule V Part 3 delete the item relating to the Conservation Commission of Western Australia and insert:

The Conservation and Parks Commission established under the *Conservation and Land Management Act 1984*.

a-c) No Impact: The project site is immediately adjacent to the incorporated City of Ukiah and still well within the associated urbanized areas surrounding it. Three large multi-family residential developments are immediately adjacent to this proposed site, as well as a multi-acre mini storage and other associated residential and urban developed uses. The southern boundary of the parcel formed by Orr's Creek may be considered a visual resource, but an existing buffer area intended to protect it has already been created via dedication of a buffer zone along the creek to the City of Ukiah. This project affects only the remaining portion of the land outside of the dedication, and so no adverse impact to any scenic vista will occur as a result. Previous grading associated with construction and construction storage for Orr Creek Commons Phases 1 and 2 has occurred on the site, and no scenic resources are present, and it is not near a designated state scenic highway.

d) Less Than Significant Impact: The development of a new multi-family housing complex facilitated by this land division may increase the potential for degradation of the existing visual character, but those concerns are less than significant given the existing development of the adjacent properties and site location. New lighting associated with residential development must meet dark sky compliance requirements and be shielded and downcast, in compliance with Policy RM-134 of Chapter 4 of the County's General Plan. However, any addition of new lights are likely to be inconsequential given the existing density of nearby residential development, much of which has existed for decades and was built well before dark sky compliances existed.

<u>II. AGRICULTURE AND FORESTRY RESOURCES.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	Im
a) Convert Prime Farmland, Unique Farmland, or Farmland of Statewide Importance (Farmland), as shown on the maps prepared pursuant to the Farmland Mapping and Monitoring Program of the California Resources Agency, to non-agricultural use?	☐	☐	☐	
b) Conflict with existing zoning for agricultural use, or a Williamson Act contract?	☐	☐	☒	

<u>II. AGRICULTURE AND FORESTRY RESOURCES.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	Im
c) Conflict with existing zoning for, or cause rezoning of, forest land (as defined in Public Resources Code section 12220(g)), timberland (as defined by Public Resources Code section 4526), or timberland zoned Timberland Production (as defined by Government Code section 51104(g))?	☐	☐	☐	
d) Result in the loss of forest land or conversion of forest land to non-forest use?	☐	☐	☐	
e) Involve other changes in the existing environment which, due to their location or nature, could result in conversion of Farmland, to non-agricultural use or conversion of forest land to non-forest use?	☐	☐	☐	

~~a-e) **No Impact:** The project site is zoned Multi-Family Residential (R3) and is immediately adjacent to the City of Ukiah and a large residential development. Years ago, several of the parcels north of the project site were pear orchards, but these have been long removed and the sites are now zoned for General Industrial (I-1) use. No agricultural resources or timber resources exist on the site or in the immediate vicinity, and no premature conversion of natural resources will occur as a result of this project. Therefore, no impacts to agricultural or forestry resources will result.~~

<u>III. AIR QUALITY.</u> Where available, the significance criteria established by the applicable air quality management or air pollution control district may be relied upon to make the following determinations. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	Im
a) Conflict with or obstruct implementation of any applicable air quality plan?	☐	☐	☐	
b) Violate any air quality standard or contribute substantially to an existing or projected air quality violation?	☐	☐	☐	

e) Result in a cumulatively considerable net increase of any criteria pollutant for which the project region is non-attainment under an applicable federal or state ambient air quality standard (including releasing emissions which exceed quantitative thresholds for ozone precursors)?	☐	☐	☐	
d) Expose sensitive receptors to substantial pollutant concentrations?	☐	☐	☐	
e) Create objectionable odors affecting a substantial number of people?	☐	☐	☐	

a-e) No Impact: Mendocino County is located within the North Coast Air Basin, consisting of Del Norte, Humboldt, Trinity, Mendocino, and northern Sonoma counties. Additionally, the Mendocino County Air Quality Management District (MCAQMD) is responsible for enforcing the state and federal Clean Air Acts, as well as local air quality protection regulations. Any new emission point source is subject to an air quality permit, consistent with the District's air quality plan, prior to project construction. The MCAQMD also enforces standards requiring new construction, including houses, to use energy efficient, low-emission Environmental Protection Agency (EPA) certified wood stoves and similar combustion devices to help reduce area source emissions.

While no impacts to air quality are expected from the land division itself, the subsequent development of multi-family house may result in minor impacts to air quality associated with residential use and transportation. Current California building codes prohibit the use of unsealed fireplaces, which are associated with older residences and high incidences of air pollution during colder months. But these uses will not conflict or obstruct the existing air monitoring plan by MCAQMD, they will not expose sensitive receptors to substantial pollution concentrations, or create objectionable odors affecting a substantial number of people. Therefore, no air quality impacts are expected to occur as a result of this project.

IV. BIOLOGICAL RESOURCES: Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
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a) Have a substantial adverse effect, either directly or through habitat modifications, on any species identified as a candidate, sensitive, or special status species in local or regional plans, policies, or regulations, or by the California Department of Fish and Wildlife or U.S. Fish and Wildlife Service?	☐	☐	☐	☐
b) Have a substantial adverse effect on any riparian habitat or other sensitive natural community identified in local or regional plans, policies, regulations or by the California Department of Fish and Wildlife or US Fish and Wildlife Service?	☐	☐	☐	☐
c) Have a substantial adverse effect on federally protected wetlands as defined by Section 404 of the Clean Water Act (including, but not limited to, marsh, vernal pool, coastal, etc.) through direct removal, filling, hydrological interruption, or other means?	☐	☐	☐	☐
d) Interfere substantially with the movement of any native resident or migratory fish or wildlife species or with established native resident or migratory wildlife corridors, or impede the use of native wildlife nursery sites?	☐	☐	☐	☐
e) Conflict with any local policies or ordinances protecting biological resources, such as a tree preservation policy or ordinance?	☐	☐	☐	☐
f) Conflict with the provisions of an adopted Habitat Conservation Plan, Natural Community Conservation Plan, or other approved local, regional, or state habitat conservation plan?	☐	☐	☐	☐

- a) **No Impact:** As part of a previous project, U_2016-0003 (Orr Creek Commons), a comprehensive Wildlife Biological Evaluation was conducted by Marcus H. Bole & Associates, a United State Fish & Wildlife and CDFW approved biological consulting firm. The evaluation concluded that project as designed would not impact federal or state listed wildlife species. This project is in the immediate vicinity of U_2016-0003 and shares the same environmental considerations. Additionally, the Californian Natural Diversity Database contains no instances of endangered flora or fauna within the project site or its vicinity. Therefore, no impact to an identified sensitive species will occur as a result of this project.

b) ~~**No Impact:** The southern boundary of the project site is formed by Orr's Creek, a seasonal creek and riparian area. However, as part of the previous development of Orr Creek Commons Unit 1, a riparian buffer zone and open space area adjacent to the creek was offered for dedication to the City of Ukiah by RCHDC. This project would affect only the remaining portion of the property not affected by the dedication. Given that Orr's Creek has been previously afforded protection from development and impact, no adverse impacts to the riparian area will occur as a result of this project.~~

e-d) ~~**No Impact:** No federally protected wetlands exist on the site or in its vicinity, and the Orr's Creek along the sites southern boundary is a seasonal creek and not typically fish bearing. No impacts to protected wetlands or migratory fish or wildlife will occur as a result of this project.~~

e-f) ~~**No Impact:** Previous work on the site associated with the construction of Orr Creek Commons Phases 1 and 2 resulted in the removal of any residual vegetation, so no impacts to tree preservation policies will occur. While the project site is within the Ukiah Valley Area Plan special plan district, the UVAP does not contain specific restrictions regarding conservation of natural habitat or natural communities, and is not covered by a state habitat conservation plan.~~

<u>V. CULTURAL RESOURCES.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Cause a substantial adverse change in the significance of a historical resource as defined in § 15064.5?	☐	☐	☐	☐
b) Cause a substantial adverse change in the significance of an archaeological resource pursuant to § 15064.5?	☐	☐	☐	☐
c) Directly or indirectly destroy a unique paleontological resource or site or unique geologic feature?	☐	☐	☐	☐
d) Disturb any human remains, including those interred outside of formal cemeteries?	☐	☐	☐	☐

a-d) ~~**No Impact:** The proposed project was referred to Sonoma State University on July 23, 2021. To date, no response has been received indicating further studies should be done, and the Mendocino County Archaeological Commission does not review projects unless recommend by a referral from Sonoma State. Given the previous ground disturbance~~

to the site associated with construction of Orr Creek Commons Phases 1 and 2, it's unlikely that any cultural resources remain on the project site. No identified paleontological resources or human remains exist on the site, so no impacts to cultural resources are expected as a result of this project.

Additionally, a Cultural Resource Reconnaissance of the project site was done for a previous project, U_2016-0003 (Orr Creek Commons), which included both an on-foot survey of the project area, as well as a records search of previous discoveries related to the site. As a result of the records search, 03-1077, it was determined that no archaeological or ethnographic sites had been recorded within the boundaries of the project. The on-foot survey similarly discovered no cultural resources within the site.

<u>VI. ENERGY</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
a) Result in a potentially significant environmental impact due to wasteful, inefficient, or unnecessary consumption of energy, or wasteful use of energy resources, during project construction or operation?	☐	☐	☐	☐
b) Conflict with or obstruct a state or local plan for renewable energy or energy efficiency?	☐	☐	☐	☐

a b) **Less Than Significant Impact:** On October 7, 2015, Governor Edmund G. Brown Jr., signed into law Senate Bill (SB) 350, the Clean Energy and Pollution Reduction Act of 2015 (De León, Chapter 547, Statutes of 2015), which sets ambitious annual targets for energy efficiency and renewable electricity aimed at reducing greenhouse gas (GHG) emissions. SB 350 requires the California Energy Commission establish annual energy efficiency targets that will achieve a cumulative doubling of statewide energy efficiency savings and demand reductions in electricity and natural gas final end uses by January 1, 2030. This mandate is one of the primary measures to help the state achieve its long-term climate goal of reducing GHG emissions to 40 percent below 1990 levels by 2030. The proposed SB 350 doubling target for electricity increases from 7,286 gigawatt hours (GWh) in 2015 up to 82,870 GWh in 2029. For natural gas, the proposed SB 350 doubling target increases from 42 million of therms (MM) in 2015 up to 1,174 MM in 2029.⁴

⁴ Senate Bill No. 350, Chapter 29, De León, Approved by Governor October 7, 2015

Permanent structures constructed on-site would be subject to Part 6 (California Energy Code) of Title 24 of the California Code of Regulations, which contains energy conservation standards applicable to residential and non-residential buildings throughout California. The 2019 Building Energy Efficiency Standards are designed to reduce wasteful, uneconomic, inefficient or unnecessary consumption of energy and enhance outdoor and indoor environmental quality. The multi-family complex proposed to follow this subdivision will be required to meet these energy requirements as part of building permit review process. The proposed subdivision does not conflict with any state plans for renewable energy and is not anticipated to use or waste significant amounts of energy or conflict with or obstruct a state or local plan for renewable energy or energy efficiency.

<u>VII. GEOLOGY AND SOILS:</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
a) Expose people or structures to potential substantial adverse effects, including the risk of loss, injury, or death involving:	☐	☐	☒	☐
i) Rupture of a known earthquake fault, as delineated on the most recent Alquist-Priolo Earthquake Fault Zoning Map issued by the State Geologist for the area or based on other substantial evidence of a known fault? Refer to Division of Mines and Geology Special Publication 42.	☐	☐	☒	☐
ii) Strong seismic ground shaking?	☐	☐	☒	☐
iii) Seismic related ground failure, including liquefaction?	☐	☐	☐	☒
iv) Landslides?	☐	☐	☐	☒
b) Result in substantial soil erosion or the loss of topsoil?	☐	☐	☐	☒
c) Be located on a geologic unit or soil that is unstable, or that would become unstable as a result of the project, and potentially result in on- or off-site landslide, lateral spreading, subsidence, liquefaction or collapse?	☐	☐	☐	☒

d) Be located on expansive soil, as defined in Table 18-1-B of the Uniform Building Code (1994), creating substantial risks to life or property?	☐	☐	☐	☐
e) Have soils incapable of adequately supporting the use of septic tanks or alternative waste water disposal systems where sewers are not available for the disposal of waste water?	☐	☐	☐	☐

- a) ~~**Less Than Significant Impact:** Mendocino County, along with most of California, is a very geologically active area that is rife with many faults of varying activity levels and strengths. Per FEMA's Earthquake Hazard Maps, this region of the County is classified as D2, with the potential effects listed as:~~

~~*Strong shaking—Damage negligible in buildings of good design and construction; slight to moderate in well-built ordinary structures; considerable damage in poorly built structures.*~~

~~The Mayacama Fault Zone sits approximately 1 mile east of the project site, and the San Andreas Fault lies 27 miles to the southwest. In all likelihood, substantial activity from either of these faults may cause impacts for dozens if not hundreds of miles from the epicenter and would certainly be felt by residents at this location. However, modern building codes are required to address the impacts associated with earthquake action in California and those requirements are expected to mitigate all but the most destructive tremors, for which no mitigation can be provided.~~

- b) ~~**No Impact:** The project site sits adjacent to Orrs Creek, a seasonal watercourse and riparian area and within a FEMA class AE flood zone. The proposed multi-family development following this division would require all structures to be built at or above the calculated base flood elevation. The residential complex would also be required to meet parking requirements based on the number on units, and would likely be sealed with some kind of impenetrable or less-penetrable material, such as asphalt. Therefore, no soil erosion or loss of topsoil is expected to occur as a result of this project.~~

- c,d) ~~**No Impact:** The project site is comprised largely of Talmage gravelly sandy loam soils, with a small portion of Cole clay loam. These soils tend to be deep and formed in alluvium derived from various kinds of rock. Runoff is slow and the hazard of erosion is slight, though they can be subject to flooding during prolonged, high-intensity storms. Talmage~~

gravelly sandy loam is best used as a source of aggregate and for vineyards, orchard, hay pastures and homesite development. Neither of these soil types are located on slopes greater than 2 percent, and both are permeable and stable, and not classified as "expansive soils" as defined in table 18-1-B of the Uniform Building Code (1994). Therefore, no impact is expected to the stability of the soils as a result of this project.

- e) **No Impact:** The site is served by the Ukiah Valley Sanitation District, and all future development will be required to utilize the existing district infrastructure for wastewater disposal and treatment, per Mendocino County Code Section 16.12.020. On-site septic systems are not permitted within the UVSD service area.

VIII. GREENHOUSE GAS EMISSIONS. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Generate greenhouse gas emissions, either directly or indirectly, that may have a significant impact on the environment?	☐	☐	☒	☐
b) Conflict with an applicable plan, policy or regulation adopted for the purpose of reducing the emissions of greenhouse gases?	☐	☐	☐	☐

Discussion: The California Global Warming Solutions Act of 2006, also known as Assembly Bill 32 (AB32), recognized that California is a source of substantial amounts of greenhouse gas (GHG) emission which poses a serious threat to the economic well-being, public health, natural resources, and the environment of California. AB32 established a state goal of reducing GHG emission to 1990 levels by the year 2020 with further reductions to follow. In order to address global climate change associated with air quality impacts, CEQA statutes were amended to require evaluation of GHG emission, which includes criteria air pollutants (regional) and toxic air contaminants (local). As a result, Mendocino County Air Quality Management District (MCAQMD) adopted CEQA thresholds of significance for criteria air pollutants and GHGs, and issued updated CEQA guidelines to assist lead agencies evaluate air quality impacts to determine if a project's individual emissions would be cumulatively considerable. According to the MCAQMD, these CEQA thresholds of significance are the same as those, which have been adopted by the Bay Area Air Quality Management District (BAAQMD). Pursuant to the BAAQMD CEQA Guidelines, the threshold for project significance of GHG emissions is 1,100 metric tons CO₂e (CO₂ equivalent) of operation emission on an annual basis. Additionally, Mendocino County's

building code requires new construction to include energy efficient materials and fixtures.

a) **Less Than Significant Impact:** While the subdivision itself will not result in the increase of GHG emissions, the subsequent development of a multi-family housing complex is likely to have at least a minor impact on GHG emissions. However, the project has been designed to implement the measures outlined in the Greenhouse Gas Assessment for the Ukiah Valley Area Plan (February 2009) by the Department of Planning and Building Services to result in emission reductions to include:

a. **Systemic Design to Avoid Emissions**—The project will result in growth and infill occurring in an efficient manner and would reduce potential GHG emissions at a regional and/or jurisdictional level.

b. **Project Design to Avoid Emissions**—Laying out the project so that it relates to and with the surround development; avoiding GHG potential due to poor site access and internal configuration.

c. **Project Elements that Reduce Emissions**—Requiring the use of energy efficient building techniques that reduce the energy demands.

d. **Concurrent Onsite Actions to Offset Emissions**—Generating electricity via photovoltaic solar panels to offset project electricity demands and emissions by providing 200kW of solar generated electricity that is expected to provide most or all energy needed at the site.

e. **Concurrent Offsite Actions to Offset Emissions**—Purchasing or partnering with others to mitigate project emissions elsewhere.

b) **No Impact:** There are no identified plans, policies, or regulations that would be violated through any of the project activities as proposed. The framework for regulating GHG emissions in California is robust and requires local governments to take an active role in addressing climate change and reducing GHG emissions. The Mendocino County Air Quality Management District (MCAQMD) does not have rules, regulations, or thresholds of significance for non-stationary or construction related GHG emissions. Therefore, there is considered to be no impact.

<u>IX. HAZARDS AND HAZARDOUS MATERIALS:</u> <u>Would the project:</u>	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
a) Create a significant hazard to the public or the environment through the routine transport, use, or disposal of hazardous materials?	☐	☐	☒	☐
b) Create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials into the environment?	☐	☐	☒	☐
c) Emit hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one quarter mile of an existing or proposed school?	☐	☐	☐	☐
d) Be located on a site which is included on a list of hazardous materials sites compiled pursuant to Government Code Section 65962.5 and, as a result, would it create a significant hazard to the public or the environment?	☐	☐	☐	☐
e) For a project located within an airport land use plan or, where such a plan has not been adopted, within two miles of a public airport or public use airport, would the project result in a safety hazard for people residing or working in the project area?	☐	☐	☐	☐
f) For a project within the vicinity of a private airstrip, would the project result in a safety hazard for people residing or working in the project area?	☐	☐	☐	☐
g) Impair implementation of or physically interfere with an adopted emergency response plan or emergency evacuation plan?	☐	☐	☐	☐
h) Expose people or structures to a significant risk of loss, injury or death involving wildland fires, including where wildlands are adjacent to urbanized areas or where residences are intermixed with wildlands?	☐	☐	☒	☐

Thresholds of Significance: The project would have a significant effect on hazards and hazardous materials if it were to create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials into the environment; emit hazardous emissions or handle hazardous or acutely hazardous materials;

substances, or waste within one-quarter mile of an existing or proposed school; be located on a site included on a list of hazardous materials sites compiled pursuant to Government Code Section 65962.5 and, as a result, would create a significant hazard to the public or the environment; result in a safety hazard or excessive noise for people residing or working in the project area if located within an airport land use plan or, where such a plan has not been adopted, within two miles of a public airport or public use airport; or impair the implementation of, or physically interfere with an adopted emergency response plan or emergency evacuation plan; or expose people or structures, either directly or indirectly, to a significant risk of loss, injury, or death involving wildland fires.

Discussion: California Health and Safety Code states: "Hazardous material" means any material that, because of its quantity, concentration, or physical or chemical characteristics, poses a significant present or potential hazard of human health and safety or to the environment if released into the workplace or the environment. "Hazardous materials" include, but are not limited to, hazardous substances, hazardous waste, and any material that a handler or the unified program agency has a reasonable basis for believing that it would be injurious to the health and safety of persons or harmful to the environment if released into the workplace or the environment.²

Mendocino County has adopted a Hazardous Waste management Plan to guide future decisions by the County and the incorporated cities about hazardous waste management. Policies in the General Plan emphasize source reduction and recycling of hazardous wastes, and express a preference for onsite hazardous waste treatment over offsite treatment. The Hazardous Waste Management Plan proposes a number of hazardous waste programs and set forth criteria to guide the siting of new offsite hazardous waste facilities. However, to date, no facilities have been cited in the County. In 1997, the County Division of Environmental Health assumed responsibility of administering hazardous waste generation and treatment regulations. The General Plan includes several policies devoted to solid waste and hazardous waste and materials management and specifically, Policy DE-203 states: *All development projects shall include plans and facilities to store and manage solid waste and hazardous materials and wastes in a safe and environmentally sound manner.*³

The California Air Resources Board classifies asbestos as a known human carcinogen. Asbestos of any type is considered hazardous and may cause

² California Code of Regulations, Health and Safety Code Chapter 6.95 §25501 (m), Accessed March 23, 2021: https://leginfo.ca.gov/faces/codes_displaySection.xhtml?lawCode=HSC§ionNum=25501

³ Mendocino County General Plan, Chapter 3: Development Element, Policies DE 201-DE 204, page 3-180 & 3-109 (August 2009)

asbestosis and lung cancer if inhaled, becoming permanently lodged in body tissues. Exposure to asbestos has also been shown to cause stomach and other cancers. Asbestos is the general name for a group of rock-forming minerals that consist of extremely strong and durable fibers. When asbestos fibers are disturbed by grading and construction activities, they are released into the air where they remain for a long period of time. Naturally occurring asbestos is an issue of concern in Mendocino County, which contains areas where asbestos-containing rocks are found. The presence of ultramafic rocks indicates the possible existence of asbestos mineral groups. Ultramafic rocks contain 90 percent or more of dark-colored, iron-magnesium-silicate minerals. Ultramafic rocks may be partially or completely altered to a rock known as serpentinite, more commonly called serpentine.

The Mendocino County Air Quality Management District enforces state regulations to reduce the effects of development projects involving construction sites and unpaved roads in areas tested and determined by the state registered geologist to contain Naturally Occurring Asbestos. Serpentine and ultramafic rocks are common in the eastern belt of the Franciscan Formation in Mendocino County. Small localized areas of serpentinite do occur in the coastal belt of the Franciscan Formation, but they are significantly less abundant.

The California Department of Forestry and Fire Protection (CalFire) designates areas of the County into fire severity zones. These maps are used to develop recommendations for local land use agencies and for general planning purposes.

a-b) **Less Than Significant Impact:** The proposed Project will allow a residential use which does involve the routine transport, use and disposal of hazardous materials in small or limited quantities. These materials include construction materials, household cleaning supplies, and other materials such as fuel, cleaning solvents, lubricants associated with automobiles, small craft engines, power tools and other equipment associated with small-scale agricultural production. Storage of these materials in the open may result in contaminated storm water runoff being discharged into nearby water bodies, including the Pacific Ocean hence the common practice for manufacturers to include critical storage information on product labels. As the proposed project does not include the use of any hazardous materials rather hazardous materials may be associated with the residential use of the subject property, there will be less than significant impact.

c-d) **No Impact:** The closest identified school (Frank Zeek Elementary) is approximately 2,300 feet west of the proposed project site. The project does not propose any activities that would emit hazardous emissions or use any hazardous materials. The subject property has not been identified as a hazardous materials site and therefore, there is no impact.

- e-f) ~~**No Impact:** The closest airport is the Ukiah Municipal Airport, approximately 1.75 miles south of the proposed site. The project is not located within an airport land use plan and is not within the vicinity of a private airstrip and therefore would not cause hazardous conditions for residents or workers.~~
- g) ~~**No Impact:** Access to the Project is provided by Brush Street (CR 217), which connects between North State Street (City of Ukiah) and North Orchard Avenue (City of Ukiah), both major access roads within the city limits. Both road connect to US 101, a major regional highway. The proposed project will not impair the implementation of or physically interfere with an adopted emergency response plan or evacuation plan.~~
- h) ~~**Less Than Significant Impact:** The project site is classified as "Low Density Interface" per the USDA Wildland Urban Interface map and is entirely within a Local Responsibility Area (Ukiah Valley Fire District) and so has not been assigned a fire hazard classification by the State. The site is heavily developed with high density residential and commercial uses on three sides and is within 1,000 feet of the US 101 corridor on the fourth. While it's impossible to completely disregard any threat from wildland fire, the project site is likely better protected than most by being within an urbanized area with existing access and fire protection infrastructure (i.e., hydrants). For these reasons, the threat of wildland fire to the project site and subsequent residential development is determined to be less than significant.~~

X. HYDROLOGY AND WATER QUALITY. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	
a) Violate any water quality standards or waste discharge requirements?	☐	☐	☐	
b) Substantially deplete groundwater supplies or interfere substantially with groundwater recharge such that there would be a net deficit in aquifer volume or a lowering of the local groundwater table level (e.g., the production rate of pre-existing nearby wells would drop to a level which would not support existing land uses or planned uses for which permits have been granted)?	☐	☐	☐	
c) Substantially alter the existing drainage pattern of the site or area, including through the alteration of the course of a stream or river, in a manner which would:	☐	☐	☐	

X. HYDROLOGY AND WATER QUALITY: Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	
i) Result in substantial erosion or siltation on or off site?	☐	☐	☐	
ii) Substantially increase the rate or amount of surface runoff in a manner which would result in flooding on or off site?	☐	☐	☐	
iii) Create or contribute runoff water which would exceed the capacity of existing or planned stormwater drainage systems or provide substantial additional sources of polluted runoff?	☐	☐	☐	
iv) Impede or redirect flood flows?	☐	☐	☐	
d) In flood hazard, tsunami, or seiche zones, risk release of pollutants due to project inundation?	☐	☐	☒	
e) Conflict with or obstruct implementation of a water quality control plan or sustainable groundwater management plan?	☐	☐	☐	

Thresholds of Significance: ~~The project would have a significant effect on hydrology and water quality if it would violate any water quality standards or waste discharge requirements or otherwise substantially degrade surface or ground water quality; substantially decrease groundwater supplies or interfere substantially with groundwater recharge such that the project may impede sustainable groundwater management of the basin; substantially alter the existing drainage pattern of the site or area, including through the alteration of the course of a stream or river or through the addition of impervious surfaces, in a manner, which would result in substantial erosion or siltation on or off site; substantially increase the rate or amount of surface runoff in a manner which would result in flooding on or off site, create or contribute runoff water which would exceed the capacity of existing or planned stormwater drainage systems or provide substantial additional sources of polluted runoff, or impede or redirect flows; in flood hazard, tsunami, or seiche zones, risk release of pollutants due to project inundation; or conflict with or obstruct implementation of a water quality control plan or sustainable groundwater management plan.~~

Discussion: ~~The California State Water Resources Control Board (SWRCB) is responsible for implementing water quality standards in California. These standards are codified in Division 7: Water Quality of the California Code of Regulations which defines waste and groundwater independently. Typical activities and uses that affect water quality include, but are not limited to, discharge of process wastewater from factories, confined animal facilities,~~

construction sites, sewage treatment facilities, and material handling areas which drain into storm drains. In Mendocino County, groundwater is the main source for municipal and individual domestic water systems, outside of the Ukiah Valley, and contributes significantly to irrigation. Wells throughout Mendocino County support a variety of uses, including domestic, commercial, industrial, and agricultural and fire protection. The County's groundwater is found in two distinct geologic settings: the inland valleys and the mountainous areas. Mountainous areas are underlain by consolidated rocks of the Franciscan Complex, which are commonly dry and generally supply less than 5 gallons per minute of water to wells. Interior valleys are underlain by relatively thick deposits of valley fill, in which water extraction yields vary from less than 50 gallons per minute to 1,000 gallons per minute. There are six identified major groundwater basins in Mendocino County. Groundwater recharge is the replacement of water in the groundwater aquifer. Recharge occurs in the form of precipitation, surface runoff that later enters the ground, irrigation, and in some parts of California (but not in Mendocino County) by imported water. Specific information regarding recharge areas for Mendocino County's groundwater basis is not generally available, but recharge for inland groundwater basins comes primarily for infiltration of precipitation and intercepted runoff in stream channels, and from permeable soils along the margins of valleys. Recharge for coastal groundwater basins takes place in fractured and weathered bedrock and coastal terraces, and along recent alluvial deposits and bedrock formations. If recharge areas are protected from major modification — such as paving, building and gravel removal — it is anticipated that continued recharge will re-supply groundwater reservoirs. The basic source of all water in Mendocino County is precipitation in the form of rain or snow. Average annual rainfall in Mendocino county ranges from slightly less than 35 inches in the Ukiah area to more than 80 inches near Branscomb. Most of the precipitation falls during the winter, and substantial snowfall is limited to higher elevations. Rainfall is often from storms which move in from the northwest.

a,e) **No Impact:** The proposed project would not violate any water quality standards or waste discharge requirements or substantially degrade surface or ground water quality. All permanent structures to be built on the new parcel are required to be constructed in accordance with the most recent standards set by all regulatory agencies including but not limited to the County, State Water Resources Control Board (SWRCB) and the North Coast Regional Quality Control Board (NCRWQCB). All recommended driveway improvements along Brush Street are required to comply with standards and regulations as provided by the Mendocino County Department of Transportation. Conditions of approval are recommended to ensure that no water quality standards or waste discharge requirements are violated and there has been no evidence or indication that the proposed project would violate any existing requirements and therefore, there is no impact.

- b) **Less Than Significant Impact:** The subdivision does not require the use of water resources, but the subsequent multi-family housing development will. The project site is adjacent to the City of Ukiah, who has confirmed their commitment to provide domestic water services to the project in a letter dated August 27, 2021. The City confirms that the proposed addition of 32 units falls within its previous commitment of serving up to 154 units, and that the City has the resources available to provide this service. The City has several production wells available to meet its water needs, as well as a robust water treatment system that re-introduces up to 40% of the water back to the aquifer following treatment. While the addition of the housing units will cause a draw on the aquifer, the resources currently available to the City are expected to make this draw a less than significant impact.
- c) **Less Than Significant Impact:** The proposed project includes improvements such as installation of a driveway and parking area which could alter existing drainage patterns through the addition of impervious surfaces. These improvements are subject to Mendocino County Ordinance No. 4313, Stormwater Runoff Pollution Prevent Procedure. Chapter 16.30 requires any person performing construction and grading work anywhere in the County to implement appropriate BMPs to prevent the discharge of construction waste, debris or contaminants from construction materials, tools and equipment from entering the storm drainage system. The project would not substantially increase the rate or amount of surface runoff in a manner which would result in flooding on or offsite, create or contribute runoff water which would exceed the capacity of existing or planned stormwater drainage systems or provide substantial additional sources of polluted runoff. Additionally, the project site lies within a mapped FEMA flood zone. New structures are required to be constructed a minimum of two (2) feet above the local Base Flood Elevation (BFE), but may otherwise be permitted within this zone. This has the potential to cause a minor diversion of flood waters in the event of a major flood. However, the existing drainage infrastructure around the project site is expected to mitigate this impact to be less than significant.
- d) **Less Than Significant Impact:** As discussed above and in Section IX, the subsequent construction of a multi-family housing development on this project site brings with it certain incidental risks associated with hazardous material transportation, usage, storage, disposal and leakage, including fluids associated with automobile operation and parking. The residential classification of the site will prohibit hazardous materials of an industrial nature or volume from being present on site, however a major flood would likely result in a measurable if insignificant release of additional pollutants into adjacent rivers or watercourses. As the nature

and volume of these pollutants would be essential the same as cause by heavy rainfall, the impact to the flood zone is considered to be less than significant.

<u>XI. LAND USE AND PLANNING.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Physically divide an established community?	☐	☐	☐	☐
b) Conflict with any applicable land use plan, policy, or regulation of an agency with jurisdiction over the project (including, but not limited to the general plan, specific plan, local coastal program, or zoning ordinance) adopted for the purpose of avoiding or mitigating an environmental effect?	☐	☐	☐	☐
c) Conflict with any applicable habitat conservation plan or natural community conservation plan?	☐	☐	☐	☐

Thresholds of Significance: The project would have a significant effect on land use and planning if it would physically divide an established community or cause a significant environmental impact due to a conflict with any land use plan, policy, or regulation adopted for the purpose of avoiding or mitigating an environmental effect.

a) **No Impact:** The proposed project is located adjacent to the City of Ukiah and within its immediate sphere of influence and community identification. Both the proposed subdivision and the subsequent development would be wholly within this community area, so no division will occur.

b) **No Impact:** The project site is within the Ukiah Valley Area Plan, and classified as Suburban Residential (SR). Sec. 20.044.005 MCC defines the intent of the SR district to "...create and enhance neighborhoods where a mixture of residential, public facilities and services ... are desired. Areas designated Suburban Residential should be served by a publicly-maintained road network, and should be located within public service districts or logical extensions thereof." The project site is zoned Multiple Family Residential (R3), which is intended to "...create and enhance areas suitable for higher density residential uses..." No other specific plans that would regulate mitigation or avoidance of environmental effects have been adopted for this site.

- e) **No Impact:** There are no identified habitats or natural community conservation plans for the project location, thus there is no possibility for the project to conflict with any such plans. According to the California Natural Diversity Database (CNDDB), no sensitive flora or fauna have been reported on the project site.

<u>XII. MINERAL RESOURCES:</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Result in the loss of availability of a known mineral resource that would be of value to the region and the residents of the state?	☐	☐	☐	☒
b) Result in the loss of availability of a locally important mineral resource recovery site delineated on a local general plan, specific plan or other land use plan?	☐	☐	☐	☒

Thresholds of Significance: The project would have a significant effect on mineral resources if it would result in the loss of availability of a known mineral resource that would be of value to the region and the residents of the state or result in the loss of availability of a locally important mineral resource recovery site delineated on a local general plan, specific plan, or other land use plan.

Discussion: The most predominant minerals found in Mendocino County are aggregate resources, primarily sand and gravel. Three sources of aggregate materials are present in Mendocino County: quarries, instream gravel and terrace gravel deposits. The demand for aggregate is typically related to the size of the population, and construction activities, with demand fluctuating from year to year in response to major construction projects, large development activity, and overall economic conditions. After the completion of U.S. 101 in the late 1960s, the bulk of aggregate production and use shifted primarily to residential and related construction. However, since 1990 a significant amount of aggregate has shifted back toward highway construction.

- a-b) **No Impact:** The proposed project is not located on or within any identified mineral resource lands, thus it will not result in the loss of any available mineral resource.

<u>XIII. NOISE.</u> Would the project result in:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
a) Exposure of persons to or generation of noise levels in excess of standards established in the local general plan or noise ordinance, or applicable standards of other agencies?	☐	☐	☐	☐
b) Exposure of persons to or generation of excessive groundborne vibration or groundborne noise levels?	☐	☐	☐	☐
c) A substantial permanent increase in ambient noise levels in the project vicinity above levels existing without the project?	☐	☐	☐	☐
d) A substantial temporary or periodic increase in ambient noise levels in the project vicinity above levels existing without the project?	☐	☐	☒	☐
e) For a project located within an airport land use plan or, where such a plan has not been adopted, within two miles of a public airport or public use airport, would the project expose people residing or working in the project area to excessive noise levels?	☐	☐	☐	☐
f) For a project within the vicinity of a private airstrip, would the project expose people residing or working in the project area to excessive noise levels?	☐	☐	☐	☐

Thresholds of Significance: The project would have a significant effect on noise if it would result in the generation of a substantial temporary or permanent increase in ambient noise levels in the vicinity of the project in excess of standards established in the local general plan or noise ordinance, or applicable standards of other agencies; or generation of excessive groundborne vibration or groundborne noise levels; or expose people residing or working in the project area to excessive noise levels (for a project located within the vicinity of a private airstrip or an airport or an airport land use plan, or where such a plan has not been adopted, within two miles of a public airport or public use airport).

Discussion: Acceptable levels of noise vary depending on the land use. In any one location, the noise level will vary over time, from the lowest background or ambient noise level to temporary increases caused by traffic or other sources. State and federal standards have been established as guidelines for determining the compatibility of a particular use with its noise environment. Mendocino County

relies principally on standards in its Noise Element, its Zoning Ordinance, and other county ordinances, and the Mendocino County Airport Comprehensive Land Use Plan to evaluate noise-related impacts of development. Land uses considered noise sensitive are those in which noise can adversely affect what people are doing on the land. For example, a residential land use where people live, sleep, and study is generally considered sensitive to noise because noise can disrupt these activities. Churches, schools, and certain kinds of outdoor recreation are also usually considered noise sensitive.

a-b) **No Impact:** The existing residential development does not exceed noise levels, neither will the proposed subdivision or subsequent development, as permitted uses are limited to residential activities and prevent noisier, more impactful uses. Additionally, the proposed subdivision will not expose persons to excessive groundborne vibration.

e-d) **Less Than Significant Impact:** The proposed multi-family development is identical in nature and scale to the two existing multi-family developments adjacent to the project site. Approval of the project would not result in a significant increase in ambient noise over that which currently exists, largely limited to incidental noise and activity associated with residential development. Construction activities associated with site preparation, construction and cleanup would be temporary in nature and are likely to cause an increase to local noise levels, though these would be less than significant through the implementation of standard permit conditions. Standard permit conditions require limiting construction hours within 500 feet of residential uses to the hours of 7:00 a.m. and 7:00 p.m. weekdays, using quiet models of air compressors and other stationary noise sources where technology exists, use of mufflers on all internal combustion engine driven equipment, and locating staging areas as far away as possible from noise sensitive land use areas.

e-f) **No Impact:** The proposed project is not located near any airport zone or within any airport land use plan, thus it would not expose people to any level of noise regarding aircrafts or airstrips.

<u>XIV. POPULATION AND HOUSING:</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Induce substantial population growth in an area, either directly (for example, by proposing new homes and businesses) or indirectly (for example, through extension of roads or other infrastructure)?	☐	☐	☒	☐

<u>XIV. POPULATION AND HOUSING:</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
b) Displace substantial numbers of existing housing, necessitating the construction of replacement housing elsewhere?	☐	☐	☐	☐
e) Displace substantial numbers of people, necessitating the construction of replacement housing elsewhere?	☐	☐	☐	☐

Thresholds of Significance: The project would have a significant effect on population and housing if it would induce substantial unplanned population growth in an area, either directly (e.g., by proposing new homes and/or businesses) or indirectly (e.g., through extension of roads or other infrastructure); or displace substantial numbers of existing people or housing, necessitating the construction of replacement housing elsewhere.

Discussion: Mendocino County's Housing Element is designed to facilitate the development of housing adequate to meet the needs of all County residents. The Mendocino Council of Government's (MCOG) Regional Housing Needs Plan assigned the County a production goal of 2,552 housing unit for the unincorporated area between 2009 and 2014. Goals and policies were set forth in order to facilitate the development of these housing units at a range of sizes and types to address this need.

a-c) **Less than significant impact:** Approval of the project will allow subsequent construction of a multi-family residential complex of 32 units, however substantial population growth in the area is not expected to be significantly impacted. Future growth of the immediate area is limited by the classification of adjacent parcels. Following construction of these new units, the only remaining unimproved land in the vicinity will be zoned Limited Industrial (I1), which prohibits residential uses. The new housing units are expected to help ameliorate the existing housing deficit in the community, rather than serve as a draw to new members. Establishment of new residential units will not displace any existing residence or require the construction of replacement housing, so the project is expected to have a less than significant impact here.

<u>XV. PUBLIC SERVICES:</u>	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	More Than Significant Impact
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a) Would the project result in substantial adverse physical impacts associated with the provision of new or physically altered governmental facilities, need for new or physically altered governmental facilities, the construction of which could cause significant environmental impacts, in order to maintain acceptable service ratios, response times or other performance objectives for any of the public services:	☐	☐	☐	☐
Fire protection?	☐	☐	☐	☐
Police protection?	☐	☐	☐	☐
Medical Services?	☐	☐	☐	☐
Schools?	☐	☐	☐	☐
Parks?	☐	☐	☐	☐
Other public facilities?	☐	☐	☐	☐

Thresholds of Significance: The project would have a significant effect on public services if it would result in substantial adverse physical impacts associated with the provision of new or physically altered governmental facilities, or result in the need of new or physically altered governmental facilities, the construction of which could cause significant environmental impacts, in order to maintain acceptable service ratios, response times, or other performance objectives for fire protection, police protection, schools, parks, or other public facilities.

Discussion: The Mendocino County Office of Emergency Services (OES) is the primary local coordination agency for emergencies and disasters affecting residents, public infrastructure, and government operations in the Mendocino County Operational Area. Other public services including fire protection, police servicing, medical, school, and other public facilities are already provided for the existing parcel. A road easement provides access to existing infrastructure in the north parcel and improvements required for the new Parcel 2 to the south.

a) **No Impact:** The project is entirely within a Local Responsibility Area (LRA) administered by the Ukiah Valley Fire Protection District (UVFD). The district currently provides structure and wildland protection to parcels within its service district. The project site is at the corner of two publicly maintained streets, with liberal access to fire protection equipment and resources. Law enforcement is provided by the County of Mendocino, with the headquarters of the Mendocino County Sheriff's Office (MCSO) 1± mile to the west. Approval of the project is not likely to require an increase in the staff or equipment required by either the UVFD or the MCSO, so no impact is expected to public services.

<u>XVI. RECREATION:</u>	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Would the project increase the use of existing neighborhood and regional parks or other recreational facilities such that substantial physical deterioration of the facility would occur or be accelerated?	☐	☐	☐	☒
b) Does the project include recreational facilities or require the construction or expansion of recreational facilities which might have an adverse physical effect on the environment?	☐	☐	☐	☒

Thresholds of Significance: The County of Mendocino manages a variety of public recreation areas including the Low Gap Park in Ukiah, Bower Park in Gualala, Mill Creek Park in Talmage, Faulkner Park in Boonville, Indian Creek Park and Campground in Philo and the Lion's Club Park in Redwood Valley, all of which are operated by the Mendocino County Cultural Services Agency. Additionally, the County is host to a variety of state parks, reserves, other state protected areas used for the purpose of recreation, with 13 locate along the coast and 8 throughout inland Mendocino County.

a-b) **No Impact:** The nearest regional park to the project site is Low Gap Park, 1.5± miles to the west. It's likely that the increase in residents associated with the subsequent construction of a multi-family housing complex will increase the use of local parks to some degree, but not to the point that substantial physical deterioration of the facilities would occur, or that new facilities would need to be constructed. Additionally, previous approval of the Orr Creek Commons Phase 1 complex adjacent to the project site resulted in dedicated of a riparian area along Orrs Creek to be used for both environmental protection as well as community recreation through the establishment of a creekside walking trail. The increase in on-site recreation options together with the existing number of parks in the area should mitigate any potential use increase to negligible levels.

<u>XVII. TRANSPORTATION/TRAFFIC:</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Conflict with an applicable plan, ordinance or policy establishing measures of effectiveness for the performance of the circulation system, taking into account all modes of transportation including	☐	☐	☐	☒

mass transit and non-motorized travel and relevant components of the circulation system, including but not limited to intersections, streets, highways and freeways, pedestrian and bicycle paths, and mass transit?					
b) Conflict with an applicable congestion management program, including, but not limited to level of service standards and travel demand measures, or other standards established by the county congestion management agency for designated roads or highways?	☐	☐		☐	☒
e) Result in a change in air traffic patterns, including either an increase in traffic levels or a change in location that results in substantial safety risks?	☐	☐		☒	☐
d) Substantially increase hazards due to a design feature (e.g., sharp curves or dangerous intersections) or incompatible uses (e.g., farm equipment)?	☐	☐		☐	☒
e) Result in inadequate emergency access?	☐	☐		☐	☒
f) Conflict with adopted policies, plans, or programs regarding public transit, bicycle, or pedestrian facilities, or otherwise decrease the performance or safety of such facilities?	☐	☐		☐	☒

Thresholds of Significance: The project would have a significant effect on transportation if it would conflict with a program, plan, ordinance or policy addressing the circulation system, including transit, roadway, bicycle and pedestrian facilities; conflict or be inconsistent with CEQA Guidelines Section 15064.3, subdivision (b); substantially increase hazards due to a geometric design features (e.g., sharp curves or dangerous intersections) or incompatible uses (e.g., farm equipment); or result in inadequate emergency access. California's greenhouse gas reduction goals encourage reductions to vehicle miles traveled. A technical advisory on evaluating transportation impacts in CEQA suggests the criteria for determining the significance of transportation impacts must "promote the reduction of greenhouse gas emissions, the development of multimodal transportation networks, and a diversity of land uses."⁴ The Office of Planning and Research (OPR) suggests for local governments to assess emission reductions from greenhouse gas mitigation and refer to a wide range of research, including the California Air Pollution Control Officers Association (CAPCOA), *Quantifying Greenhouse Gas Mitigation Measures*.

⁴ Governor's Office of Planning and Research, April 2018.

CAPCOA finds that the most important determinant of Vehicle Miles Traveled (VMT) is location within a region and in some cases, streamlining CEQA review of projects in travel efficient locations may be the most effective means of reducing VMT. Yet, few empirical studies are available to suggest appropriate VMT reduction caps for strategies implemented in rural areas. Vanpools, telecommute or alternative work schedules and master planned communities with design and land use diversity that facilitates intra-community travel are among the most successful strategies to reduce VMT. To reduce greenhouse gas emissions, CAPCOA recommendations include increasing location efficiencies (LUT-2), increasing destination accessibility (LUT-4), locating projects near bike path/bike lanes (LUT-8), and many other potential measures relating to land use, location, neighborhood and site enhancements, parking policies and pricing, or commute trip reduction programs. For example, if an increase of destination accessibility included adding bike path or bike lanes to a project the estimated range of effectiveness could be a 20% VMT reduction and therefore 6-20% reduction in GHG emissions (Ibid). While LUT 2, LUT 4, and LUT 8 measures are appropriate for industrial projects, these measures would likely have a negligible effect in a rural context, such as Mendocino County.

Discussion: It is expected that approval of the project and subsequent construction of the multi-family housing complex will result in an increase in traffic to and from the site, as typically associated with residential development and uses.

a) b) **Less Than Significant Impact:** The proposed project was referred to the Mendocino County Department of Transportation (DOT) and no comments were received that expressed conflicts with any adopted plan. During the October 14, 2021 Subdivision Committee review of the proposed project, no exceptions were requested or discussed. The proposed project is located in an area where residential use is common and established, and well served by existing public infrastructure. The project site is appropriately zoned to allow for further expansion of residential use. A comment letter from the City of Ukiah requests that a bike line be constructed along North Orchard Avenue that would connect with the existing bike lane within the City of Ukiah, and this will be added as a condition of approval.

c) **No Impact:** The project site is 1.75± miles north of the Ukiah Municipal Airport but is outside any established airport zone. The existing Airport Comprehensive Land Use Plan (ACLUP) takes into account optimal approach and departure routes to minimize accidental impact to residential areas. Proposal of this project will not affect established flight routes either way, so no impact is expected.

- d-e) ~~**No Impact:** No change to existing access infrastructure or land use will occur as a result of the project. Both are suited to high-density residential, so no impacts will occur.~~
- f) ~~**Less Than Significant Impact:** The proposed project will not conflict with any adopted policies, plans or programs related to transportation and traffic or otherwise decrease the performance or safety of transportation facilities. Conditions of Approval are recommended to ensure that the project receives clearance from both fire agencies before the subdivision can be completed, and that a connection to the existing bicycle lane on North Orchard Avenue be installed to connect it to Brush Street.~~

<u>XVIII. TRIBAL CULTURAL RESOURCES.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) cause a substantial adverse change in the significance of a tribal cultural resource, defined in Public Resources Code section 21074 as either a site, feature, place, cultural landscape that is geographically defined in terms of the size and scope of the landscape, sacred place, or object with cultural value to a California Native American tribe, and that is listed or eligible for listing in the California Register of Historical Resources, or in a local register of historical resources as defined in Public Resources Code section 5020.1(k), or	☐	☐	☐	☒
b) Cause a substantial adverse change in the significance of a tribal cultural resource, defined in Public Resources Code section 21074 as either a site, feature, place, cultural landscape that is geographically defined in terms of the size and scope of the landscape, sacred place, or object with cultural value to a California Native American tribe, and that is a resource determined by the lead agency, in its discretion and supported by substantial evidence, to be significant pursuant to criteria set forth in subdivision (c) of Public Resources Code Section 5024.1. In applying the criteria set forth in subdivision (c) of Public Resources Code Section 5024.1, the lead agency shall consider the	☐	☐	☐	☒

significance of the resource to a California Native American tribe.

Thresholds of Significance: The project would have a significant effect on Tribal Cultural Resources if it would cause a substantial adverse change in the significance of a tribal resource, defined in Public Resources Code §21074 as either a site, feature, place, cultural landscape that is geographically defined in terms of the size and scope of the landscape, sacred place, or object with cultural value to a California Native American tribe, and that is listed or eligible for listing in the California Register of Historic Places or in a local register of historical resources as define in Public Resources Code §5020.1(k), or is a resource determined by the lead agency, in its discretion and supported by substantial evidence, to be significant pursuant to criteria set forth in subdivision (c) of Public Resources Code §5024.1.

a-b) **No Impact:** As discussed in section V, a Cultural Resource Reconnaissance of the project site was accomplished in conjunction with U_2016-0003. The associated records survey (03-1077) and foot survey revealed no resources within the project site or previous discoveries.

<u>XIX. UTILITIES AND SERVICE SYSTEMS.</u> Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Exceed wastewater treatment requirements of the applicable Regional Water Quality Control Board?	☐	☐	☐	☒
b) Require or result in the construction of new water or wastewater treatment facilities or expansion of existing facilities, the construction of which could cause significant environmental effects?	☐	☐	☐	☒
c) Require or result in the construction of new storm water drainage facilities or expansion of existing facilities, the construction of which could cause significant environmental effects?	☐	☐	☐	☒
d) Have sufficient water supplies available to serve the project from existing entitlements and resources, or are new or expanded entitlements needed?	☐	☐	☐	☒
e) Result in a determination by the wastewater treatment provider which serves or may serve the project that it has adequate capacity to serve the	☐	☐	☐	☒

project's projected demand in addition to the provider's existing commitments?				
f) Be served by a landfill with sufficient permitted capacity to accommodate the project's solid waste disposal needs?	☐	☐	☒	☐
g) Comply with federal, state, and local statutes and regulations related to solid waste?	☐	☐	☒	☐

Thresholds of Significance: The Project would have a significant effect on utilities and service systems if it would require or result in the relocation or construction of new or expanded water, wastewater treatment or stormwater drainage, electric power, natural gas, or telecommunications facilities, the construction or relocation of which could cause significant environmental effects; not have sufficient water supplies available to serve the project and reasonably foreseeable future development during normal, dry, and multiple dry years; result in a determination by the wastewater treatment provider, which serves or may serve the project that it does not have adequate capacity to serve the project's projected demand in addition to the provider's existing commitments; generate solid waste in excess of state or local standards, or in excess of the capacity of local infrastructure, or otherwise impair the attainment of solid waste reduction goals; or not comply with federal, state, and local management and reduction statutes and regulations related to solid waste.

Discussion: Public sewer systems in Mendocino County are provided by cities, special districts, and some private water purveyors. There are 13 major wastewater systems in the county, four of which primarily serve the incorporated cities, but also serve some unincorporated areas. Sewage collected by the Brooktrails Township Community Services District and Meadowbrook Manor Sanitation District is treated at the City of Willits Wastewater Treatment Plant. The City of Ukiah's Wastewater Treatment Plant also processes wastewater collected by the Ukiah Valley Sanitation District. Sewage disposal in the remainder of the county is generally handled by private onsite facilities, primarily septic tank and leach field systems, although alternative engineered wastewater systems may be used.

Solid waste management in Mendocino County has undergone a significant transformation from waste disposal in landfills supplemented by transfer stations and waste stream diversion. These changes have responded to rigorous water quality and environmental laws, particularly the California Integrated Waste Management Act of 1989 (AB 939). The Act required each city and county to divert 50 percent of its waste stream from landfill disposal by the year 2000 through source reduction, recycling, composting, and other programs. Chapter 3 (Development Element) of the Mendocino County General Plan (2009) notes there are no remaining operating landfills in Mendocino County, and as a result, solid waste generated within the County is exported for disposal to the Potrero

Hills Landfill in Solano County. The Potrero Hills Landfill has a maximum permitted throughput of 4,330 tons per day and remaining capacity of 13.872 million cubic yards, and is estimated to remain in operation until February 2048.

Mendocino County's Development Goal DE-21 (Solid Waste) states: *Reduce solid waste sent to landfills by reducing waste, reusing materials, and recycling waste.* Mendocino County's Environmental Health Division regulates and inspects more than 50 solid waste facilities in Mendocino County, including: 5 closed/inactive municipal landfills, 3 wood waste disposal sites, 2 composting facilities and 11 transfer stations.

a-c,e) **No Impact:** The project site is served by the Ukiah Valley Sanitation District (UVSD) for wastewater treatment. Referrals sent to the district were returned recommending approval of the project.

d) **No Impact:** An existing agreement with the City of Ukiah will provide domestic water to the housing development on the project. A letter from the City confirms their commitment to support up to 154 units here with their existing resources.

f-g) **Less Than Significant Impact:** The proposed project will comply with federal, state, and local statutes and regulations related to solid waste. The project site is served by a commercial solid waste disposal provided (Waste Management), and the nearest transfer station is approximately 3 miles south.

<u>XX. WILDFIRE:</u> If located in or near state responsibility areas or lands classified as very high fire hazard severity zones, would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Impair an adopted emergency response plan or emergency evacuation plan?	☐	☐	☐	☒
b) Due to slope, prevailing winds, and other factors, exacerbate wildfire risks, and thereby expose project occupants to, pollutant concentrations from a wildfire or the uncontrolled spread of a wildfire?	☐	☐	☐	☒
c) Require the installation or maintenance of associated infrastructure (such as roads, fuel breaks, emergency water sources, power lines or other utilities) that may exacerbate fire risk or that may result in temporary or ongoing impacts to the environment?	☐	☐	☐	☒

d) Expose people or structures to significant risks, including downslope or downstream flooding or landslides, as a result of runoff, post-fire slope instability, or drainage challenges?	☐	☐	☐	☒
Discussion: To “facilitate multi-agency and multijurisdictional coordination during emergency operations, particularly between Mendocino County, local and tribal governments, special districts as well as state and Federal agencies” the County of Mendocino adopted a <i>Mendocino County Operational Area Emergency Operations Plan</i> (County EOP) on September 13, 2016, under Resolution Number 16-119. As noted on the County’s website, the County EOP, which complies with local ordinances, state law, and state and federal emergency planning guidance, serves as the primary guide for coordinating and responding to all emergencies and disasters within the County (County of Mendocino—Plans and Publications, 2019). a) No Impact: As discussed in the Hazards and Hazardous Materials Section IX, there are no components of the project that would impair an adopted emergency response plan or emergency evaluation plan, including the adopted County EOP. b) No Impact: As proposed, it is not anticipated that wildfire risks would be exacerbated due to slope, prevailing winds or proposed infrastructure to be installed. The project is within an urbanized area and a Local Responsibility Fire area, so impacts to wildland and potential causes of or effects from wildfires are expected to be negligible. c) No Impact: As mentioned in sections above, the project site is adjacent to the City of Ukiah and within the urbanized area surrounding it. The infrastructure required to serve the project and subsequent development including road, drainage and utilities already exists on site. d) No Impact: The site is level and located in an urbanized area with existing drainage and stormwater infrastructure. Though it is potentially subject to inundation in the event of a severe flood, construction standards specified in Section 22.17.405 MGC require structures within a flood zone to have their finished floor a minimum of two (2) feet above the Base Flood Elevation to ensure safety.				
<u>XXI. MANDATORY FINDINGS OF SIGNIFICANCE.</u>	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	Less Than Significant Impact

a) Does the project have the potential to degrade the quality of the environment, substantially reduce the habitat of a fish or wildlife species, cause a fish or wildlife population to drop below self-sustaining levels, threaten to eliminate a plant or animal community, reduce the number or restrict the range of a rare or endangered plant or animal or eliminate important examples of the major periods of California history or prehistory?	☐	☐	☐	☐
b) Does the project have impacts that are individually limited, but cumulatively considerable? ("Cumulatively considerable" means that the incremental effects of a project are considerable when viewed in connection with the effects of past projects, the effects of other current projects, and the effects of probable future projects)?	☐	☐	☐	☐
c) Does the project have environmental effects which will cause substantial adverse effects on human beings, either directly or indirectly?	☐	☐	☐	☐

Thresholds of Significance: The project would have a significant effect on mandatory findings of significance if it would have the potential to substantially degrade the quality of the environment, substantially reduce the habitat of a fish or wildlife species, cause a fish or wildlife population to drop below self-sustaining levels, threaten to eliminate a plant or animal community, substantially reduce the number or restrict the range of a rare or endangered plant or animal, or eliminate important examples of the major periods of California history or prehistory; have impacts that are individually limited, but cumulatively considerable ("Cumulatively considerable" means that the incremental effects of a project are considerable when viewed in connection with the effects of past projects, the effects of other current projects, and the effects of probable future projects.); or have environmental effects which will cause substantial adverse effects on human beings, either directly or indirectly.

Discussion: Certain mandatory findings of significance must be made to comply with CEQA Guidelines §15065. The proposed project has been analyzed and it has been determined that it would not:

- Substantially degrade environmental quality;
- Substantially reduce fish or wildlife habitat;

- ~~• Cause a fish or wildlife population to fall below self-sustaining levels;~~
- ~~• Threaten to eliminate a plant or animal community;~~
- ~~• Reduce the numbers or range of a rare, threatened, or endangered species;~~
- ~~• Eliminate important examples of the major periods of California history or pre-history;~~
- ~~• Achieve short term goals to the disadvantage of long term goals;~~
- ~~• Have environmental effects that will directly or indirectly cause substantial adverse effects on human beings; or~~
- ~~• Have possible environmental effects that are individually limited but cumulatively considerable when viewed in connection with past, current, and reasonably anticipated future projects.~~

Potential environmental impacts from the approval of a subdivision of a 4.10± acre parcel to create one parcel of 2.37± acres (Lot 1) and one parcel of 1.73± acres (Lot 2), as well as the subsequent construction of multi-family housing complex have been analyzed in this document, and the impacts have been determined to be less than significant.

- a) ~~**No Impact:** As noted in previous sections, the proposed project has limited impact on the quality of the environment and it would not substantially reduce the habitat of a fish or wildlife species, cause a fish or wildlife population to drop below self-sustaining levels, threaten to eliminate a plant or animal community, reduce the number or restrict the range of a rare or endangered plant or animal, nor would the project eliminate important examples of the major periods of California history or prehistory. Any impacts that would occur are considered to be less than significant and will be diminished through the Conditions of Approval.~~
- b) ~~**No Impact:** The proposed project will not create any cumulative impacts on the surrounding area and any impact that would occur is considered to be less than significant.~~
- c) ~~**No Impact:** Due to the insignificant impacts on the environment, as indicated through this Initial Study, the proposed project would not have an effect on the environment that would have adverse impacts on human beings.~~

DETERMINATION: On the basis of this initial evaluation:

☒ I find that the proposed project COULD NOT have a significant effect on the environment, and a NEGATIVE DECLARATION will be prepared.

☐ I find that although the proposed project could have a significant effect on the environment, there will not be a significant effect in this case because revisions in the project have been made by or agreed to by the project proponent. A MITIGATED NEGATIVE DECLARATION will be prepared.

☐ I find that the proposed project MAY have a significant effect on the environment, and an ENVIRONMENTAL IMPACT REPORT is required.

☐ I find that the proposed project MAY have a "potentially significant impact" or "potentially significant unless mitigated" impact on the environment, but at least one effect 1) has been adequately analyzed in an earlier document pursuant to applicable legal standards, and 2) has been addressed by mitigation measures based on the earlier analysis as described on attached sheets. An ENVIRONMENTAL IMPACT REPORT is required, but it must analyze only the effects that remain to be addressed.

☐ I find that although the proposed project could have a significant effect on the environment, because all potentially significant effects (a) have been analyzed adequately in an earlier EIR or NEGATIVE DECLARATION pursuant to applicable standards, and (b) have been avoided or mitigated pursuant to that earlier EIR or NEGATIVE DECLARATION, including revisions or mitigation measures that are imposed upon the proposed project, nothing further is required.

DATE RUSSELL D. FORD